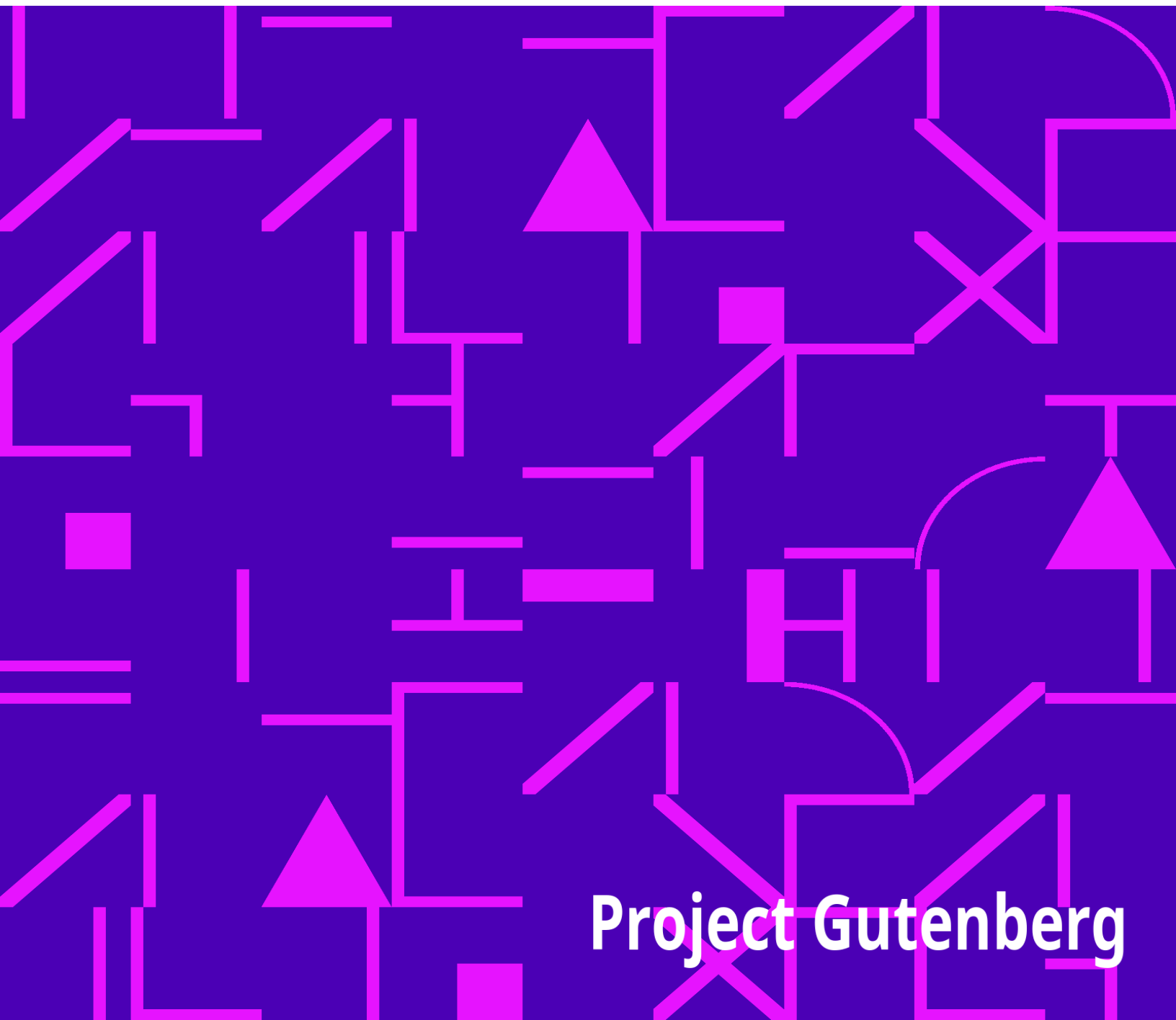


The Continental Monthly, Vol. 3 No 2, February 1863

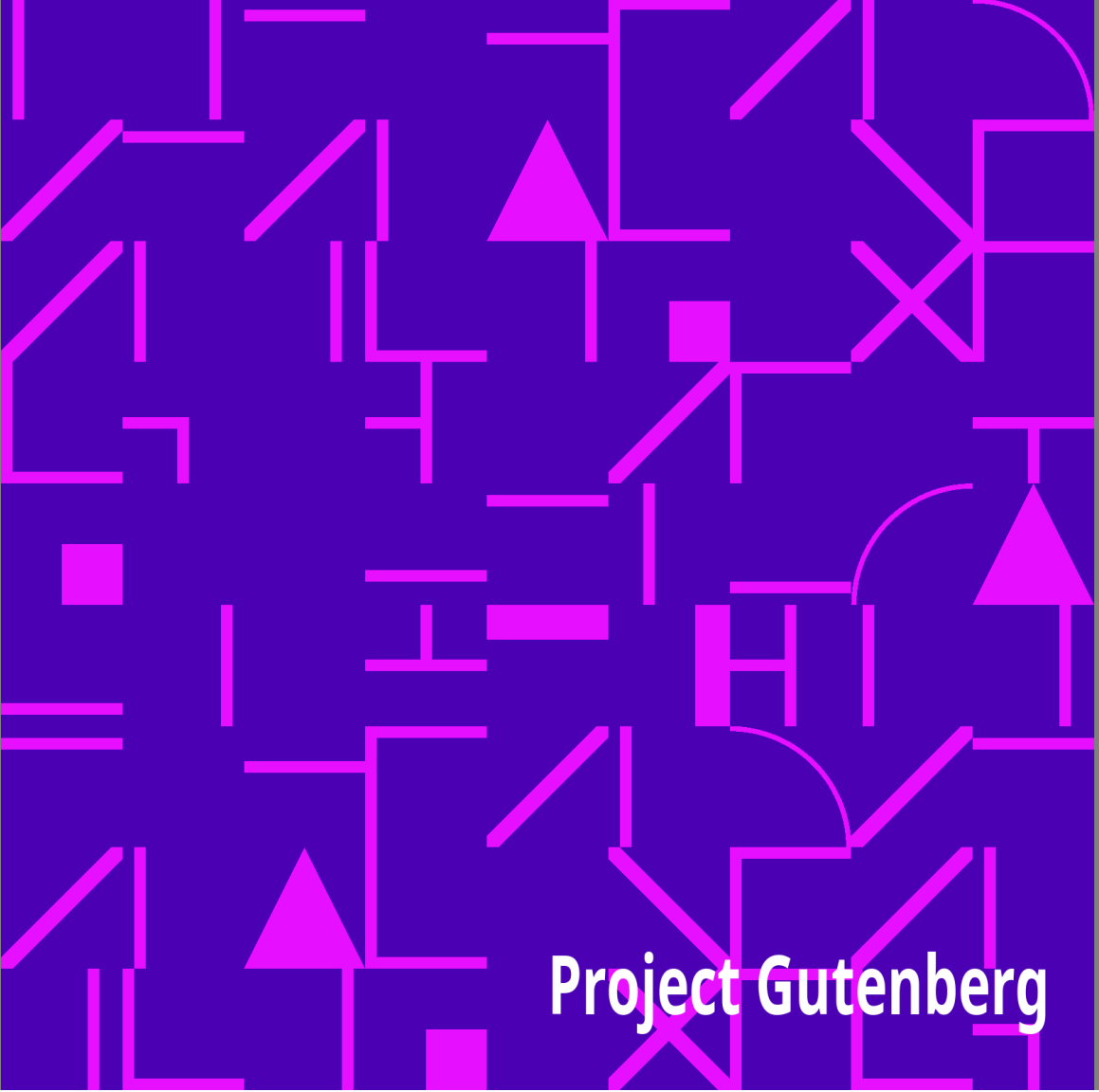
Various



Project Gutenberg

**The Continental Monthly, Vol. 3 No 2,
February 1863**

Various



Project Gutenberg

The Project Gutenberg eBook of The Continental Monthly, Vol. 3 No 2, February 1863

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Continental Monthly, Vol. 3 No 2, February 1863

Author: Various

Release date: July 17, 2008 [eBook #26077]

Language: English

Other information and formats: www.gutenberg.org/ebooks/26077

Credits: Produced by Joshua Hutchinson and the Online Distributed Proofreading Team at <http://www.pgdp.net> (This file was produced from images generously made available by Cornell University Digital Collections)

*** START OF THE PROJECT GUTENBERG EBOOK THE
CONTINENTAL MONTHLY, VOL. 3 NO 2, FEBRUARY 1863 ***

THE
CONTINENTAL MONTHLY:
DEVOTED TO

Literature and National Policy.

VOL. III.—AUGUST, 1863.—No. II.

CONTENTS

OUR NATIONAL FINANCES.
A TRIP TO ANTIETAM.
AMERICAN DESTINY.
THE BIRTH OF THE LILY.
WAS HE SUCCESSFUL?—PART
SECOND
NULLIFICATION AND
SECESSION.
THE SIOUX WAR.
'DEAD!'
A MERCHANT'S STORY.
THE CONSEQUENCES OF THE
REBELLION.
MOTTOES FOR CONTRACTORS.
SUNSHINE IN THOUGHT.
HOW THEY JESTED IN THE
GOOD OLD TIME.
LITERARY NOTICES.
EDITOR'S TABLE.
CONTENTS.—NO. XV.

OUR NATIONAL FINANCES.

Our national finances are involved in extreme peril. Our public debt exceeds \$720,000,000, and is estimated by the Secretary of the Treasury, on the 1st of July next, at \$1,122,297,403, and on the 1st of July, 1864, at \$1,744,685,586. When we reflect that this is nearly one half the debt of England, and bearing almost double the rate of interest, it is clear that we are approaching a fatal catastrophe. Nor is this the most alarming symptom. Gold now commands a premium of thirty-two per cent., as compared with legal tender treasury notes, and, with largely augmented issues, must rise much higher, with a correspondent increase of our debt and expenditures. Indeed, should the war continue, and there be no other alternative than additional treasury notes, they will, before the close of the next fiscal year, fail to command forty cents on the dollar in gold, and our debt exceed several billions of dollars. This would result from an immense redundancy and depreciation of currency, and from the alarm created here and in Europe, as to the maintenance of the Union, and the ultimate solvency of the Government. Indeed, our enemies, at home and abroad, the rebels, and their allies in the North and in Europe, already announce impending national bankruptcy and repudiation, and there are many devoted patriots who fear such a catastrophe.

That the danger is imminent, is a truth which must not be disguised. Here lies the great peril of the Government. It is not the rebel armies that can ever overthrow the Union. It is the alarming increase of the public debt and expenditures, and the still more appalling depreciation of the national currency, that most imperil the great Republic.

And is the Union indeed to fall? Are we to be divided into separate States or many confederacies, each warring against the other, the sport of foreign oligarchs, the scorn of humanity, the betrayers of the liberty of our country and of mankind? Can we yet save the Republic? This is a fearful and momentous question, but it must be answered, and answered NOW. Inaction is syncope. Delay is death. The life of the Republic is ebbing fast, and the approaching Ides of March may toll the funeral words, *It is too late!*

What then must be done to avert the dread catastrophe? Action, immediate and energetic action, in the field and in Congress. Winter is the best season for a campaign in the South. On—on—on with the banner of the Republic, by land and sea, and with all the reinforcements, from the Ohio and Potomac to the Gulf. On, also, with the necessary measures in Congress to save our finances from ruin, arrest the depreciation of our national currency, and restore the public credit. We are upon the verge of ruin. We are hanging over the gulf of an irredeemable paper system, and its spectral shade, repudiation, is seen dimly in the dark abyss. The present Congress may save us; but what of the next? Would they, if they could? Who can answer? Can they, if they would? No! no! It will then be *too late*. Never did any representative assembly encounter so fearful a responsibility as the present Congress. Each member must vote as if the fate of the Union and of humanity depended upon his action. He must rise above the passing clouds of passion and prejudice, of State, local, or selfish interests, into the serene and holy atmosphere, illumined by the light of truth, and warmed by the love of his country and of mankind. His only inquiry must be, What will save the nation? The allegiance to the Union is paramount, its maintenance 'the supreme law,' the *lex legum*, of highest obligation, and he who, abandoning this principle, follows in preference any real or supposed State policy, is a secessionist in action, and a traitor to his country and mankind. Should the catastrophe happen, no such paltry motives will save him from disgrace and infamy; and, if he be snatched from oblivion, his only epitaph will be: Here lies a destroyer of the American Union. He did not destroy it by bullets, but by votes. He did not march against it with armed battalions; but, a sentinel, he slept on the post of duty, and—his country fell.

What, then, can Congress do? They can consider *at once* this great financial question, uninterrupted by any other measure, until there shall have been action complete and decisive. But two months more remain of the session. Not another day nor hour must be lost. All admit that something must be done, and done quickly.

What then is the remedy for our depreciated and depreciating national currency? The Secretary of the Treasury anticipated the disaster, and proposed a remedy in 1861. I gave his bank plan then my earnest and immediate support. Well would it have been for our country if it had then been adopted, and gold would not now command a premium of thirty-two

per cent. After a year's experience and deliberation, the Secretary reiterates his former recommendation, with words of solemn import, and arguments of great force. His is the chief responsibility. To him is mainly intrusted the custody of the public credit. His is now the duty of saving us from national bankruptcy. At such a time, I would differ from him on such a question, only on the clearest convictions, and then only upon the condition that I had a better plan as a substitute, and that mine could become a law now, and be carried now into practical execution. If all this could not be done, I would support the plan of the Secretary, as all admit that delay or inaction is death. If my words be too bold or earnest, let them be attributed to my profound conviction that the American Union is in extreme peril, and that its downfall involves the final catastrophe of our country and of our race. Let no man talk of a separation of the Union in any contingency. Let none speak now of peace or compromise with armed treason. Let none think of constructing separate nationalities out of the broken and bleeding fragments of a dismembered Union. No; far better that our wrecked and blasted earth should swing from its orbit, disintegrate into its original atoms, and its place remain forever vacant in the universe, than that we should survive, with such memories of departed glory, and such a burning sense of unutterable infamy and degradation. Fallen—fallen—fallen! from the highest pinnacle to the lowest depth, to rise no more forever! What American would wish to live, and encounter such a destiny? And why fallen? From a cause more damning than our fate. Fallen, let the truth be told, as history would record, because faction was stronger than patriotism, and the degenerate sons of noble sires extinguished the world's last hope, by basely surrendering the American Union to the foul coalition of slavery and treason. This rebellion is the most stupendous crime in the annals of our race, and its projectors and coadjutors, at home or abroad, individual or dynastic, are doomed to immortal infamy. With its demoniac passions, its satanic ambition, desecrating the remains of the slain, making goblets of their skulls, and trinkets of their bones, this revolt is a heliograph of Dahomey, and Devildom daguerreotyped more vividly than by Danté or Milton.

The plan of the Secretary is clear, simple, comprehensive, practical, and effective. It is the plan of an uniform circulation, furnished by the Federal Government to banking associations organized by Congress, securing prompt redemption by the deposit of the same amount of U.S. six per cent

stock in the Federal custody, the principal and interest of this stock being payable in gold. This plan, with me, is a necessity, and not a choice. It is the plan of the Secretary, and not mine, and is therefore supported by me from no vanity of authorship. Nay, more, it required me to overcome strong prejudices against any bank circulation, and especially any connected in any way with the Government. It is, however, a strong recommendation of the plan of the Secretary, that the proposed connection of the banks with the Government is not political, and attended with none of the formidable objections to the late Bank of the United States. Ever since the bank suspension of 1837, I have been a bullionist, and sustained that doctrine in the Senate of the United States, and as Secretary of the Treasury. The act establishing the independent treasury in 1846, was drawn by me, avowedly as a '*specie* receiving and *specie circulating*' institution, and to restrain excessive issues by the banks; but it is impossible now to carry that system into practical execution. The suspension of specie payment by the banks and the Government, has been forced by the enormous expenditures of the war, and the sub-treasury, which never was designed for the custody or disbursement of paper, has been so far virtually superseded. In acceding now, as in December, 1861, to the Secretary's plan of a bank circulation, I must be understood as having changed my views in no respect as to banks, but that I yield to the great emergency, which renders the support of the war and of the Union paramount to any question of coin or currency.

The national disbursements for the present and succeeding fiscal year, as stated by the Secretary, together with his remarks on that subject, supersede the necessity of any further argument in proof of the absolute impossibility of specie payments now by the Government. We are compelled to resort to paper, and the only question is as to the character and extent of the issue. It is my opinion that we should limit this paper currency, as far as practicable, that it may be as little depreciated now as possible; so that when the rebellion is crushed, the banks and the Government may resume specie payments at the earliest moment. I favor the plan of the Secretary mainly because, by arresting depreciation, it would furnish a currency approaching specie now more nearly than can be accomplished in any other way, and because, when the war is over, it provides the best means for a return, in the shortest possible period, to specie payments. An irredeemable paper currency dissolves contracts, violates good faith, and its history here and in

Europe is a record of financial ruin, bankruptcy, and repudiation, of frauds, crimes, and demoralization, which no friend of his country or race can desire to witness. The issue of treasury notes as a legal tender was favored by me as a *necessity* super-induced by the rebellion, and as a substitute for the present bank issues. Such notes would be depreciated much less when made a legal tender, and, to that extent, our expenditures would be diminished, and specie payments could, therefore, be resumed eventually at a much earlier period. Why, then, it is asked, not continue and extend that system, rather than adopt the plan recommended by the Secretary? Because, Congress refusing to prohibit a bank circulation, such increased issues of treasury notes would cause a further great depreciation of such notes, to that extent augment our expenditures, and postpone, perhaps indefinitely, the resumption of specie payments. Gold now commands a premium of thirty-two per cent., payable in treasury notes; but, if such issues be increased one half, they would fall to fifty per cent., and, if doubled, to at least sixty per cent. below specie. At the last rate, if our yearly expenditures, paid in paper, reached \$700,000,000, this would command but \$280,000,000 in gold, thus subjecting the Government to a loss of \$420,000,000 per annum, and at thirty-two per cent. discount, \$224,000,000 per annum. These notes, it is true, bear no interest, which at six per cent. on \$280,000,000, would save \$16,800,000 a year. But as under the Secretary's plan (hereafter developed) the Government would only pay an annual interest of four per cent. on this loan, the saving would only be \$11,200,000. Deduct this interest thus saved from the \$420,000,000 of increased annual expenditures, arising from such depreciation of treasury notes, and the result is a net loss of \$408,800,000 per annum to the Government, from the use of such redundant and depreciated currency. Surely, such a system would soon terminate in bankruptcy and repudiation, repeating the history of French assignats and Continental money.

Nor is it the Government only that suffers from such a disaster, but the ruin extends to the people. There is no law more clearly established than this: that the currency of a country bears a certain fixed proportion to its wealth and business. If we expand the currency beyond this proportion, we violate this law, and will surely suffer the terrible penalties of this disobedience. This law is so certain and invariable, that, if the expansion beyond this proportion should be even in specie, the result would still be disastrous.

This was illustrated during the reign of Ferdinand and Isabella, when Spain, having opened the virgin mines of America, brought the precious metals in countless millions within her limits, and restricted their exportation by the most stringent penalties. And what was the consequence? Mr. Prescott, of Boston, tells us in his great history, that 'the streams of wealth, which flowed in from the silver quarries of Zacatecas and Potosi were jealously locked up within the limits of the Peninsula.' 'The golden tide, which, permitted a free vent, would have fertilized the region through which it poured, now buried the land under a deluge, which blighted every green and living thing. *Agriculture, commerce, MANUFACTURES*, every branch of national industry and improvement, languished and fell to decay; and the nation, like the Phrygian monarch who turned all that he touched into gold, cursed by the very consummation of its wishes, was poor in the midst of its treasures.' Such was the effect of violating the law which regulates the ratio of money to wealth; such the consequence of a superabundant currency, even in specie. The result was that Spain, which had been the most prosperous nation of Europe, and whose products and manufactures had supplied the markets of the world, lost nearly all her exports, and was forced to resort to the prohibitory system. The cost of living, of working farms, of manufacturing goods, of making and sailing ships, became so high in Spain, from her superabundant currency, that she was unable to compete with any other nation, was reduced to poverty, and never began to recover until 'Spain changed her system, encouraged the exportation of the precious metals, and thus brought down her superabundant currency and inflated prices, and thus enabled Spanish industry to supply the markets of the Peninsula and of the world.' *Then*, the distinguished historian tells us, 'the precious metals, instead of flowing in so abundantly as to palsy the arm of industry, only served to stimulate it, the foreign intercourse of the country was every day more widely extended;' 'the flourishing condition of the nation was seen in the wealth and population of its cities,' etc. It is a redundant currency, even if gold or convertible into gold, that produces these evils, although depreciation adds to the disaster.

What is the effect here of a redundant currency, is ascertained by reference to our exports. By Treasury Tables 20 and 21, our foreign imports consumed here in 1836-'7 rose to \$168,233,675, being largely more than double what they were in 1832 (\$76,989,793), and nearly double the

consumption, *per capita*, which was \$5.61 in 1832, and \$10.93 in 1836. This was our great year of a redundant, although still a convertible currency, when our imports consumed exceeded our exports of domestic produce, \$61,662,733; and so enhanced was the cost of living and production here, that we actually imported breadstuffs that year of the value of \$5,271,576. (Table 1, Com. and Nav.) Our bank currency that year was as follows: Circulation, \$149,185,890; deposits, \$127,397,185; circulation and deposits, \$276,583,075; loans, \$525,115,702. (Treasury Report, 1838, Doc. 79, tables K. K.) The legitimate result of this expansion of loans and currency was the great bank suspension of May, 1837, and general bankruptcy throughout the country.

Now our bank circulation in 1860 was \$207,102,477; deposits, \$253,802,129; circulation and deposits, \$460,904,606; loans, \$691,495,580. (Table 34, Census of 1860.) Yet our population in 1860 was more than double that of 1837, and our wealth (the true barometer, marking the proper rise and fall of our currency) had much more than quadrupled. (Census Table 35.) The proportion of the currency to wealth in 1837 was more than double the ratio of 1860. It was not the tariff that produced the suspension of 1837, for it was *much lower* in 1860, than at the date of the bank suspension of 1837.

By Treasury Table 24, our total exports abroad of domestic produce, exclusive of specie, from the 30th of September, 1821, to 30th June, 1861, were \$5,060,929,667; and, in the year ending the 30th June, 1860, were \$316,242,423. At the same rate of increase from 1860 to 1870, as from 1850 to 1860, our domestic exports exclusive of specie in the decade ending the 30th June, 1870, would have exceeded five billions of dollars, had peace continued and the currency been no more redundant in proportion to our wealth than in 1860. But with a redundant and depreciated currency our exports must have been reduced at least one fourth. What would be the effect on every branch of our industry, may be learned by looking at Treasury Table 40, showing our domestic exports for the year ending 30th June, 1861. These exports were, of the products of our fisheries, \$4,451,515; of the forest, \$10,260,809; of agriculture, exclusive of cotton, rice, and tobacco, \$100,273,655, and of our manufactures, \$35,786,804. This was mainly from the loyal States. Now if the foreign markets for our products are reduced only one fourth by the effect of a redundant currency,

inflating here the cost of production and of living, the result would be most disastrous to our industry. The reduction would be equal, as we have seen, to \$125,000,000 per annum, and \$1,250,000,000 in the decade. Our imports would be reduced in the same proportion, and our revenue from customs in a corresponding ratio. Supposing the average rate of duties of the present tariff to be equal to 40 per cent. ad valorem, this would make a difference in our revenue from customs of \$500,000,000 in the decade, and, including interest not compounded, \$635,000,000. And here I deem it a duty to say to the financial portion of our peace party, especially in New York, that our redundant and depreciated currency, with our failure to crush the rebellion, and a consequent dissolution of the Union, would make repudiation inevitable. We are forced, then, by a due regard to our material interests, as well as by the higher obligations of honor and duty, to subdue the revolt and restore the supremacy of the Government in every State. This we can and must do. It is due to our country and to the world. It is due to the wounded and mutilated survivors of the bloody conflict, and to our martyred dead, murdered by the foulest treason, and in the accursed cause of slavery. No! all this blood and treasure must not have been poured out in vain. It is a question mainly of money and persistence. Our armies can and will conquer the rebellion, if we can and will supply the sinews of war. Our success is much more a financial than a military question. As regards the result, the Secretary of the Treasury holds now the most important post in this contest: he is the generalissimo; and as he is right on this question, and the fate of the Union is involved, I deem it my duty to give him my earnest and zealous support.

Ruinous as must be the effect of a redundant and depreciated currency upon all industrial pursuits, the injustice to our gallant army and navy, regulars and volunteers, would be attended with extreme peril. Upon their courage and endurance we must rely for success. We have pledged to our brave troops, who are wounded or dying by thousands that the Union may live, such pay as to enable them while fighting our battles to make allotments of portions of their money for the support of their families during their absence. We have promised pensions also. These are all solemn pledges on the part of our Government, and our faith is violated if this pay or these pensions are reduced. But there is no difference between a law directly reducing this pay and these pensions, and the adoption by Congress of the

policy of a redundant and depreciated currency which will produce the same result. Every vote then in Congress for such a policy, is a vote to reduce the pay and pensions for our troops, and to annihilate the allotments made by them for the support of their families. What effect such a policy must have on our troops and the maintenance of the Union is but too palpable. It is disbandment and dissolution. Every such vote is given also to reduce the value of the wages of labor, and for increased taxation, to the extent, as we have seen, of \$408,800,000 per annum. It is a vote also to reduce our exports and revenue from customs, to paralyze our industry; and finally, in its ultimate results, it is a vote against the war, for repudiation and disunion, and hence every disunionist will oppose the plan of the Secretary.

To what extent this redundancy and depreciation will go, by enlarged issues of legal tender treasury notes, we may learn from the fact that the banks substitute them for coin for the redemption of their paper. Now, just in proportion as the issue of treasury notes becomes redundant and depreciated, will the bank circulation, redeemable in such notes, augment and depreciate also. This is the law of bank circulation as now forced upon us by Congress. It is the law of redundancy and depreciation. If this policy is adopted by Congress, an enlarged issue made of treasury notes, and the plan of the Secretary discarded, our bank and treasury note circulation, with the war continued, will very largely exceed one billion of dollars before the close of the next fiscal year, and both will be depreciated much more than sixty per cent. Thus, if we should enlarge our issues of legal demand treasury notes to \$500,000,000, and these be made the basis of bank issues, in the ratio of three to one, our total paper circulation would be \$2,000,000,000, such treasury notes inflating the bank issues, and both depreciating together. And yet this is the currency in which it is proposed to conduct the war and the business of the country. The banks alone, by excessive loans and issues, would grow rich apparently, on the ruin of their country. But there would be a terrible retribution. The result would be general insolvency and repudiation, *the debts due the banks would become worthless*, and they be involved in the general ruin. It is then the interest of the banks to sustain the Government and the Secretary, and to transfer their capital to the new associations. This is especially the case with the New York banks, which, under a provision of their State constitution, HAVE NO LEGAL EXISTENCE. When repudiation and bankruptcy become general,

the cry, like that of a routed army in a panic flight, would be raised, *Sauve qui peut*; we may have again an old and a new court party, especially under our miserable system of an elective judiciary; and the banks be crushed by wicked legal devices, as they were in the West and Southwest in 1824 and 1838.

Referring to bank issues, the Secretary says, in his last report: 'It was only when the United States notes, having been made a legal tender, were diverted from their legitimate use as a currency, and made the basis of bank circulation, that the great increase of the latter began.' At the present depreciation of these treasury notes, it is better for the banks, by one third, to redeem their circulation in these notes, rather than in specie; and they need keep only one dollar of treasury notes for three of bank circulation. This is the policy forced upon the banks by Congress. But the more redundant and depreciated this currency becomes, the easier will it be for the banks to provide the basis of redemption, and expand their circulation in the ratio, like that of specie, of three dollars of bank currency for each dollar of treasury notes held by them. Thus it is that the enlarged issue of treasury notes necessarily increases the bank circulation, in the ratio of three to one, and thus also, that the circulation of bank and treasury notes becomes redundant and depreciated. Under such a policy, every bank then, however loyal its stockholders or officers, becomes a citadel, whose artillery bears with more fearful effect upon the Government than all the armies of the rebellion. This will soon become obvious, and the odium will rest upon the banks, their officers and stockholders. But the real responsibility will be with Congress, who, by such a system will have arrayed the banks in necessary and inevitable hostility to the Government. Such, we all know, is not the intention of Congress; but as this result will necessarily flow from their measures, upon them, in the end, will fall the terrible responsibility of the disaster. It is this appalling condition of our finances that gives the rebellion its only hope of success, and invites foreign intervention. But if Congress will adopt the policy of the Secretary, they will render certain the triumph of the Union, and the rebels, from despair and exhaustion, must soon abandon the contest.

We have seen how dreadful is the disaster which the banks would bring on the country by pursuing the present system, and how terrible the odium to which they would be subjected. But now let us look at the result, if the plan

of the Secretary is adopted. The new banks would become fiscal agents of the Government. Their circulation would be uniform, furnished by the Government, and based on U. S. stocks, the principal and interest of which would be payable in gold. The interest of labor and capital, of the banks, the Government, and the people, would for the first time become inseparably united and consolidated. This is a grand result, and fraught with momentous consequences to the country. Every citizen, whether a stockholder of the banks or not, would have a direct and incalculable interest in their success and prosperity. They, the people, would have this interest, not merely as holding the notes of the banks, which would become our currency, but because the banks would hold the stock of the Government, would have loaned it in this way the money to suppress the rebellion, and thus have saved us from a redundant and depreciated currency, from inevitable bankruptcy and repudiation, and have prevented the overthrow of the Union. Each bank would then become a citadel over which should float the flag of the Union, for each bank would then become a powerful auxiliary for the support of the Government and the overthrow of the rebellion.

The bill divorcing the banks and the Government was drawn by me, as Secretary of the Treasury, in 1846, to enlarge the circulation of specie, and restrain excessive issues of bank paper. I go for the reunion now, as proposed by the Secretary, to enable the Government to effect loans upon their stock, to prevent a redundant and depreciated paper currency, with a correspondent increase of expenditures, and to provide the means, when the war is over, to resume specie payment at the earliest practicable period. I was for restraining excessive paper issues then, and so am I now, as far as possible. I carried into full effect then the divorce of the Government and the banks, against a terrible opposition from them and the great Whig party. I made the divorce complete, *a vinculo matrimonii*: so now I would make the union complete, so far as proposed by the Secretary, for the interest of the banks and the Government would be united, and just as you strengthened the banks and increased their capital and profits, would you fund more and more treasury notes, and save us from the ruin of a redundant and depreciated currency.

The Secretary proposes to make these banks depositories of treasury notes, received by the Government for all dues except customs. This is well; for to use the sub-treasury to receive and circulate treasury notes, is against the

object for which it was created. Such deposits should be secured by U. S. stocks with the Government, and thus largely increase the demand for this stock. During nearly my first two years as Secretary of the Treasury, the public moneys were deposited by me in the State banks, secured by United States and State stocks, and there was no loss. Nor, indeed, was there any loss or default by any officer, agent, or employé of the Treasury Department during my entire term of four years, notwithstanding the large loans and war expenditures.

Disbursing officers should also deposit with the banks, and pay as formerly by checks on them, with the same guarantee by them of U. S. stocks. How far, and to what extent, and under what special provisions the gold received for customs might be deposited with these banks, may be the subject of discussion hereafter.

If this system were adopted in its entirety, the process of absorbing treasury notes would commence at once, and also a correspondent rise in their market value. The system of loans and funding saved England from bankruptcy during her long wars with France, and we must resort to similar expedients. But as loans, in the usual way, except at ruinous discounts, for any large amounts, are impracticable, we are left to the alternative of the Secretary's system, or bankruptcy, repudiation, and disunion.

I have another suggestion to make as regards these notes furnished by the Government to the banks, secured by U. S. stocks. These notes are guaranteed not only by the stock of the Government, but, in addition, by the whole capital and property, real and personal, of the banks, and a prior lien on the whole to the Government, to secure the payment of these notes. These notes are receivable by the Government for all dues except customs. These notes are a national currency, furnished by the nation and secured by its stock.

These notes then, as in England, should be a legal tender in payment of all debts, except by the banks. As the banks can redeem these issues in legal tender treasury notes, these issues of the new banks ought to be a legal tender also, except by the banks.

There is another reason why this currency should be made a legal tender. Our two last suspensions of specie payments by the banks, viz., in 1857 and

in 1860, were based upon *panics*, yet they had the same disastrous effect, for the time, as if arising from short crops, overtrading, or a currency greatly redundant. Such panic convulsions are caused mainly by the call for the redemption of bank notes in specie, based on the fear of suspension and depreciation. But if such notes, as in European government banks, were a legal tender, except by the banks, such panics would be far less frequent here, and less injurious. The present system, as compared with that of Europe, discriminates most unjustly against our country. As a general rule, the American creditor cannot demand gold from the foreign debtor, but such foreign or domestic creditor could always demand gold from the American debtor. This discrimination has produced here the most disastrous consequences, and, independent of the present condition of the country, our whole banking system requires radical reform. We have had eight *general* bank suspensions under our present bank system, many of them continuing for years, and producing ruin and desolation. Under our present system, to talk, as a general rule, of well-regulated banks, is to talk of a well-regulated famine or pestilence, or of a well-regulated earthquake or tornado. And even the few banks that are claimed to be well managed, have no appreciable effect on the system. It is the system that knows no uniformity or security, and never can have, as now organized. That a system so perilous and explosive, should have even partially succeeded is proof only of the intelligence and integrity, generally, of the bank officers and directors, but no recommendation of the system itself.

The want of uniformity as to commercial regulations, led to the adoption of our Federal Constitution; and yet we have no uniformity as to money, which represents commerce and effects its interchanges. In this respect, we are still suffering all the evils of the old confederacy, and have thereby so weakened the Government as to have invited this rebellion. Indeed, the State banks in the revolted States were the main auxiliaries of treason and secession, and supplied, to a vast extent, the sinews of war. By Census Table 34, there were in 1860, 1,642 banks, incorporated by thirty-four States, with no uniformity of organization, issues, or security. Thus is it that the States have usurped the power to regulate commerce and currency, and to emit bills of credit, in defiance of the prohibition of the Federal Constitution. The Egyptians abandoned their folly after seven plagues; but

we have had eight bank convulsions, and yet we adhere to the wretched system.

I believe it was slavery caused the rebellion, but, in the absence of powerful aid from the Southern banks, the revolted States could never have maintained so prolonged a contest. Organized as now proposed, these new banks, and all who held their notes, must have sustained the Government. Nations expend millions yearly in erecting forts and maintaining, even in peace, large armies and navies to preserve the Government. But necessary as these may be, they would not be more important than the system now proposed as a security for the preservation of the Government.

My last suggestion is, that as regards all such United States loans, as during the war shall become the basis of this system, the time of payment shall be made twenty years instead of five, so as, with the modifications above proposed, to insure the coöperation of the banks, and the success of the system. As this plan is deemed essential to save our finances, to suppress the rebellion, and maintain the Union, why incur any hazard on such a question as this? In all our wars, including the present, we have issued bonds running twenty years to maturity, and the bonds, redeemable in 1881, are scarcely at par. Why, then, issue a stock of less value, which may fail to accomplish the great object, when a better security would certainly succeed? I fully agree in the opinion expressed by the Secretary, against 'a fixed interest of six per cent. on a great debt, for twenty years,' if it can be avoided; but I also concur in that portion of his report in which he says: 'No very early day will probably witness the reduction of the public debt to the amount required as a basis for secured circulation.' To that extent, then, would I enlarge the time for the maturity of the bonds. Surely, if this be necessary to secure the coöperation of the banks, and the capital of the country, there should be no hesitation. Even if the system, based only on the bonds of short date, should ultimately succeed, the loss, in the interim, from a redundant and depreciated currency, would far exceed any benefit derived from the substitution of five-twenties for twenty year bonds. By Census Table 35, our wealth in 1850, was \$7,135,780,228, and in 1860, \$16,159,616,068, the ratio of increase during the decade being 126.45 per cent.; at which rate, our wealth in 1870 would be \$36,583,450,585, and in 1880, \$82,843,222,849. Surely, then, at these periods, it would be much easier to liquidate this debt than in 1867. But, were it otherwise, the

immediate gain from decreased expenditures, arising from funding more rapidly our treasury notes, thus rendering our currency less redundant and depreciated, with the revival of the public credit, and its immediate happy influence, North and South, here and in Europe, would far more than compensate for any contingent advantage arising from short loans. Our twenty years' loan is now barely at par, and the five-twenties below par. The difficulty of inducing bank and other capital to invest hundreds of millions of dollars under the new system is very great. Is it wise to commence the effort, confined to our weakest securities, now below par? Besides, considering the old and new debts, and constantly increasing responsibilities, is there any prospect that we will have liquidated all these before the end of five years, and the five-twenty loan also? Surely, upon a benefit so doubtful, and a contingency so improbable, we ought not to risk the fate of a measure on which depends the safety of the Union. But if we could pay off the five-twenty loan held by the new banks, is it prudent to assume that so many hundred millions of capital will be withdrawn from the present banks and other business for investment in the new banks, which may cease at the end of five years by payment of the bonds? The change from the old to the new banks may involve some loss at first, but, if the system may be arrested at the end of five years, just when profits might be realizing, the plan could scarcely succeed. When the Secretary first proposed this system in December, 1861, he probably would have succeeded with the five-twenties, in the condition at that date of the public credit. But the disastrous fall of our securities since that date, seems now to require bonds of a higher value.

I would then provide a twenty years loan, for all that may be made the basis of the new bank circulation. But it is not a six, but only a four per cent. twenty years' loan that is proposed, by deducting one per cent. semi-annually from the interest of the bonds made the basis of this bank circulation. This deduction would only be a fair equivalent for the expenses incurred by the Government in furnishing the circulation, for the release of taxes, for the deposit of public moneys with these banks, for making their notes a legal tender, and receiving them for all dues except customs. The tax on all other bank circulation should be one and a half per cent. semi-annually, secured by adequate penalties.

If, under this system, during this stupendous rebellion, involving the existence of the Government, with armies and expenditures unexampled in history, the Secretary (as, with the aid of Congress and the banks, I believe he can) should secure us a sound and uniform currency, and negotiate vast loans, running twenty years, at par, the Government paying only four per cent. interest per annum, he will have accomplished a financial miracle, and deserved a fame nearest to that of the first and greatest of his predecessors, the peerless Hamilton.

The bill organizing the new system, presented in Congress by Mr. Hooper last summer, is drawn with great ability, and it is much to be deplored, that (with some amendments) it had not then become a law, when it could have been much more easily put in operation, and would have saved hundreds of millions of dollars to the Government.

But the fifty-fifth section of that bill provides that all the banks organized under it are to become 'depositories of the public moneys,' excepting those in 'the city of Washington.' Why this discrimination? If there be any place where banks, organized under a national charter, issuing a national currency, and receiving national deposits, should be encouraged, it is here. With no discrimination against them, such banks would be established here with considerable capital. And why not? It cannot be intended to discourage the establishment of such banks here, and thus defeat, to that extent, the success of the system. It is here, if anywhere, that such banks should receive the public deposits, where they could be constantly secured from day to day under the immediate supervision of the Government. Besides, the only effect of such a discrimination would be to drive such banks to Georgetown, Alexandria, or some other speculative site outside the city or District. This city has just been consecrated to freedom by Congress, and it is hoped that, in commencing its new career, no discrimination will be made against it. Indeed, I think it would be wise, in order to insure the success here of the new system, to allow the district banks organized under this law to receive the same rate of interest as is permitted in New York.

I have contended, during the last fourth of a century, that all State bank currency is unconstitutional. This rebellion will demonstrate the truth of that proposition, and the question ultimately be so decided by the Supreme Court of the United States. This, it is true, might require some of those

Judges, if then living, to change their opinion on some points; but this has been done before, and even on constitutional questions; and State banks will fall before judicial action, as well as nullification, State allegiance, secession, and the whole brood of kindred heresies.

A republic which cannot regulate its currency, or which leaves that power with thirty-four separate States, each legislating at its pleasure and without uniformity, abandons an essential national authority, and this abdication has furnished one of the main supports of the rebellion. With nothing but a national currency, the revolted States never could have successfully inaugurated this war, and we must deprive them in all time to come of this terrible ally of treason. To permit the States to provide the circulating medium, the money of the country, is to enable them to furnish the sinews of war, and clothe them with a power to overthrow the Government.

With only such a national currency as is now proposed, issued by the Government to these banks, organized by Congress, and based on the deposit in the Federal treasury of United States stock, the rebellion would have been impossible. Our Government was so mild and benignant, that we deemed it exempt from the assault of traitors; but this revolt has dissipated this delusion, and warned us to provide all the safeguards indicated by experience as necessary to maintain the Union. Among the most important is the resumption by the Government of the great sovereign function of regulating the currency and giving to it uniformity and nationality. Such was clearly the intention of the Constitution. The Government has, by the Constitution, the *exclusive* power 'to regulate commerce with foreign nations, and among the several States.' But commerce is *regulated* mainly by money, and by it all interstate and international exchanges of products are made. If the currency is redundant, prices rise, exports are diminished; and the reverse follows with a contracted circulation. But banks inflate or restrict the currency at their pleasure, and thus control prices, commerce, exports, imports, and revenue. But they also destroy or depreciate the money of the Government, and deprive it of a vital power. Thus, the nation issues treasury notes, and makes them a legal tender: the banks immediately make such notes the basis of bank issues, in the ratio of three to one, and the whole currency necessarily becomes redundant and depreciated; and thus this essential power of the Government is controlled by the States, and, for all practical purposes, annihilated.

Chief Justice Marshall, in delivering the unanimous opinion of the Supreme Court of the United States (4 Wheaton 193), said: 'Wherever the terms in which a power is granted to Congress, or the nature of the power require that it should be exercised exclusively by Congress, the subject is as completely taken from the State Legislatures as if they had been forbidden to act on it.' Now, it has been decided by the Supreme Court of the United States (9 Wheaton 1) that, this power to *regulate commerce* extends to the *land*, as well as to the *water*, that it includes *intercourse and navigation*, and vessels, as vehicles of commerce, that it includes an *embargo* which is prohibitory, that this power is 'EXCLUSIVELY vested in Congress,' and '*no part of it can be exercised by a State.*' Now, the question, whether the notes of a State bank, issued on the authority of a State, and designed to circulate as money, conflicts with *this clause* of the Constitution, has *never been decided by the Supreme Court of the United States*. This is a new and momentous question, never yet adjudicated by the Supreme Court; but how they would now decide that point, with the light thrown upon it by this rebellion, I cannot doubt.

The Government also has the sole power to lay and collect *duties*, which 'shall be uniform throughout the United States,' and the States are prohibited from exercising this authority. But this power also is in fact controlled by the banks, and the revenue from imports increased or diminished, according to their action. Indeed, they can modify or repeal tariffs at their pleasure, for, they have only to inflate the circulation, and prices rise here to the extent of the duties, and the tariff becomes inoperative. Of all the branches of our industry, the manufacturing is injured most by a redundant currency, limiting our fabrics to a partial supply at home, and driving them from the foreign market. Give us a sound, stable, uniform currency, sufficient but not redundant, and our skilled, educated, and intelligent labor will, in time, defy all competition. But the banks, as now conducted, are the great enemies of American industry.

The Government has also the *sole* power 'to coin money, regulate the value thereof,' etc. But the banks now regulate its value by controlling prices, by substituting their money for coin, and by expelling it from the country at their pleasure. Recollect, these powers over commerce and money are *exclusive*, not concurrent, so adjudicated, and the Constitution, in delegating them exclusively to the Government, withheld them altogether from the

States. The conceded fact that these powers are *exclusive*, proves that the States cannot, by any instrumentality, directly or indirectly, control their exercise. An exclusive authority necessarily forbids any control or interference. But there are express prohibitions in the Constitution as well as grants. That instrument declares that 'no *State* shall emit *bills of credit*.' The State itself cannot emit circulating paper: how then can it authorize this to be done by a State corporation, which is the mere creature of a State law? The State cannot authorize its *Governor* to issue such paper: how then can it direct a *cashier*, deriving all his power only from a State law, to do the same thing? *Qui facit per alium, facit per se*, and this fundamental maxim of law and reason is violated when a State does through any instrumentality, created by it, what the State cannot do itself.

It is true that a majority of the Supreme Court of the United States, in 11 Peters 257, did decide that the Bank of the Commonwealth of Kentucky did not violate that clause of the Constitution forbidding States to 'emit bills of credit,' but Justice Story, in his dissenting opinion, said: 'When this cause was formerly argued before this court, a majority of the judges who then heard it were decidedly of opinion that the act of Kentucky establishing this bank was unconstitutional and void, as amounting to an authority to emit bills of credit, for and on behalf of the State, within the prohibition of the Constitution of the United States. In principle, it was thought to be decided by the case of *Craig v. the State of Missouri* (4 Peters 410). Among that majority was the late Chief Justice Marshall.' This decision, then, in the case of the Bank of Kentucky, is overthrown, *as an authority*, by the fact that it was against the decision of the Supreme Court in a former case, and against the opinion of a majority of the court in that very case before the death of Chief Justice Marshall. In delivering the opinion of the court in the Missouri case (4 Peters 410), Chief Justice Marshall defined what is that *bill of credit* which a *State cannot emit*. He says: 'If the prohibition means anything, if the words are not empty sounds, it must comprehend the emission of *any paper medium* by a State Government, for the purpose of *common circulation*.' And he also says: 'Bills of credit signify a *paper medium*, intended to *circulate* between individuals, and between Government and individuals, for the ordinary purposes of society.' That the notes of the Bank of Kentucky came within this definition and decision, is clearly stated by Justice Story. In that case also it was expressly decided,

that if the issues be unconstitutional, *the notes given for the loan of them ARE VOID*. It is said, however, that the bills are issued by a bank, not by the State; but the bank is created by the State, and authorized by the State to issue these notes, to circulate as money. In the language of Chief Justice Marshall, in this case, 'And can this make any real difference? Is the proposition to be maintained that the Constitution meant to prohibit names and not things?' On this subject, Justice Story says: 'That a State may rightfully evade the prohibitions of the Constitution by acting through the *instrumentality of agents* in the evasion, instead of acting in its *own direct name*, is a doctrine to which I can never subscribe,' etc. I am conscious that Justice Story also said in the same case, *arguendo*: 'the States may create banks as well as other corporations, upon *private capital*; and, SO FAR AS THIS PROHIBITION IS CONCERNED, may rightfully authorize them to issue bank bills or notes as currency, subject always to the *control of Congress*, whose powers extend to the *entire regulation of the currency of the country*.' It will be observed, that Justice Story gives no opinion as to whether the issues of such banks are constitutional, whether they conflict or not with the power of Congress to regulate coin and commerce. He only says (and the limitation is most significant), they do not violate the prohibition as to bills of credit (from which I dissent); but he does declare that to Congress belongs '*the entire regulation of the currency*.' Now this power must rest on the authority of Congress to regulate coin and commerce. But these powers, we have seen, were not concurrent, but *exclusive*; and, in the language of Chief Justice Marshall, in delivering the unanimous opinion of the Supreme Court in the case before quoted from 4 Wheaton 193, as to any such power that 'should be exercised *exclusively* by Congress, the subject is as *completely* taken from the State Legislature as if they had been *forbidden to act on it*.' All then who agree that Congress has 'the entire regulation of the currency,' must admit that all banks of issue incorporated by States are unconstitutional, not because such issues are bills of credit, but because they violate the exclusive authority of Congress to regulate commerce, coin, and its value. I repeat, that while this question has never been adjudicated by the Supreme Court, yet, if their decision in fourth and ninth Wheaton is maintained, such bank issues are clearly unconstitutional. It is clear, also, whatever may be the case of bank issues, based only 'upon private capital,' or, in the language of Judge Story, 'if the corporate stock, and that only by the charter, is made liable for the debts of the bank,' yet, if the bank issues

are based on the 'funds' or 'credit' of the State, such issues do violate the prohibition against bills of credit. Such bank issues, then, as are furnished and countersigned by State officers, acting under State laws, and are secured by the deposit with the State of its own stock, are most clearly unconstitutional.

In No. 44 (by Hamilton) of the *Federalist*, the great contemporaneous exposition of the Constitution (prepared by Hamilton, Madison, and Chief Justice Jay of the Supreme Court of the United States), it is said: 'The same reasons which show the necessity of denying to the States the power of regulating coin, prove with equal force that they ought not to be at liberty to substitute a paper medium instead of coin.' Such was the opinion of the two great founders of the Constitution (Hamilton and Madison), and its first judicial expositor, the eminent Chief Justice Jay. Justice Story quotes and approves this remarkable passage, and says 'that the prohibition was aimed at a *paper medium* which was intended to *circulate as money*, and to that alone.'

In his message of December 3, 1816, President Madison, referring expressly to a *bank* and *paper* medium, said: 'It is essential that the nation should possess a currency of equal value, credit, and use, wherever it may circulate. The Constitution has entrusted Congress *exclusively* with the power of *creating* and *regulating* a currency of that description.'

This rebellion proves the awful danger of State violations of the Federal Constitution. The rebellion is the child of State usurpation, State supremacy, State allegiance, and State secession. And now the Government is paralyzed financially, in its efforts to suppress the rebellion, by a question as to State banks, depreciating the currency, and State banks based on State stocks. The Government wishes a currency, not redundant, and to borrow money to save the Union. But one State says, we have placed all our surplus money in State banks, and another State (as in the case of New York) says, we have based the circulation of these banks, mainly on our own State bonds, and you must do nothing which will injuriously affect their value. It is true the Union is in danger, but are not the credit of State banks and State bonds of higher value than the Union? The State first, the Union afterwards. Our paramount duty is to our State, and that to the Union is subordinate. Why, this is the very language of rebellion—the echo of South Carolina treason.

But it is not the language of the Constitution, which declares that "This Constitution, and the laws of the United States which shall be made in pursuance thereof, and all treaties made, or which shall be made, under the authority of the United States, shall be the supreme law of the land: and the judges in every State shall be bound thereby, anything in the Constitution or laws of any State to the contrary notwithstanding."

The *supremacy* then, is with the Federal Constitution and laws; otherwise there could be no uniformity or nationality. And does New York suppose that she can tear down the temple of the Union, and that the principal pillar which supported the arch will stand firm and erect? No! if the Union falls, New York will only be the most conspicuous among the broken columns.

But New York knows that the path of interest is that of honor and of duty. It is the Union only that has made her great. It is the concentration by the Union of interstate and international commerce in her great city, that was consummating its imperial destiny. Before the Union of 1778 and 1787, New York city was the village of Manhattan: destroy the Union, and she will again become little more than the village of Manhattan. The trident of the ocean, the sceptre of the world's commerce would fall from her grasp, and London be left without a rival. Deprive the Government of the power to regulate commerce, and the fall of New York will be as rapid as her rise. Each State then, as before the Constitution, would control its own commerce, and the railroads and canals of New York would cease to be the vehicles of the trade of the nation and of the world. Each State, as under the old Confederacy, would force commerce into her own ports by prohibitory or discriminating statutes. No, when New York takes from the Union the exclusive control of commerce, she commits suicide. One uniform regulation of commerce, and one uniform currency, are more essential to the prosperity of New York than to that of any other State. New York represents interstate and international commerce. There are concentrated our imports and exports, and there three fourths of our revenue is collected. There, if the Union endures, must be the centre of the commerce of the nation and of the world. If the rebellion succeeds, the separation of the East and West is just as certain as that of the North and South. Discord would reign supreme, and States and parts of States become petty sovereignties, mere pawns, to be moved on the political chess board by the kings and queens of Europe.

As New York has derived the greatest benefits from the Union, so would she suffer most from its fall. It is New York to whom the Union transferred the command of her own commerce, and ultimately that of the world. It is New York to which England looks as the future successful rival of London, and it is New York at whom England chiefly aims the blow in desiring to overthrow the Union. The interest of New York in the price of bank or State stock is insignificant compared with her still greater stake in the success of the Union. Indeed, if the Union should fall, State and bank stock and all property will be of little value, and bank debts will generally become worthless.

But if the war continues, we have seen that a redundant and depreciated currency would increase our expenditures \$408,800,000 per annum. This would require a like addition to our annual tax, of which the share of New York would be over \$50,000,000, and the share of every other State in like proportion to its population.

By Treasury Table 35, the stocks, State and Federal, held by the New York banks in 1860, was \$29,605,318, the circulation \$28,239,950, and the capital \$111,821,957. Thus it appears that the increased tax to be paid *annually* by New York, as the consequence of a redundant and depreciated currency, would be nearly double her whole bank circulation, and that thirteen months of this increased tax to be paid by the nation, would largely exceed the whole capital of all the banks of the United States in 1860. (Census Table 35.) These are the frightful results of an irredeemable, redundant, and depreciated currency.

Such a course, on the part of a Government, which must make large purchases, resembles that of an individual who wishes to buy largely on his own credit and paper, but depreciates it so much as to compel him to pay quadruple prices, the result being bankruptcy and repudiation.

There is great hope in the fact that New York takes no contracted view of this great question. She knows that her imperial destiny is identified with the fate of the Union. Realizing this great truth, she has more troops in the field than any other State, she has expended more money and more blood than any other State to suppress this rebellion, and she will never array State stocks or State banks in hostility to the safety of the Union.

And what of Pennsylvania, that glorious old Commonwealth, so many of whose noble sons, cut off mostly in the morning of life, now fill graves prepared by treason? Is she to become a border State, and her southern boundary the line of blood, marked by frowning forts, by bristling bayonets, by the tramp of contending armies, engaged in the carnival of slaughter, and revelry of death? Is New England to be re-colonized, and the British flag again to float over the chosen domain of freedom? What of the small States, deprived of the secured equality and protective guarantees of the Constitution, to be surely crushed by more powerful communities? What of the West? Is it to be cut off from the seaboard, and rendered tributary to the maritime power? What of the States of the Pacific? Are they to lose the great imperial railways destined, under the Union, to connect them with the valley of the Mississippi and the Atlantic? But alas! why look at any of the bleeding and mutilated fragments, when all will be involved in a common ruin?

May a gracious Providence give us all, the wisdom to discern what is best for our beloved country, in this her day of fearful trial, and the courage and patriotism to adopt whatever course is best calculated to save us from impending ruin!

A TRIP TO ANTIETAM.

The great battle of the Antietam had been fought, and a veteran army was gathered around Harper's Ferry recruiting for fresh campaigns. Here was a chance to see a battle field and warriors to be celebrated for all time. From childhood up we have been taught history; and all history, except some few dry constitutional treatises, has been accounts of great commanders, of the marches and retreats of bronzed soldiers, of empires won by the sword, of dynasties established by conquests. Our hymn book, our clergymen, and our Bible have exhorted us to be soldiers of the cross, to buckle on our armor, and to fight the good fight, even when turning the other cheek when smitten on the one. Now this opportunity to see actual history, a battle field, and veteran troops, and great leaders whose names are to be household words, could not be resisted; so, taking a couple of blankets apiece, and a few clothes, and money wherewith to pay our way, we started by rail for Baltimore, and thence for the army.

Around Baltimore were several regiments. Those that we visited were of the recent levies, and were improving fast in discipline and drill. They were placed in strong positions to prevent a rebel attack from the west, and to command the city. The stars and stripes floated over houses in all parts of the town. We met a little company of boys seven miles out playing soldier, with the star-spangled banner, a cheering sign of the loyalty of the place.

At Baltimore my friend and I took seats in the car for Harper's Ferry. The train was crowded with a most miscellaneous set of passengers, officers of all grades, from general with stars to second lieutenant with plain bands, common soldiers, sutlers, Jews, and country people. Some of the Jews, after a time, became the most noisy part of the crowd, and belied their proverbial reputation for shrewdness by imbibing from bottles, which they circulated very freely, becoming very talkative, and most decidedly drunk. The most interesting companion we met was a member of the Maryland House of Representatives, a very sensible man, and of course a strong Unionist. He did not approve of the President's emancipation proclamation; thought it would alienate Union men in the Border States, and made other objections

to it. He informed us that his negroes were of no profit to him; that the proclamation had made them believe they would all be free; that they did pretty much what they chose; and that Maryland would have to accede to the President's advice to the Union Border States to emancipate their slaves and receive compensation for so doing.

The railroad, after leaving the Relay House, runs along the Patapsco river, amid most beautiful scenery. We passed numerous trains with Government stores—one of baggage cars fitted up with rough seats and crowded inside and on the top with a regiment of Uncle Sam's bluecoats, cheering and singing as new troops only do. There were no signs of the devastations of war until we approached the Monocacy river. During their campaign in Maryland, the rebels at one time made this river their line of defence: it was supposed that they would make here a stand against McClellan's advance from Washington. They had burnt the woodwork of the bridge, twisted the long iron rods of the structure to one side, destroyed all the railroad building, engines, and cars they could lay hands on, and had done everything to retard our force. A new bridge had now been recently built, over which we were obliged to pass slowly. Immediately after leaving the river, the road branched, one track leading to Frederick, then an immense hospital containing seven thousand wounded soldiers, the other keeping on and striking the Potomac at the Point of Rocks. We saw soldiers and sentries at several places, but were surprised that we did not see more. The road keeps close to the river for some miles to Harper's Ferry. On the other side the ground was frequently occupied by the enemy's pickets; the difficulty of approaching the river being the only impediment to the shelling of trains on our side. The Potomac was unusually low; there had been a long season of dry, beautiful weather, rendering it fordable in many places.

At the Point of Rocks we enter upon the mountains of the Blue Ridge, and the railroad winds in the deep valley worn by the river, amid the most picturesque and beautiful scenery. The canal is between the railroad and river: its locks had been destroyed and the water drained out by the rebel hordes; for it is a great artery of life to Washington, and invaluable to an army encamped along its borders, furnishing economically the transportation of the great supplies necessary for the soldiers' subsistence. At this time it seemed of no use except as a depository for the carcasses of dead horses.

With the exception of this dismal empty canal, there were very few signs of the ravages of the armies which had lately swept through these charming valleys. A few miles from Harper's Ferry, by the side of the railroad, were great hayricks, and the barns were full to overflowing. As we approached Sandy Hook, a village of a few houses on the north side of the Potomac, about a mile from Harper's Ferry, we saw on the road, which ran close to the railroad track, thousands of the blue-bodied, white-topped army wagons. In the most crowded thoroughfare of London one would not see so many teams. From this neighborhood the great army of the Potomac drew the most of its supplies. The ninth army corps was moving this day to its camp, two or three miles northward; and part of its cannon, their brazen throats still tarnished by sulphurous smoke, added to the throng. It is surprising how large a portion of the army is composed of these baggage trains, and of the camp followers, teamsters, servants, and sutlers. A regiment of infantry, under the little shelter tents is crowded, into a small space; but the bulky baggage trains cover much ground. We spent the best part of a day, in going to and returning from the army, in the neighborhood of a small wayside tavern in this little village of Sandy Hook, with no other amusement than watching the moving of the teamsters, chatting with stray officers and soldiers, and seeing what may be called the back-stair life of the army. And we wish here to protest against the abuse which has been so abundantly heaped upon the teamsters: we found them, as a class, a respectable body of men, quite skilful in the management of their animals, comparing well with those in the same occupation in our great cities: there was certainly not so much swearing, and not so much abuse of their mules and horses, as one sees in New York. I remember their kind attention to me, some days afterward, when, in my impatience to get by a long train of teams filling up a little country road, I had imprudently urged my horse on to a ledge of rocks, where he, not being an old warhorse, hesitated, slipped, and fell flat on his side, among the mules of one of the wagons; and, as the horse, with my leg under him, was rolling to recover himself, the anxiety of the teamsters as to whether I was hurt, and then as to my horse, a fine animal, who had cut himself a little on the rocks. Their proffered assistance was very different from the oaths I should have met under similar circumstances in some Northern cities.

The army wagons are large, with great white cotton coverings, and generally drawn by six mules: the driver, usually a colored man, rides the first high mule, and has *one* rein, called the 'jerky rein,' running over the head of the mule before him, through a ring fastened to his headstall, and dividing on the back of the leader, and fastening to his bit. The mule is directed to one side or another by the driver twitching the rein and shouting. There were some few wagons driven from the box, but in all these cases that we noticed, the animals were horses, four in number, and their drivers were white. The mules and horses were generally in good condition, and quite a contrast to those in the cavalry service, which, even in a crack regiment, like the sixth regular, presented a most sorry appearance of overwork and terribly hard usage. The baggage trains and camp followers are a necessary portion of every army, and its efficiency depends in a great measure upon the perfect organization of this essential part. In the French army this organization is carried to a high degree of perfection. A small army of ten or twenty thousand men can get along with a fewer proportional number of followers, as it lives more upon the country, than a great army of one hundred thousand.

Every regiment has its own baggage wagons to carry its tents, cooking apparatus, officers' mess chests, and personal baggage. At the beginning of the war, each of the Massachusetts regiments was fitted out with from fifteen to twenty-four wagons. A recent United States regulation has limited the number to six for one regiment. The personal baggage of the regiments, however, forms a small part of the great transportation of an army. The spare ammunition is no small matter; every cannon having a supply of round shot, shell, canister, and grape: all these may be needed by each piece in a battle, as the shot used depends upon the distance of the foe. A full regiment of infantry may fire in one battle sixty thousand rounds of ammunition, weighing nearly three tons. The pontoon trains, the baggage of the staff, the forage for the horses of the artillery and of the generals, field officers, and their staffs, the food of the army, and the food and forage for this further army of camp followers—all have to be transported. The cavalry are expected to forage for their horses from off the country; all the rest have to be provided for. To carry the subsistence of a regiment of nine hundred men for one day, requires one of the six-mule teams: for a march of twenty days there must be twenty wagons. One will see from this that, next

to the general, the quartermaster has the great post of responsibility. He has to see that all the supplies are obtained and forwarded to the right place. He commands all these countless wagons with their teamsters. It is also his duty, when on the march, to pick out the camp, unless the general may take it from out of his hands. The army, as a general thing, will not fight well unless it is well fed and well cared for. To assist him, the quartermaster has his necessary clerks, for he carries on a large business, with Uncle Sam as his principal, and he must account to him for every pound of coffee, bacon, flour, and hay, barrel of vinegar, keg of nails, tent or tent pin that he receives, and finally return them, or tell him satisfactorily where they have gone, and produce his vouchers; or he and his bondsmen must pay their value. All this is done by system and rule: there are mounted wagonmasters to look out for every small string of wagons, and some sort of discipline prevails among these non-enlisted men. A great army must be a moving city, capable of subsisting itself in the uncultivated and desert regions through which it often passes. Every cavalry soldier carries his spare horseshoes and nails; and every cavalry regiment and every battery of artillery has its own forge, tools, and materials for shoeing its horses and making repairs: even the quartermaster's train must have its blacksmiths and their supplies.

In travelling down the Rhone during the Crimean war, I was vainly trying to make out the meaning of the letters on the military button of an officer sitting before me; when one of his companions, who happened to be at my side, a well-educated, intelligent man, good-naturedly informed me that they indicated that the wearer belonged to the bureau of the post. He and several others on the boat had been educated for this branch of the service at a military school in Paris, and were en route for the sole purpose of taking charge of this department. We have not arrived at this perfection; for ours, after all, in many respects, is an army of volunteers; but still a messenger had to go every day to Washington for the letters of the army corps, and the telegraph and its wires travel with the camp. The officers' servants alone, in an army of a hundred and fifty thousand men, number more than the thirty-nine hundred soldiers the city of Boston has to raise for her proportion of the levy of nine-months men. The number of servants and horses of an officer depends upon his rank; he draws subsistence for the number allowed to him. A mere cavalry captain can draw for and usually

has two horses. His horses and trappings, his mess, must be cared for by others; and hence the thousands of servants that must go with the thousands of officers.

But let us pass from this, which is common to every army, and proceed on our journey. The easily pulverized, light, clayey soil around Sandy Hook was raised in huge clouds by the countless wagons and the hoofs of the horses of the squads of cavalry officers, couriers, and wagonmasters. The little tavern was once, the old woman who kept it assured us, surrounded by a pretty fence, and a garden with grass and flowers: now the fence was half gone, and to its pickets were tied the horses of officers, quartermasters, baggagemasters, and orderlies, and the flowers were trampled into light dust. The provisions in the house had been eaten by hungry travellers, who were supplied with very scanty fare, and were thankful to get that. The old woman, having dealt out to us the little she had left, for which she demanded most abundant compensation, amused us with her tales. Her house had been alternately the home of Unionists and rebels. It was not many days since divisions of rebels had gone by and encamped there, both before and after the surrender of Harper's Ferry. The shells fired in that fight had passed over her tavern. Her description of the hungry, tired troopers, arriving in the evening, and surrounding the house, the men falling down asleep under their horses' bellies, horses and men packed in together as thick as a swarm of bees, was quite graphic. Her accounts of her conversations with the great rebel leaders were interesting, but I feared were apocryphal, as she ended by assuring us that General Lee had to sleep supperless on her woodpile. If it were not for this last tale, kind reader, you would have been entertained with the conversations of the great chiefs of rebeldom, as related by a reliable witness. We did hear from her, and from officers who saw the rebel soldiers at Harper's Ferry, of the pitiable condition of some of the infantry, of their naked, bleeding feet, and their gaunt looks. Our landlady affirmed that we could not find a dog in the neighborhood; for they had gone before the rebel hordes in the way that such flesh disappears before the Chinese and Pacific Islanders. It is probably true that at times they were hard pressed for food, and many badly off for shoes; but we were told by officers who saw the dead at Antietam that, though not so well shod as our men, they were shod, and they had provisions in their haversacks. The rebels have flour dealt out to them as

rations on the march, and they have to cook it. Our troops have hard biscuit, called 'tack;' it is made in squares, and some which was fresh was very good; but it often comes to the regiments with maggots. This is not so much objected to; but when, in addition, it is mouldy, the men grumble. By the side of the fresh tack were some Sandy Hook veteran biscuit, that had been through the Peninsular campaign, and had come last from Harrison's Landing; the outside of the boxes was enough to condemn them, and the commissary was saying that he must get Uncle Sam's inspector-general to examine and pass upon them. When we saw this hard, mouldy old tack, we appreciated the joke of the Western boys, who declared they found the date of the baking on their biscuit in the letters 'B. C.,' 'Before Christ.' The luxury of soft bread is prized by the troops. Near Baltimore, where the 38th Massachusetts were stationed for some weeks, nice ovens were built, after the fashion of the French army, and fresh bread, meats, and the Yankee Sunday beans cooked. With the army in the field this cannot be done, but the ovens could have been built during the weeks our soldiers were resting on the banks of the Potomac. Our troops at this time were fed on the hard tack and fresh beef; and some of the men in a camp near Sharpsburg complained of the want of salt provisions. This seemed unreasonable, until we heard that they had no salt, the long distance it had to be teamed being the excuse given for the unpardonable want of it. This hard tack is doing one good thing: it is giving the men white teeth; you can tell an old soldier by his polished ivory; his teeth approach the appearance of the Italian and Swiss peasantry, who also chew hard bread. Reader, did you ever try to work your way through the hard loaf of the peasant's fare? The army regulations require tooth brushes for the men; it is supposed that the proper use keeps off ague and disease; still many regiments were without one to a company.

But to return to our old woman at the little tavern of Sandy Hook. She had tales, too, of our officers. That morning she had seen our handsomest and our most splendid-looking general—in appearance the ideal of the brigand of the romance—Burnside, riding by, with his black, tall, army felt hat, without plume or gilt eagle, brim turned down, his dark blue blouse covered with dust. 'Why,' said she, 'he looked, in his dusty blue shirt, with two old tin dippers strung by the handle at his belt, like any farmer; but I suppose he had some better clothes.' Her lament for the gallant fellows who had fallen

by disease, torn by the cannon shot, or struck by the deadly rifle ball; for the sufferings of the poor, sick, lame, and mutilated soldiers; and her solemn asseverations that there was something wrong in the hearts of the leaders on both sides, to permit this suffering and loss of so many good men, was truly touching. We could not reason it out with her; logic had to give place to her pathetic lamentation. I do not, however, intend to keep my readers so long a time at this little wayside inn as I was; and will pass on to Harper's Ferry, a mile beyond.

But before we part, we certainly should not fail to notice a modern addition to the camp follower that Napoleon did not have in his grand armies—the newsboy—the omnipresent, the irrepressible gamin of the press. New York, Philadelphia, Baltimore, Washington, all had contributed their quota, and what a glorious harvest they were reaping! Baltimore *Americans*, at five cents each; New York *Heralds*, *Tribunes*, and *Times*, at ten cents; and everything sold early. One little fellow was strutting around with a pair of spurs on, and styled himself 'colonel;' the others he introduced as his staff. The day's work was over, and larking had begun. I found the spurs were for use. The colonel had bought an old condemned brute, which his companions were trying to buy at the advanced price of ten dollars. The camps were at a distance, from two miles upward, and a mounted boy could bring his wares to market first. And so the whole afternoon every rider of a particularly bad horse was pestered by an offer of five or ten dollars, from a throng of dirty, noisy, scampish ragamuffins. Later in the evening, the guard went by with some three or four of the boys, for once without a grin on their faces, under arrest. We asked the colonel, who had the reputation of being an honest fellow, what was the matter with his suite. He only replied that it was hard times for newsboys, if that was the way things were going; and walked off, clanking his long spurs over the stones.

The railroad and road from Sandy Hook to Harper's Ferry run under the Maryland Heights, the rocks having been blasted away for a passage. The railroad bridge had been rebuilt, not permanently, but so that trains could again cross. Lower down the river were the remains of the pontoon bridge destroyed by the rebels. Higher up on the other side of the railroad was a new pontoon bridge, built on boats, painted with Uncle Sam's light blue color. Farther up, the wagons were fording the stream. As you crossed the pontoon bridge, you came directly to the little stone engine house, with its

belfry, where John Brown held the power of the great State of Virginia at bay. All else of the Government buildings are in ruins. The long lines of brick and stone walls blackened by fire, and the picturesque broken arches of the engine-house windows, were a fit greeting to one's entrance upon the ruined grandeur of the Old Dominion. Through the clouds of dust and the noise and confusion of the village upon the hill rising immediately above the river, we rode, noting the signs of the recent contest, or looking down on the blue Potomac, flowing peacefully below. One large brick house had a breach in the basement story large enough for us to ride in, caused by some bursting shell. Dead horses still lay in the road; the tailpiece of a broken cannon was yet there. As we emerged out of the dust at the top of the hill beyond, toward the afternoon sun, rose Bolivar Heights, and the innumerable white tents of General Sumner's large army corps. The soldiers were out for drill or dress parade. The distant sounds of the bands and bugles and drums, sometimes succeeding each other, then mingling together, fell softened but constantly on the ear, and everywhere was the gleam of the declining sun on glistening sword or bright musket barrel. Behind us to the east, and beyond the Shenandoah, which flowed at the foot of the village, arose the high Loudon Mountains; on the north, on the other side of the Potomac, were the Maryland Heights, with the road to Sharpsburgh and Williamsport winding along its wooded base. The tops of these mountains were lighted up and wreathed with the smoke of the fires kindled to destroy the thick woods that might afford shelter to approaching enemies. It was most charming mountain scenery. We enjoyed the view long, but had to turn our backs at last; and as we recrossed the pontoon bridge we wiped off from the soles of our feet a large portion of the sacred soil of Virginia. Yes, the sacred soil of Virginia, the mother of presidents, the home of Washington, Patrick Henry, Jefferson, and Madison, and of how many others famous in our history. O Virginia, what a contrast is there now! the blood of thy boasted chivalry struggling manfully stains the ground; thy soil is ground to powder under the heel of the hated mudsils of the North; thy fertile plains and beautiful valleys are trodden down by armed men; the fierce contest, and desolation and want have come to every household; and the cry arises for thy sons that are not!

The headquarters of Gen. McClellan were two or three miles north of Knoxville, a little village on the Potomac, about three miles below Harper's

Ferry. The day that we were there, the General was absent on his way to meet Mrs. McClellan, and though the telegraph wires ran to headquarters, nothing was there known of the foray Stuart had begun early that morning from Hancock, in the rear of our forces; not till evening, and until his arrival at Chambersburg did the news arrive. If the telegraph wires had been laid, or the signal corps so stationed as to have given warning of the inception of this movement, these bold rebels could not have advanced so far, but would have been compelled to retreat as they came. Between the General's headquarters and the river were the famous sixth cavalry of regulars and some batteries of artillery. He had no guard in the direction of Pennsylvania toward the northeast, where Stuart's cavalry passed on their way to the Potomac. The camp itself was not well placed, and was soon changed. In going from it we rode through a most beautiful country by the side of an officer of the sixth cavalry, and listened to his enthusiastic account of scouting in front of our lines, in the footsteps of the retreating enemy, over the very roads we were travelling safely and without concern; and yet we were not many miles from the foe, and within reach of the marvellous flight of the minié ball, which some lurking rifleman might aim from the other side of the Potomac. These cavalry soldiers and horses have had a terribly hard time of it. The horses of the sixth were more broken down and thinner than in the artillery or baggage trains. Two squadrons had lately been part of the force sent on a reconnoissance to Leesburg; and upon the return of our troops it had been the duty of our companion, then in command, to bring up the rear and drive in the infantry stragglers. Some two hundred had fallen out of the ranks from mere exhaustion. To leave any of these soldiers behind would be giving them up as prisoners, and affording the enemy the opportunity of obtaining information which it was of the utmost importance for the safety of the expedition to keep back. The troopers had therefore to drive them on with their swords—not a pleasant duty, when the poor fellows were faint and used up by fatigue—still it must be done. This service creates quite a dislike between the two arms. The infantry man hates the horseman, and the cavalry man despises the foot soldier. At this time straggling was quite prevalent: we saw on byroads many who had left the ranks, almost invariably having thrown away their arms, and subsisting on plunder. The cavalry were scouring the roads for them, and were bringing them in as prisoners for punishment. This sixth cavalry, like all the old regiments which had been through the Peninsular

campaign and the disastrous retreat under Pope, was frightfully reduced in numbers: only three hundred and seventy were around the standards out of the eleven hundred who first took the field. Many had fallen on picket or been cut off singly, more by disease, but alike doing their duty, unmentioned and unnoticed. A larger number were yet suffering from overwork and sickness; and the regiment would in time recruit to seven hundred, from men now disabled, if there should be no more casualties.

A few days in camp, in a good-sized tent—none of the two-feet-high shelter affairs—in pleasant summer weather, is, on the whole, something new and exhilarating. The ground, to be sure, is rather hard, particularly when you have no straw; and a soldier's table is not always the most luxurious in the world. Now that we are safe, dry, and warm, at home, we can venture to declare that we were very unfortunate in losing the sensation of going without food, of sleeping in the mud and in the rain—our arms girded on—any moment to be aroused by the whistle of the bullet or the roll of the drum calling us to the deadly strife.

To us, however, it was all *couleur de rose*. In the early morn, at break of day, it was not the crow of the cock, or the jarring rattle of the wheels of the city baker or milkman, but the reveille that waked us from our martial dreams. The drum of the infantry, the bugles of the cavalry and artillery would begin; some early riser would rouse up his regiment; then another would take it up; until the call had gone through every corps. The old staid rub-a-dub of the English drummer is giving place to the stirring French rat-a-plan. And there was one band that generally led off in a splendid style. They did beat their drums lively and sharply. Not being obliged to be up with the sun and cook our own breakfast, we generally contrived to get a little more sleep. After breakfast, the bands were playing for guard-mounting; and we sat gazing down into the valley from our tent upon the large army corps encamped below. We were on the western slope of the Blue Ridge, through whose gaps not many days before, a few miles farther north, Franklin had successfully fought his way. Still farther up, Burnside, with Reno and Hooker under him, had at South Mountain driven the enemy in—that battle which came to us so welcome, the first victory after Pope's disasters, and the retreat from the Peninsula. The valley below us was Pleasant Valley. The opposite side to our tent was a short spur of the Blue Ridge; the southern extremity of which is the Maryland Heights, so well

known in the history of the surrender of Harper's Ferry. The valley between is fertile and highly cultivated, full of mountain springs and brooks, emptying into one stream of sufficient size to turn the wheels of a large mill; the water is delicious; the prevailing limestone does not reach this valley. In the morning before the army moved there, the little river was clear as crystal; at night it was changed into an opaque white color, a stream of soapy water; a pleasing witness to the cleanliness of our men. There were no clothes lines, however, but many of the washers were so scantily off for clothing that they put their garments on to dry. The farmhouses in the valley are mostly of stone. It is a most charming and beautiful place, and appropriately called 'Pleasant Valley.' The farmers are prosperous; and the land so rich that it sells for the high price of seventy and eighty dollars an acre. The mountains rising on the sides of the valley are thickly wooded; and in the cultivated fields between were crowded the tents of the ninth army corps. With the exception of one or two new regiments who had wall tents, the soldiers were under little shelter tents, of which each man carries a piece. The infantry were encamped in divisions and brigades; the cavalry generally picketed along a fence; the horses and men, except the officers, without shelter. The encampments of the artillery and cavalry with their horses, forges, and wagons, covered much ground; but the infantry were thickly crowded together; and it was surprising to see how many men a small encampment would turn out.

In the afternoon came drills, sometimes of regiments, sometimes of brigades, and the unfailing dress parade. There were a few regiments of new levies just arrived, a thousand strong; all provided with overcoats, and looking finely in their new, clean clothes—quite a contrast to the old soldiers. In one of the old regiments on brigade drill we saw an officer, probably a sergeant, in a checked knit undervest, his neck and part of his arms bare—commanding a company. A sentry on guard before the quarters of the general in command, had great holes in both elbows of his dirty jacket, and his shoes were untied. The brigades were generally of five regiments, a new regiment being one, and composing fully two fifths of the line. It is not wholly, however, by the casualties of the battle or the greater losses from exposure, overwork, and disease, that the regiments are diminished. If a good blacksmith is found, he is detailed to the forge; others are detached as ambulance drivers, or as hospital attendants or clerks. This

thins the ranks of the old regiments. It is surprising, however, to see how much better the veterans will bear exposure than men coming fresh from home. The old regiments were frightfully diminished by disease on the Peninsula; but I saw very few that could not rally more men than the 35th Massachusetts, that had been out of the State only a little over a month. They had but three hundred men of the original thousand. They left Washington without their knapsacks; and had marched without even the shelter tents, officers and men alike bivouacking on the ground, wearing the same clothes without a change. The long marches, the exposures, the excitement of battle, and the unaccustomed food had disabled four hundred men; some of them undoubtedly never strong enough to have enlisted, and who should have been rejected by the examining surgeons. The old regiments, who had gradually been hardened to this life, and who had learned to thrive on the soldier's fare, lost comparatively few in this way.

The brigade drills and the manœuvres in line were not so well executed as we expected. There was no practice in firing at a mark; probably from a want of ammunition. From accounts of officers on the field of battle, it certainly is the case in our army that some of the fresh soldiers will fire in the air, and even close their eyes. The Hythe system, as now taught in the English army, and among the rifle clubs, makes excellent marksmen; and the greater part of the instruction is without the use of powder. It is a pity it cannot be more extensively introduced in our army.

One does not expect to find the same training before the enemy as in the great French camps of instruction. It was my good fortune to visit the camp of a portion of the great Crimean army. The privates, besides their military drill, were exercised in running, leaping, fencing, and boxing; and some sergeants were teaching dancing. I followed a regiment of the chasseurs of Vincennes to their field of drill. For an hour or two they went through different manœuvres by the bugle, performing many of the movements at the double quick. Then came a rest; as soon as that was ordered, the fine band of the regiment came forward and struck up a lively dance, to the tune of which several of the privates amused and refreshed themselves by waltzing round the field.

Returning, however, to our picturesque camp in this charming valley. There was no more striking scene than when darkness came on and the thousand

camp fires and lights in the tents were all in sight. The rail fences, bought by the thoughtful quartermaster, and paid for as an army supply, were used as fuel; a truly considerate act, for a quartermaster can buy fuel for the army, but he cannot pay damages done to property. This same ground, now covered by our troops, had been camped over by Lee's army; who had also used the fences, not even paying for them in the worthless Confederate scrip. Soon after dark, the bright lights of the signal corps appeared on the mountain north of the Maryland Heights, and messages were sent to McClellan's headquarters. Flags are used in the day, and at night lanterns. The signal officer has two lights; they are held one above the other, the lower one being stationary; moving the upper light to the right means number one; moving the light to the left, number two; moving first to the right and then to the left, number three; by lowering the upper light in front of the under one, a fourth signal is given; and so on. There are about five numbers; and by the different combinations of these five numbers, there is made a great number of signals, which can be read by the officers who have the key. The mode is much the same as that used by our mercantile marine with their signal flags. The signals are given very rapidly, and a few minutes suffice for the sending of the messages.

Evening is the time for talk around the camp fires; and the conversation often turns upon our rebellious brethren. Among our regular officers you meet the classmates and old companions in arms of the rebels, and hear of little traits and peculiarities that only intimate acquaintances can relate. Civilians who had known General Lee at Washington, have spoken of him as very formal, and rather pompous in his manner, giving the impression that he was a man of more show and pretence than abilities. We learned here, however, that, in Texas, or California, where he was for a long time before he took his high position on Scott's staff, he was famous for marching his men without the usual encumbrances of baggage, on the most severe expeditions against the Indians, in the snow and cold of the winter. Stonewall Jackson has always been famed for his peculiarities. When a young man, he was possessed with the idea that he was in danger of having his limbs paralyzed, and he would pump on his arm for many minutes, counting the strokes, and annoyed beyond measure by the interruptions of his companions breaking up his count. Our officers, both regular and volunteer, who have been in actual battle, have a great respect for the rebel

leaders and soldiers; they speak very highly of their drill, and believe that straggling exists to a less extent among them, in battle, than with us. From the rebel newspapers I should doubt whether this is the case. One thing we have not considered, which has given the rebels a great advantage in this contest. It is the large number of military colleges in the South; not like our few private schools at the North, but well-endowed academies. In the summer of 1860, immediately before the election of Lincoln, I visited the military academy at Lexington, Virginia. It was supported at the expense of the State, with two hundred and more pupils, coming from the different counties in proportion to their population. They were practised in the actual firing of cannon and mortars; and every afternoon were drilled as infantry for about two hours, much of the time at the double quick. The principal was a graduate of West Point; and he was assisted by a respectable board of instructors. A good civil and military education, after the mode of instruction at West Point, was afforded to the students. This institution had been in existence for years; and one can readily appreciate the advantage that Virginia has in this war from the graduates of this school. Alabama and several other of the Southern States have similar colleges; while we at the North have been obliged to educate all our volunteer officers by actual service.

The morning Stuart with his cavalry left Chambersburg, we rode forth for the battle field of the Antietam. We noticed the disappearance of some of the camps of the infantry brigades. We knew of the patrolling of the cavalry along the road we were pursuing, and found the picket guards farther out, and passes and countersigns necessary where before we went unchallenged. We were several hours in getting to the battle field, and stopped to get some refreshments at a large brick farmhouse, where the battle on the left began. The hospital flag was still flying over the building, though no patients had been there for a day or two. Twenty-seven died in that one farmhouse from wounds received in that bloody fight. On the night of the battle, cows, sheep, poultry, and fences disappeared before our cold and hungry troops. But since then, though the house was in the neighborhood of several camps, the old lady and her daughters, who alone were at home, had been undisturbed, except by the small pilferings of stragglers.

The great battle has been so well described by the correspondents of the newspaper press, and by those who were over the field before we were, that

I shall only mention a few incidents to which our attention was called. The principal contest was on the right, west of the Antietam river. Here Hooker with his army corps began the battle, and fought so long and splendidly. Both armies crowded their forces to this part of the field. Sumner, whose troops had been with their belts on since three in the morning, brought up his large corps, drawn up in three columns, forty paces apart, to reënforce Hooker's hard-pressed soldiers, who were retreating before the fresh and overwhelming reënforcements of the enemy. In less than an hour, the whole of Sumner's corps was swept back, broken and entirely routed, and never appeared in the field again; the column in the rear not being in position to fire a gun, but losing as many men as those in front.

The manner in which General Sumner brought his troops into action has been severely criticized, even by officers of his own corps; whether justly or not, it is difficult to decide. No commander was more confided in by his soldiers than Sumner. 'He has risen from the ranks, and been through all the grades of the service,' 'He knows how to treat his men,' were expressions constantly heard. General Hooker's reputation as a fighting general was admitted everywhere; his *coup d'œil* of the battle field was represented as most excellent.

It was also on the right that the desperate fighting in the woods and the deadly struggle at close quarters in the cornfield with such fearful loss of life took place. An officer who was on the battle fields of Magenta and Solferino, says that the scene here was much more horrible. Many spoke of the scenes they saw with a shudder. They could not throw off the impression made by the masses of wounded and dead; the wounded often lying neglected and helpless under the dead, sometimes crushed to death by the wheels of our own artillery.

Our left at Antietam was far off from the right: in these days of guns of long range the line of battle is longer than it was formerly. At Waterloo the English occupied a front of less than two miles. In this battle ours was about four miles. In the battle of Solferino the engagement extended for eighteen miles.

The contest on the left was fought by General Burnside with only one army corps, the ninth. The battle at this place was a most gallant affair, but has

excited less attention than the bloody fight on the right. In the dusty, tiresome march through Maryland, in the skirmishes in and around Frederick, during the glorious hearty welcome our troops received in that old town, the advance, consisting of both Hooker's and Reno's army corps, had been commanded by Burnside. With them he had fought the successful and brilliant battle of South Mountain, coming to us so gratefully after the disastrous repulse and retreat of Pope. Reno had unfortunately fallen, and General Burnside took command of his corps: it was his old force from North Carolina, increased by General Cox's Kanawha troops, and some new regiments, in all a little short of twenty thousand men. On the morning of the battle, Burnside took his station on the east side of the Antietam, in a field overlooking the country on the other side of the river. The gathering of his staff to their breakfast brought the shells of the enemy in their midst, and compelled a change of position to the rear of some haystacks. On the same hill was placed a formidable battery of rifled cannon, throwing twenty-pound shot, commanded by Lieutenant Benjamin, of the regular artillery. The guns are so heavy that they each have eight horses to drag them, and the caissons have six. There was unfortunately a short supply of ammunition, and the battery was fired slowly during the day. The guns were well placed and served, and aimed with wonderful accuracy. Shells were planted in two of the enemy's ammunition carts, blowing them to pieces; and the fire of cannon was so hot that it compelled a rebel battery two miles off, coming down a road to get into position, to wheel round and gallop over the hill. Proud, indeed, were the Lieutenant's men of their exploits on that day, and wonderful stories they told of their famous battery.

The Antietam in front of Burnside was deep, not fordable, flowing in the bottom of a charming valley, and overshadowed by trees. There was a solid stone bridge over it, with three arches, rising picturesquely in the centre, with stone parapets on the sides, the parapets spreading at both ends of the structure. One would almost imagine that it was an old Italian bridge transported to our wooden-building land. The side of the valley held by the rebel troops rises sharply, not densely wooded, but covered by large trees thickly placed, as in an old English park. Along the top of this ridge ran a solid stone wall, thicker and of heavier stones than any we saw in the neighborhood. Where the wall ended rifle pits had been dug. Behind the massive trunks, and in the branches of the old trees, behind this wall and in

the pits, were crowded the sharpshooters of the rebels. The ascent from the bridge out of the valley on the enemy's side, was too steep for a straight road up the ridge. If ever a bridge could be defended, that should have been; the only disadvantage the rebels were under was that they could not sweep it with artillery.

Our left had vainly attempted to cross the bridge; twice had they been repulsed. On the right our troops were hard pressed; much of the ground gained in the morning had been lost; Hooker was wounded, Sumner's corps routed, Mansfield killed, and his corps beaten back. Then McClellan ordered Burnside to take the bridge, and hold it at any cost. Burnside sent some troops farther down the river, where it was fordable. He called up one of his old brigades that had been with him in North Carolina, saying, if any brigade could take the bridge, that one would. It was composed of the 51st New York, 51st Pennsylvania, 21st Massachusetts, and a Rhode Island regiment; on their colors were inscribed, 'Roanoke,' 'Newbern,' two of our most glorious victories. With these veteran troops was the 35th Massachusetts, a new regiment that had left home only a month before, but who nobly did their part. Down went the 51st Pennsylvania in column in the advance, at the run, shouting and crowding and firing as they hurried across the bridge, bringing down the rebels from the trees, suffering themselves, but never halting. They crossed and deployed on the other side. Next came the 35th Massachusetts, over the bridge, up the valley, then forming in line of battle on the top of the small hill commanding the stream. The enemy were drawn up before them, quite a distance off, on the top of the next hill. Every inch of ground between was commanded by the rebel fire; but our brave fellows charged on up this hill, driving the foe before them: they did not halt there, for another still higher hill, which could now for the first time be seen farther on, rose up before them. Nothing daunted, they followed up their charge, and drove the enemy from this hill, and took this most commanding position. There they halted, close to Sharpsburg, almost in the rear of the rebels. Some of our troops even penetrated to Sharpsburg itself, and were taken prisoners. A short distance farther would have cut off the enemy's direct retreat to the Potomac. Rebel troops were seen hurrying on the road to the river. Our men were now fired upon by artillery, and attacked by fresh bodies of infantry coming up, as the enemy say in their account, from Harper's Ferry. Our brave fellows, however, stood

their ground, waiting for reënforcements, which Burnside called for. But McClellan, unfortunately, dared not throw in his reserves; his object had probably been gained in making a diversion from the hard contested field on our right. Our gallant fellows had to stand there unsupported until their ammunition gave out; they fired their sixty rounds of ammunition, collecting all they could from their dead and wounded comrades, and then began to retreat. Benjamin's battery of artillery was also short of ammunition, and could not support them. Our brave boys only retreated to the next hill, not to the hill above the Antietam, and then lay on their arms during the night, and there they stayed during the next day, expecting the order to advance.

Little mounds of earth, covering fallen heroes, point out the course of our soldiers all the way from this side of the Antietam to the top of the farthest hill. Here our men were so much more exposed than the rebels that our loss was greater than theirs. On the right the rebel loss was much the larger.

In the battle beyond the river, the Hawkins Zouaves, another of the regiments distinguished in North Carolina, captured a rebel battery at the point of the bayonet. In the rebel account we are told how the brave General Toombs, with a whole brigade, retook the battery and defeated this single regiment, which they magnify into an immense force.

General McClellan, with all his knowledge and great skill and success in defensive warfare, as shown in his Peninsular campaign, after our defeat at Gaines's Mill, is wanting in the rapidity of comprehension and audacity which are necessary components of the highest military talent. He waits for too many chances, and fears any risk.

In the battle of Antietam, he had fifteen thousand fresh men under Fitz John Porter in the centre. The enemy had probably used their last soldier, for the correspondent of the *Charleston Courier*, who has given the best rebel account of the battle, impliedly states that they had no reserves left. Ignorant of our unused troops, he laments the want of a few more rebel men, and says, that if only five thousand of their stragglers, who were on the way to Winchester, had been present, a most decisive rebel victory would have been obtained. If McClellan had added Fitz John Porter's reserve to Burnside's soldiers, he would have had nearly thirty-five

thousand men flanking the enemy, already beaten, and threatening their retreat across the Potomac. Who knows what those fresh men might not have done? Many think that the doubtful victory would have ended in the most brilliant decided success, and the stone bridge of Antietam would have stood in history by the side of Arcola and Lodi. But let us be thankful for what we did achieve: never should the nation forget how a retreating, discouraged, defeated, demoralized, and even mutinous army, that had suffered terribly in killed and wounded, and lost prisoners and large numbers of cannon and material, was again reformed, and marched triumphantly against a victorious foe; achieved on Sunday the brilliant victory of South Mountain, and on Wednesday fought the bloody fight of Antietam. There we captured cannon, small arms, and standards, and lost none. Many have forgotten that ever since spring the rebels have boasted that the war was to be carried within our territory; that they had begun this programme; and that General Lee in entering Maryland had issued a boasting proclamation, promising to redeem it from a hated tyranny. If he had succeeded, and defeated McClellan, as he had beaten Pope between Manassas and Washington, we had no reinforcements or forts to prevent his march to Philadelphia. McClellan's presence stirred the common soldier as Napoleon's did, and it was this unbounded enthusiasm which he excited, that saved the nation when he took command at Washington. I know of nothing that made me more indignant than the folly of some ladies who, among his soldiers on the Potomac, decried and denounced him as an imbecile. What treachery can be worse than the attempt to destroy the confidence of the soldiers in their leader, when their lives depend upon his judgment and skill, and there can be only dejection and despair when that judgment and skill are doubted.

Upon our return from the battle field to Pleasant Valley, we heard that orders to McClellan to advance had come from Washington. The only answers to inquiries when the advance would take place, were ominous shakings of the head or shrugs of the shoulders, which were indicative of anything but belief in a speedy movement. We also heard of the appointment of General Burnside to the command of three army corps, the precursor of a greater command yet to come. We have in our new commander-in-chief a general who has an implicit belief that our cause is just, and a trust in Providence that he will make the just cause victorious. In

General McClellan we had also a general who believed in Providence, and who has always shown great reverence in his writings. General McClellan is reticent. You can, however, tell somewhat of the opinion of the head of the house from his children; and judging from the tone of belief among the General's military family, from that long delay after Antietam, it was pretty evident that in his opinion the South cannot be subdued, and that the question between us was a matter of boundary. With General Burnside we have no such belief. His faults, if they are faults, are those of the bold general, not of the Fabian order. At Newbern he brought at once into the fight every soldier he had, not keeping one in reserve; and he gained the battle by his audacious policy. And it is the wonder to this day of every one who has been over the battle field, that the enemy should have been beaten. With all this boldness, he is a modest man; twice before having refused the chief command: once when it was offered to him at the time Pope was appointed; again when McClellan took it before Washington. Of a commanding figure, every inch a soldier, one cannot look upon him and his kindly eye without instant admiration. His modest way of riding among the men, alone or attended by a single orderly, will make him beloved by our republican soldiers. He was so then, and 'Old Burn,' as they familiarly called him, was everywhere heartily received. By the way, McClellan's nickname on the Peninsula was 'George,' and not 'Little Mac,' as is generally supposed.

General Burnside, we believe, is a good judge of men. The generals he selected for his North Carolina expedition, though previously unknown, and but captains in the service, have already distinguished themselves and justified his choice. General Foster, now commanding the department of North Carolina, has shown himself an able, active general. All who have been connected with him, speak highly of him. Though not a Massachusetts man, he has a peculiar penchant for Massachusetts troops: he was first at Annapolis, and picked out for the first brigade the Massachusetts soldiers. Recently, through the Governor, he has obtained some eight or ten more regiments, and in some way or other he has the crack ones.

General Reno, who was Burnside's second brigadier, has made a reputation that will live forever in his country's history. At the battle of Roanoke the little general, but a month before a captain of ordnance, stood up fearlessly in the swamp amid his men, when they were lying down by his direction,

and coolly gave his orders and encouraged them, entirely regardless of the balls flying round him on every side. In Pope's retreat, and amid disaster and defeat, he acquired new reputation by his skill, energy, and daring. A Virginian by birth, he was truly a loyal man; and, unlike some generals of our army corps, obeyed orders, and did all that could be done for the country and the general in command. His testimony that Pope's dispositions were good, if he had only been obeyed, should weigh much in that general's favor. After the victory of South Mountain, he was reconnoitring the enemy, when he fell by a random shot, which came, so those who were in the action say, from some soldier of our force. Lyon, Kearny, Reno, gone! Have we three such men left?

General Park, an accomplished soldier, who particularly distinguished himself at the battle of Newbern, was General Burnside's third brigadier. The country will feel renewed confidence from his remaining with our new commander as chief of staff.

On the morning we left the camp, a squad from a new regiment just arrived had been detailed for the guard at headquarters; one of the sentries was smoking his pipe as he marched up and down; another, who should have been patrolling his beat, was seated on the ground, cleaning his musket with a piece of wash leather he pulled from his pocket. The General was not near to stop these unsoldierly occupations. We came to the opinion that the boys in that regiment had never been to a country muster; but they were stout fellows and looked like fight.

At Sandy Hook, on the day of our return, we had to wait until nine in the evening for the train to Baltimore. Stuart's cavalry had been over the road in the morning, making their escape into Virginia. They dared not stay to do mischief; our forces were at all the important points. Considering the immense supplies in the rear of the army, Stuart did very little harm; his eight hundred fresh horses were not worth the risk he ran. If he could have seized our supplies at Monocacy Station, and burnt the bridge there, he would have inflicted a serious loss upon the army. The nature of his raid seemed well understood, and there was no apprehension then of the enemy's holding the railroad; for the train from Baltimore had passed over the restored rails a few hours after the retreating troopers. At every important point we found soldiers, and near Frederick we were glad to hear that seven

of the sick troopers, used up by their hard service, had fallen behind and been taken. We learned that General Pleasanton with some of our cavalry was in pursuit, and there were several stories about an engagement: the firing of cannon had been heard. General Pleasanton at that time was held in very little esteem, and seemed to have particularly disgusted those who had served under him, and was often cited as an example of McClellan's lack of judgment in men. He appears since to have acquired a newspaper reputation for ability and energy. I only hope that it is deserved, and that the opinions we heard so often were not well founded.

We arrived at the Baltimore depot at four in the morning amid a rain, and found it occupied by some one or two thousand soldiers, standing and sitting about in their blue overcoats with their arms stacked. Not a carriage could be obtained, and so, shouldering our bag in military fashion, we marched for the Eutaw House. At the door was stationed a guard, marking it as the headquarters of Major-General Wool. We passed by unchallenged; in our bag, however, we had rebel ammunition: a loaded shell fired at our men as they were crossing the stone bridge at Antietam. Fortunately the fuse had gone out, and it remained a trophy for one of the despicable Down-East Yankees. We heard the old General was still the centre of attraction to the pretty secesh ladies who had friends or relatives in durance vile in Fort McHenry. The veteran hero, though rich, wears a uniform that shows the marks of service. That, however, does not prevent the constant presents of delicious fruit and beautiful flowers, and invitations to drive to the fort, from those bewitching belles of Baltimore: whereat some strong Union people grumble loudly.

AMERICAN DESTINY.

II.

The law under consideration is exemplified in the social, industrial, and political development of the United States. There is a manifest difference, however, between the history of our civilization and that of Europe, though not in the least affecting the integrity of the law. The people of our nation were not derived directly from a rude and primitive condition, as were those of the Old World. The history of our civilization is, in its origin, coördinate with European civilization in the seventeenth century, after modern intellect had been fairly aroused, and the national organizations had been quite fully developed. The chaos and barbarism which the history of European civilization presents, and the play of antagonizing forces through the long period of centuries, resulting in some degree of political order and unity, does not belong, except as an introduction, to the history of American civilization. Ours is a branch from the European, after it had been growing for several hundred years.

During the period which intervened between the Declaration of American Independence and the adoption of the Constitution of the United States, there was no formal and permanent bond of union between the several States; it was provisional,—they were held together by outside pressure and a common interest in the cause of independence. The settlement of a general government for all the States was a crisis, not only in the affairs of this country, but of the whole civilized world, as we believe the future will most fully reveal. To the responsible statesmen of that day, this was a period of intense solicitude, such as we can realize only by an effort of mind to place ourselves in their situation, and bring before us the magnitude of the objects to be attained, and the difficulties to be overcome. There was then, as now, a diversity of interests to be harmonized; but there was one interest, which, in its political relations, requires to be characterized by a stronger term than that of 'diversity.' Between chattel slavery and free labor there is 'irrepressible' antagonism, and there could be no real union—no blending of the twain; but the gulf was bridged, under the pressure of necessity, as the

wisdom of the times could best devise. It was, indeed, well done. Union was the great object to be accomplished—it was the highest, the most comprehensive principle that could enter into the motives of political action—it was even a necessity of the current civilization, and must needs subordinate all minor principles and interests; and we owe a debt of gratitude to those who so nobly wrought this glorious Union out of colonial chaos and isolation.

The instrument of this Union has been characterized by well-meaning, but one-idea minds, as a 'covenant with death, and an agreement with hell,' simply because it effected the union of free with slave States. This method of characterizing the Constitution of our country—as noble a document for its time and place as the world has ever seen—can well be excused, since it has no doubt been done in utter obliviousness of the importance of the principle of political unitization. The original consummation of this Union was a great step in political progress; it was an achievement of the master principle of political movement; and God wills that no part of the advantage then gained in the struggle of Destiny shall ever be given up!

But while unity is thus exemplified in the history of our Government, the phenomenon of differentiation is also manifest. The functions of government have greatly multiplied since its first organization; the 'division of labor' process has been going on, and new departments and bureaus have been established. While I write, the expediency of another department, that of agriculture, is being agitated in Congress. The Department of the Interior has been quite recently created, and new bureaus in this department, and in others, are being created from time to time, by act of Congress, to meet new wants in the administration of our Government. And what is true in this respect of the General Government is, also, true of the State Governments; for there, too, do we find the development of new functions, and the creation of new official organs to execute the same.

This growth of the country at large, from which these new demands on the Government arise, is to be seen very distinctly in the industrial and educational elements of society. While these interests increase in magnitude and variety, and the people are becoming more concerned therein, the Government assumes a responsibility in regard thereto, which can only be discharged by the multiplication of the administrative appliances. These

new governmental activities arise from the popular will, as moulded and expressed through the more intelligent and enterprising of its actors. They choose to have it so. It is found convenient, in the promotion of certain general interests, to appeal to a power which is presumed to embody the elements of order and authority in the execution of its will. In the construction of railroads and telegraphs, capitalists must coöperate with the Government in relation to questions of right, which, in many cases, can only be settled by a regularly constituted tribunal. State agricultural societies appeal to State Governments for coöperation, and when received, the industrial interests of the country are advanced thereby. We all know what State Governments have done for the cause of education. Sections of country which would at this hour have been in a state of almost semi-barbarism have—thanks to our educational policy—been redeemed from their prejudices against intelligence and education, and been made to step into line with the advancing columns of civilization. The same civilizing influences, precisely, have been brought to bear, by the active part which Government has taken in the improvement of all the means of travel, trade, and the transmission of intelligence. The intelligent and active few have thus advanced the interests of the many. In districts of country which have been without the channels of commerce except in a very rude condition, and where the enterprise of the people was inadequate to their improvement, the Government has reached out its strong arm and redeemed them from their primitive rudeness, thereby promoting the physical condition, the enlightenment, and the culture of the people. There are plenty of instances on record, in which improvements of this kind—of roads, for example—have been made against the will and in spite of the opposition of the people most to be benefited thereby; and had they not been related under the same government to communities more intelligent and enterprising than themselves, they would have remained in an isolated and semi-barbarous condition.

Now, while we readily discern the increase in the objects and in the machinery of government, we cannot so readily discern the abatement of governmental interference with the private affairs of the individual, as in governments of longer standing. There has not been time for great changes in this respect; and then, in the earliest legislation of our country there was comparatively so little that was obnoxious to individual freedom, that there

has been less occasion for the change in question. The Blue Laws of Connecticut are proverbial for their intermeddling with private life. There has been no change in this respect so marked since the organization of our Government as there was before; but so far as there has been any, it is in favor of the exemption of the individual, in ordinary times, from legal interference. The entire atmosphere of American society is becoming more liberal as general education advances; and this, in turn, acts upon the legislative and executive functions of the Government, to make the laws and the execution of the same more acceptable to a cultured people. The 'Maine Law,' earnest and benevolent as it was in purpose, and to all seeming so obviously founded in the right of society to protect itself, could not be sustained against this tendency in government to let the individual alone in the affairs of his private life.

We have observed that there is a concentration of different industrial and commercial functions in different sections of the country, whereby these sections become dependent upon each other, and the unity of the whole, to a certain extent, made inevitable. Now, we insist that political economy and the greatest well-being of all require that the political jurisdiction should, as far as possible, be commensurate with that commercial, industrial, and social dependence which works itself out to a large degree of fulfilment in spite of the obstructions interposed by the contractedness and isolation of political organization.

As we have seen, this dependence of one industrial section upon another, and of one commercial centre upon another, as the result of commercial and industrial specialization, is becoming more and more marked as a development of human progress. All this increases the need for more extensive political organization, while at the same time it makes it possible.

It will readily be perceived that since industrial and commercial development is necessitating dependence and unity, it is equally true that the natural varieties of soil and climate are, also, conditions of like dependence and unity. When these diversities of soil in different sections are fully developed, and the exchange of products readily made through improved commercial facilities, and human wants multiplied by means of civilized culture, agricultural specialization creates the demand, not for political division and isolation, but for more extensive organization. That

New England manufactures is no reason that she should separate her government from that of the other States, but just the reverse. That the Middle States are more distinctively a mining region, and the great West agricultural, is no reason that their general government should be distinct, but precisely the reverse. That the South produces cotton, rice, and sugar, is no reason for her seceding from the Union, but exactly the reverse. These diversified interests, we repeat, create interrelation and dependence, unitizing the commercial and industrial polity; and the political organization should, as far as possible, be coextensive therewith. There are physical necessities which prevent the formation and maintenance of a comprehensive political organization in the earlier stages of civilization, but these never have obtained in the United States, and every hour's improvement carries us farther beyond them.

All the results of a progressive civilization are constantly complicating the dependence and interrelation of various sections of our country. Roads, railroads, canals, and lines of telegraph, by their connections and intersections, are so many bonds of union between the various districts of our country—so many bonds of union between the various States of the confederacy—and forbid its dissolution. Even Nature conspires with civilization to the same end. The great valleys and rivers running north and south are so many natural ties, which the most incorrigible perverseness, on the part of man, could alone prevent from performing the office to which they seem so happily adapted in the play of the civilized elements.

As we have seen in our brief view of Europe, greater political unitization has been the result of growth in civilization. In the United States, all natural, commercial, and industrial bonds of union are becoming more fully developed. This evinces the direction of progress.

What, in the light of this view, are we to think of the doctrine of 'secession'?—of secession, that political dogma of recent development, which, if made practical, would destroy all political unity of greater compass than a State—a State, the idol of Southern political worship. It would break any confederacy into fragments, and prevent the consummation of those great unities which an advancing civilization demands. This doctrine of 'secession' would remand us back to the condition of affairs in Europe during the twelfth century, before commerce, the Crusades, and the waking

up of intelligence had commenced the movement of national organization. The Southern States have a barbarian institution in their midst, but, not satisfied with that, they would inaugurate the practical operation of a new political doctrine, which must introduce still another element of barbarism, and interpose an additional obstacle to the progress of civilization. Shall this be? It is opposed to the political tendency of the times; and the common sense of mankind should forbid the acceptance of a political solecism in the organization of government, which virtually annuls the unity and integrity of the government itself.

There are crises, however, in human development, when the movement is rapidly set forward; and others, when it may be as suddenly arrested or thrown back, requiring long periods to regain the lost ground, preparatory to a new advance. Our Union, only a brief while since, appeared to be upon the point of irreparable rupture; the division of this great Union into minor geographical districts, like the European monarchies, seemed to be imminent. The determination of the South to secede; a large portion of the influential press at the North pleading their cause; Buchanan favoring secession; many in the North, then, and for a long time previous, in favor of a 'peaceable separation;' but—thanks to the blind impetuosity of 'Southern chivalry'—with the fall of Sumter, and the inauguration of the war, the only hope for this Union revived! Wicked or foolish people have said that the bombardment of Sumter was the death-knell of the Union;—we believe it was just the reverse;—as the turning point of a great crisis, it signalled the birth of a new era. It threw the trimming and temporizing politicians of the North off their old tracks, and tore their platforms from under them; their antipathies were suddenly neutralized; their prejudices vanished; they were unexpectedly floating anew on the sea of public sentiment; the opinions of influential men were subject to a new ordeal; and the views of many an entire clique, faction, and party were revolutionized in a day. Northern pride was wounded; Anglo-Saxon energy was aroused; there was a demand for determination and 'pluck,' and the result is known to all. Secession, in the Free States, was suddenly transformed; there was a grand uprising for the vindication of a great principle of political development; and nearly a million of armed men of all parties are now in the field; and God grant that they may be able to overcome the abettors of a barbarian policy!

But if the cause of patriotism and civilization should fail in this struggle, what will be the consequences? Standing armies, stronger governments, leagues, and ruptures, internecine wars, European interference. Let this division of our once happy country be consummated now, and there can be no reunion for ages. The Southern nation recognized by European Governments, treaties and alliances formed, and we are involved in European complications through which the separation will be perpetuated. And this disunion made permanent, others will develop themselves, and in time be consummated. It is the interest of the reigning dynasties in Europe to see our nation dismembered: the South would be our rival; and we should not have power to enforce union hereafter. When a politico-geographical weakness is developed along the Rocky Mountains, the Pacific States will not be without ambitious demagogues to attempt the establishment of an independent organization on the Pacific. Another fracture may be developed along the Alleghanies, and the great agricultural West may set up for itself among the nations. New England may be seized with a like madness, and unworthily aspire to a separate national existence. With all these petty nations on this continent, there must be standing armies, leagues, and complications, as in Europe. Diplomacy, with its intrigues, and wars to maintain the 'balance of power,' will make up the great body of national history and absorb those energies which should be employed in advancing the means of human well-being.

But we will not speculate upon probabilities so remote. We will presume the success of rebellion, and one nation south, another north. The evil would still be very great. There must be armed thousands maintained by the two Governments to be ready for war at any moment. Two such nations, even if both were free, and still less with slavery in one of them, could not exist by the side of each other without frequent broils and collisions. Standing armies exhaust the resources of nations and retard the progress of civilization by a double result. They withdraw able-bodied men from the productive energies of the country, and are at the same time a tax upon the industrial forces which remain. The enormous daily expense of the present war must give us some idea of the cost of maintaining a standing army of two or three hundred thousand men even in times of peace. This has done a great deal to retard the progress of Europe; and that we, as a nation, have heretofore been free from this encumbrance, is doubtless one of the reasons

why we have made such rapid strides in so much that makes a nation great and happy. But standing armies imply war, and the international wars of Europe have done much to exhaust her resources and paralyze her prosperity. Guizot says—and we may see it in history for ourselves—that 'for nearly three centuries, foreign relations form the most important part of history.' Foreign relations, wars, treaties, alliances, alone occupy the attention and fill the page of history. Sad result of the political divisions of a continent! Unhappy fruits of maintaining the balance of power among neighboring nations! Let this continent be warned! And now is the crisis when this warning needs most to be heeded. And even if this critical juncture should be safely passed, we have need to guard against others, and these truths should be universally recognized as elements of our national preservation. We may profit by the shipwreck of others, to avoid the rock on which they split. There are causes clearly discernible in the history of Europe, for the divisions of that continent, which do not now, and never have obtained here. Her political institutions were developed out of the chaos of barbarism, and she had to unite smaller jurisdictions into larger ones; and she did this as well as the status of civilization would permit at the period when national organization was effected.

The facilities of intercourse between a people, for the transmission of intelligence, for travel and transportation—those accompaniments of civilization which bring remote sections of country near each other and bind them together; the resemblance or the difference of languages spoken; the antipathies, prejudices, sympathies of the peoples—all these are elements which go to determine the geographical extent of a nation. Original difference of language, local prejudices, the want of civilization, contributed to limit the European nationalities to the small extent of territory which, for the most part, they occupy. These causes have not operated against us. Local distinctions on account of language do not even obtain here. There are no real causes to contract the geographical boundaries of our Government; while, on the other hand, the constant increase of facilities for the commercial and social intercourse of one section with another, and the specializations of the agricultural, manufacturing, and commercial interests, in the creation of dependence between different sections of the country, demand, in the name of science,

common sense, justice, and the good of the people, that this Government shall remain one and undivided.

We cannot, therefore, afford to allow the present or any other rupture to become permanent, and entail upon ourselves and our children all the disadvantages and calamities incident thereto. It would not be wise to prepare the political stage of this country for the reënaction of the tragedies of Europe. Better any sacrifice than this. Even if we should lose great battles, or if European interference should threaten, it would be better to rally the people anew even to the raising and equipment of millions of men, and sustain the war at this enormous cost, rather than entail division and its necessary calamities on the future political life of this continent. This war is costing immensely in men and property; but if, thereby, the integrity of the Union can be maintained, it will be an economy both in men and means, if only a brief period of the future be taken into the account. We are often reduced to a choice of evils. War is a great evil, but it may prevent others still greater. The indiscriminate arming of slaves and the spread of incendiary fires would be great calamities, but nevertheless justifiable, if the only means of selfdefence, or of preventing still greater and more enduring calamities. But there need be no violation of the ethics of war, no infringement of the rights of humanity. The North is strong in its natural resources, strong in the justice of its cause: it has risen to vindicate the cardinal law of civilization, and by this shall it conquer. There appeared to Constantine a vision of the cross, with the motto, 'By this conquer.' Science has descended in these last days to dwell among mankind. In her hand is a scroll which she unfolds before the nations, and they read, 'Unity, the consummation of social and political destiny.' Thereupon, turning to our nation in the hour of trial, she says: 'The time is approaching when the principle of unitization must sweep a wider circle, and you are chosen to inaugurate this new era in the destiny of nations. Thus far you have done well; be true to the work so happily begun; carry it unflinchingly through this ordeal, and you will be the greatest Power for good upon the earth. There must be an extension of political organization—a widening of the sphere of political unity; and through your example and influence will the nations be gathered into a larger fold.' And pointing to the scroll, she adds: 'Let 'Union' be eternally your motto; by this conquer!'

If we should apply no other than a superficial interpretation to history, overlooking the great laws by which development proceeds, and thence conclude that the world is to follow doggedly in the footsteps of the past, we should anticipate a future far less beautiful in grand results than Destiny has in store for the generations to come.

Are we to have the Empire of Rome or of Charlemagne over again? In the Roman Empire there were no common interests; no representation; no communication among the people; no intersection of the country by the networks of roads—only great military roads leading from province to province; no specialization of industrial and commercial interests; no civilized dependence of one part on another; no natural ties as yet developed to their real significance between the several countries of the Roman Empire: it was held together by the strong and despotic arm of Rome. The Empire of Charlemagne embraced the territory of Middle and Western Europe, inhabited by barbarous peoples, isolated, warlike, and speaking different languages; there were none of the civilized bonds of union; only the genius of Charlemagne held them together; and upon his death the huge fabric he had reared naturally fell to pieces. The Spanish Empire is but another instance showing that geographical and other elements of disconnection must not overbalance those which relate remote sections to each other, and bind them together in a common interest, else dissolution will be the result. In respect to the United States, all these conditions are reversed. Every interest in the natural course of development points to union—demands union, and, in the triumph of justice, shall have union.

Is there anything in the way of this union? Is there a morbid growth—a cause of irritation and disease tending to dissolution? Then, it must be removed. Is ambitious and reckless demagoguism to be apprehended? Then educate the people and diffuse science. But is there not still a worse devil to be cast out? Where slavery is, you cannot educate the people, you cannot diffuse science; and without enlightenment there can be no political justice, since unprincipled demagogues will sway all political destiny. Slavery cannot always exist side by side with freedom; it is the natural enemy of union, the enemy of civilization. Prominent secession leaders have admitted that slavery is the cause of this war, boasting at the same time that the confederate constitution is founded on a scientific distinction of races.

Without slavery there could be no sufficient motive for the independent national existence of the South. Had there been no slavery, there had been no civil war. This is, at the present time, the political significance of the institution. There is no safety but in its extinction—so far at least as the border Slave States are concerned, in order to overthrow its power in the United States Senate, to enlarge the sympathies of freedom, and weaken and circumscribe the chances for revolutionary movements which slavery will be ready at any critical moment to precipitate against the Union.

If we have not misinterpreted the law of development, slavery, as it exists in this country, is a morbid political condition, a social disease, which stands in the way of the natural course of social evolution. In this law, therefore, is written the doom of slavery. The enlightened world will not always permit it to blast the fair field of civilization by its poisonous presence.

There is a law of human movement by which predominating conditions extend and perpetuate themselves, overcoming those which are weaker and on the wane. We observed this in our brief survey of the feudal system. Freedom is now in the ascendant, and slavery must go down. And since secession is the child of slavery, and both at war with the cardinal principles of progressive civilization, it is meet that both should fall together.

This war may not directly extinguish slavery, and it may; we do not see the end. But if not directly, we believe the war is, nevertheless, indirectly setting those forces into action which will eventually extinguish the institution. If the 'confederacy' should be destroyed, as, if not saved by foreign intervention, it certainly will be, slavery, if not already dead, will be pent up, and, in that case, will soon die by its own hands.

Immediate interests control us more than those which are remote; interests which affect ourselves, more than those which affect our descendants. Citizens of the Southern States, to save a petty individual interest, are nursing in the bosom of society a malignant canker, which, if let alone, must one day, in the inevitable course of destiny, eat into its vitals. Heroic treatment will alone meet the demands of the case. It must be a surgical operation that will penetrate to the very roots of the invading tumor.

The salvation of the South itself, as well as of the Union, hangs upon the extinction of slavery. Indeed, the South has far more interest than the North

in the restoration of political health as the condition of political union; and she would see it so, if slavery had not made her blind. The elimination of slavery would, in the end, be clear gain to her, while she would reap equally with the North the advantages of union, and escape the disadvantages and calamities which, as we have seen, must inevitably follow in the wake of confirmed disunion.

The writer of this article bases his opposition to slavery solely upon politico-scientific grounds; he urges the recognition of a great law of human development, that its bearings on human destiny may be fairly seen, and human endeavor more wisely directed to the achievement of the end 'so devoutly to be wished.' The discussion of American Destiny in all its ramifications would involve the discussion of the ultimate fate of the negro race on this continent; but that is not within the range of our present purpose. We have aimed only to indicate the law of development from the simple to the complex, over which a necessary unity at length prevails; to show that this law obtains in the political as in all other realms; to insist that political unity should enlarge its area as facilities for intercommunication permit, and the interrelation of industrial, commercial, and social interests demand; that the jurisdiction of the political unity should correspond to the extension of general interests, so far as may be possible in the face of physical necessities not yet overcome in the progress of civilization. We would apply the doctrine more especially to the present crisis in American affairs, to enable us to realize that all our sacrifices to maintain the Union are fully warranted by the great principle of human development which is involved in the contest.

If we have rightly interpreted history and the law, these sacrifices are justified by a double consideration. The first, which is negative—to avoid the entanglements, broils, and conflicts of neighboring nations, and the consequent exhaustion of the resources of civilization, through which its progress would necessarily be retarded; the second, which is positive—to maintain a vast political organization on this continent in accordance with the demands of a higher civilization, as the only sure guarantee for the integrity of the 'Monroe doctrine,' and the accomplishment of a great political mission, by reacting upon Europe, and leading her isolated and fragmentary nationalities into a higher unity, involving order, authority, and the economy of power.

It is the selfish interest of the crowned heads of the little nations of Europe to maintain things as they are, with a principality and a palace for each puppet of royalty. Hence their costly machinery for maintaining the 'balance of power.' There may have been a use for this in the ignorance of the masses, when the extension of sovereignty was often but the increase of despotism; but there is no such need in the advanced culture of the people and the progress of civilization. Formerly there was no public sentiment; but, with the rise of civilized methods, it became developed, and it has gradually enlarged its sphere, till, as a writer on dynamical physiology remarks, 'we now hear of the public opinion of Europe.' (Draper.) And we believe that, before this public sentiment, thrones are doomed to topple, and sceptres and diadems to fall, to make way for the more liberal and comprehensive political organizations of an advancing and triumphant civilization. And herein appears a glimpse of the political mission of the American Union, destined itself to become still more comprehensive in the inevitable fluctuation and change of the political elements. It is a hackneyed theme that all the natural features of our country, its mountains, rivers, valleys, lakes, are on a grand scale; it is, therefore, meet that we should lead the civilized world in the movement of political unity.

When Russia shall have more completely filled up the measure of her civilization, and general intelligence shall have secured the liberty of the subject, and laid forever the ghost of political absolutism, it may become the mission of the younger nation to infuse new life into the political system of Europe. With such a nation on the East, and a great continental policy well advanced in the Western World, Middle and Western Europe could hardly maintain its present divided, discordant, and consequently feeble condition: there must be union then, if not before. With Europe thus united, having outgrown the diplomatic intrigues and exhausting wars of jealous and ambitious rulers, the dream of 'universal peace' may realize the inauguration of its fulfilment, and civilization come to have a meaning which, as yet, is folded up in the bosom of prophecy—the clearer prophecy, we believe, of science and history. We are confident that the prestige of the past and the earnest of the future are for us and our cause; that our nation will not be torn to pieces and sunk to the dead level of political imbecility, but will victoriously avouch the integrity of American unity, and gradually

gain the advance in the grand march of civilization, and lead the nations for hundreds of years to come!

We may well be proud that we are Americans, and that our lot is cast in these times. Let us never abase our position by the least approach to ignoble compromise; let us shrink from no responsibility; but acquit ourselves as becomes an intelligent people conscious of a noble destiny!

THE BIRTH OF THE LILY.

The Rose had bloomed in Eden. Odors new
Entranced the groves; and iridescent birds,
At this new birth of beauty, sudden rose
In richest chorus, bearing up the balm
Upon their beating wings. The bee had learned
The place of golden sweets, the butterfly
Loved well to dream within those crimson folds,
And Eve had made a garland delicate,
Of feathery sprays and leaves and drooping bells,
And placed the Rose, the queen of bloom, above
The centre of her brow. Thus she bound up
The golden ripples that fell down and broke
O'er her white breast, hiding the bosom buds,
That never yet had yielded up their sweets
To the warm pressure of an infant's lip.
And Eve had bent above the glassy lake,
Smiling upon her picture, pressing close
The soft cheek of the Rose upon her own,
And praising God for beauty and for life.

But now a morn had come more strangely dear
Than Eden yet had known. The sleeping wind
Woke not to stir the fringes of the lake,
Nor shook the odors from the scented plant.
A silver, misty wreath closed fondly down
Above the waveless tide. The insect world
Lay waiting in the leaves, as though a spell
Had hushed Creation; yet expectant thrills
Ran through the silence, for the loaded air
Grew lighter, purer, and the recent Rose
Drooped her proud head in meekness, and the face
Of heaven flushed with burning brilliancy,

Above some coming wonder.

One by one

The beasts and birds of Paradise came down,
With noiseless movement, to the water's edge,
And waited on the margin. Creatures huge,
With honest, liquid eyes, and those that stepped
With cushioned feet and feathered footfall, stole
About the brink, with all the tribe that gave
The forest life. The serpent reared its crest,
Not yet polluted with the valley's dust,
And stood like one with royal gems encrowned;
While beast, and bird, and serpent turned to gaze
Upon each other with inquiring eyes,
And half-bewildered glance.

Then last of all

Came Eve with Adam to the circling rim,
Her fingers grasping roses, and her lip
All beautiful with Love's own witchery.
She stood and noted with admiring look
The strength of Adam's form, the expansive chest,
The sloping muscle, and the sinew knit,
The firm athletic limb, and every grace
Combined and joined in that first, perfect man.
Then Eve, grown humble in her wondrous love
Of Adam's beauty, knelt upon the turf,
While her long hair fell down in shining waves,
And pressed her lip upon his dew-washed feet:
Then with her agitated fingers broke
The foxglove pitcher from the stem, and stooped
To fill it up for him; but quickly drew
Her pearl-white hand away from the still lake,
And held it o'er her heart, with such a look
Of awe and mystery, as if a spell
Was on the water, that she dared not break.

So all was hushed and waiting; when, behold!
A flash of gold shot from the silver East,
A gush of new perfume spread through the grove,
The Rose drooped lower, and the impatient birds,
Loosed from restraint, sang in a strain refined
Of dulcet clearness, such as those young bowers
Had never heard before. The beast crouched down
Upon the velvet turf, the serpent's crown
Flashed richer splendor, and the angel-guard
Whose fearful sword gleamed by the Tree of Life,
His very plumes were tremulous with joy.

Then Eve looked o'er the swelling wave, and, lo!
The lake was overspread with blooming stars,
Or snowy golden-centred cups, that rocked
And spilled the choicest incense. Adam cried,
'The Lily;' but the sweet voice at his side,
Grown tremulous and faint with overjoy,
Could only whisper, 'Purity.' Then quick,
With restless hands, she culled the floral star—
Queen of the wave—emblem of innocence,
And hung it in the lion's matted mane,
And twined it round the serpent's glittering neck;
Thus humoring her fancy in the play
Till half the morning hours had slipped and gone.
Then, startled by the voice she loved so well,
She left the sport, the creatures, and the flowers,
And hastened back with Adam to the trees
Where God was walking in the solemn shade.
O mother frail, thou hast not known a tear!
Thy spirit, clothed in simple innocence,
Wears the true garb of bliss. Not yet thy hour
Of sorrow and departure; nor the pangs
And mystery of motherhood are thine!
And yet, weak one! some day, because of thee,
God's love shall give a Saviour to the world!

WAS HE SUCCESSFUL?

'Do but grasp into the thick of human life! Every one *lives* it—to not many is it *known*; and seize it where you will, it is interesting.'—GOETHE.

'SUCCESSFUL.—Terminating in accomplishing what is wished or intended.'—WEBSTER'S *Dictionary*.

PART SECOND.

'I have been young and now I am old, and I bear my testimony that I have never found thorough, pervading, enduring morality with any but such as feared God—not in the modern sense, but in the old child-like way. And only with such, too, have I found a rejoicing in life—a hearty, victorious cheerfulness, of so distinguished a kind that no other is to be compared with it.'—JACOBI.

CHAPTER I.

The first part of this narrative naturally closes with the termination of our hero's career at Burnsville, and his establishing himself as a resident of New York.

Up to this period, he has had no great difficulty in making his conduct consistent with his religious professions. He certainly has striven with a species of conscientiousness to do so, and we repeat, he has achieved his object.

Now, however, he is embarking on a very different sea from the quiet, placid waters of his village life. Here, Hiram Meeker, you will encounter many and frequent temptations to *do* wrong. For you are soon to commence on your "own account," and then you must prepare for that mortal struggle, in which none, without the grace of God to aid them, can come off victors.

Hiram understands this: that is, he has been educated to believe it. Surely he enjoys saving grace. Who more constant at church and evening meetings; who prays longer and more vigorously than he?

Let me repeat that Hiram has a strong desire to enter the kingdom of Heaven, and thinks that all the chances are in favor of his doing so. But this desire is of the same nature as his wish to become rich. It is founded on the determination to promote the fortunes of the individual *me*, here and hereafter. It leads him to treat as a *principle* the statement of *fact*, that "honesty is the best policy;" and his policy is—Self. He can practically master the theory of cause and effect as to what is going on *here*. And since he believes he will secure a good position in the world to come by strict observance of the "ordinances," he considers himself all right *there*.

It is with entire complacency, then, that Hiram Meeker sets sail in New York. He is young, and, as the word goes, handsome; with good health, strong nerves, an enduring frame, and excellent constitution. He is well educated, and has a remarkable capacity for affairs, with sufficient experience in business to qualify him for any mercantile career he chooses to enter on. Moreover, in all the relations of life, he professes to be governed by the highest possible principle—Christian principle; and claims to be, indeed really is, at least theoretically, a believer in the truths of our holy religion. Why is it, then, reader, you have already taken such a prejudice against Hiram? For I know, as it were instinctively, that you are prejudiced against him. Indeed, I confess that in preparing his history for the press, I have unconsciously permitted certain comments to creep in, indicating my own feelings toward the young man. But, in fact, I could not help it, especially when I came to narrate Hiram's course toward Sarah Burns.

But here in New York, I begin to feel a painful interest for young Meeker. He is at the "parting of the ways." Up to now, there has been no great strain on his moral sense, while he has not been altogether insensible to humanizing influences. He has been thus far in the service of others, and had wisdom enough to understand it was best for him to serve with fidelity. Thus, his sense of duty did not conflict with his interests, and he won golden opinions from all.

Probably, when he left Burnsville, but one person thoroughly knew him—that person was Sarah Burns. For it is given to those whose hearts are honestly *devoted*, in time to learn and fully comprehend the nature of the hearts brought in contact with theirs.

The young ladies universally recalled their delightful flirtations with Hiram with a sort of pleasurable regret, in which no angry feelings toward him were mingled. Even Mary Jessup looked back with a sentimental sigh, but not with any feeling of bitterness, to the period when she was so happy with "young Meeker, boarding at their house." The Hawkins girls still severally had their secret hopes in the future. [As to the widow Hawkins, I cannot say.] But nobody understood the young man except Sarah Burns. *He* knew that, and when he drove away from her door, he felt he was *found out*.

I am getting from my subject, which is Hiram's dangerous situation, now that he has reached New York. One thing much to be regretted is that he has resolved, at least for the present, to adjure society, in his entire devotion to his main purpose. This is an alarming feature. For notwithstanding, in his intercourse with the sex, he had sought entirely his own pleasure, still it was not without its qualifying influences. His mind was diverted from a perpetual thought of how he should get rich, and nature (I mean the nature common to us all) was permitted to have a certain sway.

When Hiram stepped foot in the metropolis, he cut off these diverting elements. He decided, and he had long and carefully considered it, that in the strife in which he was soon to enter, he should require all his time, all his faculties. For this reason, he determined to accept Mr. Eastman's offer of board and lodging at his house, albeit his wife was shrewish and generally disagreeable. He no longer permitted the gay throng in Broadway to move his nerves or excite his senses. And thus all these secondary impulses and emotions and sentiments yielded to the one main controlling purpose.

Yes, Hiram Meeker, I feel a painful interest in your situation. I see that, once entered on your career, there will be no departure or deviation or pause in it. As in metal poured into the mould, which, while it remains in a fluid state, is capable of being converted into other forms, but which, after a time, fixes and becomes unchangeable,—so, in the life of every human being, there is a period when the aims and purposes are fixed and the character is settled forever. With some, this comes earlier, with others later; but it comes inevitably to all of us.

It seems to me Hiram is fast approaching this epoch, and this is why my interest in him becomes painful. For after this—but I will not anticipate.

CHAPTER II.

The first thing which Hiram undertook after getting settled at his boarding place, was to decide what church to attend. This was a matter which required a great deal of deliberation, and week after week he visited different churches of his own faith.

Mr. Bennett, with his family, went to an Episcopal church. He took the liberty, one day, of flatly advising his cousin to cut Presbyterianism, and go with him.

'The fact is, Hiram, I can't stand the blue lights; they make a hypocrite of you, or a sniveller. Now, I don't profess to be a good person, but I think, after all, my neighbors know about where to find me. As to the Episcopalians, they give us good music, good prayers, and short sermons. They don't come snoopng about to find out whether you go sometimes to the theatre, or if any of your family practise the damnable sin of dancing at parties. They mind their own business, and leave you to mind yours.'

'What is their business?' asked Hiram.

Mr. Bennett, taken a little aback, hesitated a moment; then he replied, 'Why, to preach and read the service, and perform church duties generally.'

'Well,' said Hiram, 'I always thought it was a part of a minister's duty to look after the spiritual welfare of every one of his church, and to visit the families, and converse with all the members.'

'You forget you're not in the country, where everything is got up on an entirely different basis,' replied Mr. Bennett. 'You won't find much 'pastoral' work here, even among the blue lights. They confine themselves to preaching brimstone sermons from the pulpit and at evening lectures, and giving orders about the management of your family and mine, taking care that nobody shall enjoy anything if they can help it. If you go to see a play, it is a plunge into Tophet; if you permit your child to tread a quickstep to a lively tune, both you and your child are fit subjects for the wrath to come.'

'I rather think you are mistaken when you say the Episcopalians approve of the theatre and late parties, and so forth,' retorted Hiram. 'I have been told

by two or three of that persuasion, that the clergy object decidedly to all these things.'

'Gammon, Hiram—gammon for the country market. I tell you, I know that we can do just what we please in the way of 'rational amusement,' as our clergyman calls it, and your people can't, and I advise you to come over to the liberal side.'

Hiram shook his head.

'Well, if you won't, I recommend Dr. Pratt. He, I understand, permits a little fun occasionally; then he makes use of our prayers, commits them to memory, you know; and latterly has put on a gown, and has a little boy to open the door of his pulpit. I advise you to go there.'

'Thank you,' said Hiram; 'but I don't think I should relish that kind of a man. I prefer something decided one way or the other.'

'Then take Dr. Chellis, he's your chap. Boanerges! a regular son of thunder. Egad, I believe he *does* visit every soul of his flock—keeps them straight. The other evening he was invited to a little gathering at the house of a new comer in his congregation—he always accepts invitations, and they say he is very fond of oysters and chicken salad, though he drinks nothing but cold water;—well, it happened the young folks wanted to get up a quadrille, began to arrange it innocently enough before his face and eyes. Thereupon he jumped up in a huff, and flung himself out of the house, and the next Sunday delivered an extra blast on the 'immoral tendencies of the dance.'

'That's the man for me,' said Hiram, firmly.

Mr. Bennett regarded his protégé with a keen, inquisitive glance, with a view to fathom him, if possible. It would seem that the result was unsatisfactory, for after a moment he exclaimed, 'Well, I confess I don't exactly see through you. It may be one sort of thing; it may be another; but I can't say which.'

'It is a very simple matter, Mr. Bennett. I was brought up strictly, and believe in my bringing up.'

'All right, if you mean it.'

'I do mean it. Besides, now that I have come to New York to reside, where I shall be subjected to the numerous temptations of a city life, I shall need more than ever to be under the preaching of just such a man as you describe Dr. Chellis to be.'

'Oh, don't; that is coming it too strong; now I think I *do* understand you. But, Hiram, drop all that sort of thing. If you want to join Chellis's church, join it; but talk your cant to the marines.'

Hiram was angry, but he said nothing.

'You must not be vexed, Hiram. You know I want to do you all the good I can. Recollect, if you are smart, you have much to learn yet. Let me have your confidence, and I will advise you according to my experience. If you really like severe preaching, you can't do better than go in for the Doctor. He has the richest congregation in New York. Allwise, Tenant & Co., Starbuck & Briggs, Daniel Story. Those are names for you; South-street men, too, in your line. They are the pillars of Chellis's church; good men and true, if they are blue lights. Besides, there are lots of pretty girls—tight little Presbyterian saints, with plenty of cash. Their fathers can buy and sell Dr. Pratt's congregation and mine together. Yes, you are right; I wonder I did not think of it. Go in for Chellis.'

Hiram was still silent. His heightened color and severe expression showed how little he relished Mr. Bennett's conversation.

Nothing is so disagreeable to a person whose nature is not thoroughly genuine, but who claims to act from proper motives, as to have another take it for granted he is not doing so.

He did not forget a word that Mr. Bennett had said, though. Indeed, he recovered his equanimity so far as to thank him for his suggestions, and, wishing him good-day, he started for his place in South street.

Mr. Bennett watched the young man as he walked up the street (the conversation occurred in the doorway of H. Bennett & Co.'s establishment), and until he had turned the corner. 'Deep, very deep,' he muttered as he stepped inside. 'He'll be 'round one of these days, or I am mistaken.'

Meanwhile Hiram continued on his way to the store, his cheeks burning under the influence of Mr. Bennett's plain talk, but sensibly alive to the description of Dr. Chellis's church.

'Allwise, Tenant & Co., eh? and Starbuck & Briggs (Hiram had been but a few weeks in New York, and already had learned to pay that almost idolatrous deference to great commercial names which is a leading characteristic of the town); that will do. Plenty of rich girls,'—his heart began to beat quick,—'plenty of rich girls. That's the place for me.'

Strange, in this soliloquy he said nothing about the spiritual advantages to be derived under the preaching of so noted a divine as Dr. Chellis. Yet Hiram really liked strong preaching and severe discipline. For he never appropriated any of the denunciations. Feeling perfectly safe himself, it gratified him to hear the awful truths severely enforced on the outsiders.

We see, however, from this little conversation with himself, what was uppermost in Hiram's mind. Subsequent inquiries, carefully made of various persons, fully confirmed the statement of Mr. Bennett as to these little particulars in relation to Dr. Chellis's church and congregation.

Dr. Chellis himself was a person of extraordinary ability, great purity of character, and great zeal. At this period he was about sixty years of age, but he possessed the earnestness and energy of a young man. His congregation were very much attached to him, and it is true he exercised over them a remarkable influence. Many people sneered, accusing them of 'being led by the nose by their minister.' They were led, it is true, but not in that way: rather by their understanding and their affections. For, strict and stern and severe as the 'old Doctor' appeared to be, it was the *sin* he thundered against, not the individual. And those who were brought in more intimate contact with him, declared that he was, after all, a kind, tender-hearted man.

His church were devoted to him. The majority were a severe, toilsome, self-denying company—too much so, perchance; but of that I dare hazard no opinion: God knows. Like their minister, sincere, indulging in no cant; without hypocrisy, practising in the world during the week the principles they professed on Sunday to be governed by; a church deserving to be honored for its various charities (it gave twice as much as any other in the city), for the personal liberality of its members when called on to join in

public or private subscriptions, and for the exalted influence they exerted in affairs generally.

Into such a church, and among such a people, Hiram Meeker proposes to introduce himself.

His first move was to call on Dr. Chellis without any introduction, and present his credentials from the church in Burnsville, as well as an excellent letter from his minister, certifying particularly as to his religious character and deportment. He thought by going as an unsophisticated youth from the country he would make a better impression and more strongly commend himself to the Doctor's sympathy than in any other way.

I think, however, that Hiram's call was rather of a failure. He had no ordinary man to deal with. Dr. Chellis had not only a profound knowledge of human nature, but a quick insight into its various peculiarities. He could classify individuals rapidly; and he read Hiram after fifteen minutes' conversation.

The latter, not accustomed to men of the Doctor's calibre, found himself wanting in his usual equanimity. His familiar rôle did not serve, he could see that, and for once his resources failed him.

For the Doctor did not appear to be specially interested when Hiram, apropos of nothing, except as a last card, undertook, in a meek, saint-like manner, to give him an account of his early conviction of sin and subsequent triumphant conversion. Indeed, if the truth must be told, the worthy divine gave evident symptoms—to speak plainly—of being bored before Hiram's story was half finished! The latter was not slow to see this, and he found it difficult to rally.

At length he gave the Doctor an opportunity to speak, by bringing his personal narrative to a close.

'You have no acquaintances in the city?'

'I think I may say none, except in business; and my object in selecting such a church as yours is to keep up the same degree of piety which I humbly trust I maintained in my village home.'

[Pretty well, Hiram, pretty well—but you have an old head to deal with, and an honest heart: be careful.]

'To do that,' replied the Doctor, gravely, 'you must not look back to what you were, or thought you were. Be sure you are in danger when you feel complacent about yourself.'

These were awful words to Hiram, and from such a severe, grave, dignified old man.

'In danger!' That was something new. 'Of what?' Why, no thought of a possibility of danger had crossed young Meeker's mind since the day he joined the church in Hampton.

He sat quite still, uncertain what reply to make.

He was interrupted by the tones of the Doctor's voice—tones which were modified from their previous severity.

'I will take your letter,' he said, 'and at the next communion, which will take place in about six weeks, you will be admitted to membership.'

'I should like to have a class in the Sunday school,' said Hiram, breathing more freely.

'If you will speak next Sunday to Mr. Harris, the superintendent,' replied the Doctor, 'he will furnish you with one. There is a demand for teachers just at present, I heard him say.'

Dr. Chellis rose, as if Hiram had taken up enough of his time. Our hero could but do the same. He bowed and left the room.

'A pretty sort of minister that,' exclaimed he between his teeth, as he quitted the house. 'Pious! no more pious than my boot. Never listened to a word I said. I know he didn't. Is it possible I must sit under this man's preaching? I see now what cousin Bennett meant by things being got up on an entirely different basis here from what they are in the country. I should think they

were. But there is Allwise, Tenant & Co., Daniel Story. I may trust myself with such names [he did not say with such *men*]. Ah! h'm—h'm—lots of pretty girls, with plenty of cash. I'll try it. Anyhow, it stands number one. No mistake about that!

CHAPTER III.

Hiram soon learned a lesson. He discovered there were people in New York just as quickwitted, as keen, and as shrewd as he was himself. This did not alarm him. Not a bit. He was only the more ready to appreciate the truth of Mr. Bennett's remark, that he had yet much to learn.

'I see it,' quoth Hiram. 'The city gets the best of everything, by the natural course of supply and demand. Yes, it gets the best beef and mutton and fowls, and fruits and vegetables, and on the same principle it commands the best men. Well, I like this all the better. It was dull business in Burnsville, after all, with nobody to compete with. Give me New York!'

In the store of Hendly, Layton & Gibb, Hiram saw and conversed with shipmasters who were familiar with every port in the world. The reader will recollect, at school he had devoted himself to mercantile geography. Thus he had located in his mind every principal seaport, and had learned what was the nature of the trade with each. The old sea captains were amazed at the pertinence of Hiram's questions, and with the information he possessed on topics connected with their business. They could scarcely understand it. It gave them a great respect for the 'fellow,' and Hiram speedily became a favorite with them all. He used to like to go on board their ships, and chat with them there, whenever he found time. Do not suppose these were mere pleasure excursions. Hiram Meeker was forming his opinion of each one of these captains. For in his mind's eye he saw some of them in *his* employ; but which? that was the question. So by mingling with them, he learned much of the mechanical part of commerce, and he discovered, besides their different characters, who were competent and honest, and who were not altogether so.

Hiram also spent a good deal of his time conversing with Eastman, with whom he boarded. He got the latter's ideas of business and about the men they daily encountered, and Eastman could furnish a fund of valuable information, based on long experience.

Hiram all this time was indefatigable. He watched the course of trade. He endeavored to discover the secret of the success of the great South street houses. He worked, he pondered, and yet all the time served Hendly, Layton & Gibb with fidelity. Eastman became attached to him. Mrs. Eastman said the man did not give her half the trouble she expected. So you see, in certain quarters, Hiram was as popular as ever.

Meantime he had secured a seat in and joined Dr. Chellis's church. He duly presented himself at the Sunday school and obtained a fine class. From that time he never missed a service on Sunday, nor a lecture, or prayer meeting, or other weekly gathering. He even attended a funeral occasionally, in his zeal to 'wait' on all the ordinances. He was, however, exceedingly modest and unobtrusive. He did not seek to make acquaintances, but no one could help noticing his punctilious regularity and decorum. I have remarked that Hiram determined to cut off what had been a great source of pleasure—society; but he still paid the same attention to his personal appearance as before. After a while questions began to be asked: 'Who is this new comer, so constant, so devout, and so exemplary?'

'What a fine-looking fellow! I wonder who he is?' whispered Miss Tenant to Miss Stanley, one morning, as our hero passed their seats (they both had classes) to take his place with his Sunday school pupils.

'I don't know, I am sure,' replied her friend.

'I can't find any one who does. Do you know, *I* think he is real handsome?'

'So do I, if he would only lift his head up and look people in the face; he is as bashful as a sheep.'

'My little brother is in his class, and he says they all like him so much. He takes such an interest in his pupils.'

'Then I should think you could find out something about him.'

'No: his name is Meeker; that's all any one seems to know.'

'Funny name; I don't like it.'

'Nor I. Still, we won't condemn him for his name. Besides, I like his face?'

'Hush!'

Here the conversation of the two young people was interrupted by the rapping of the superintendent, and the services of the school commenced.

If young ladies of the importance of Miss Tenant and Miss Stanley begin to talk about Hiram, you may be certain it will spread through the school and into the church. *He* knew what was going on—of course he did; but only took still greater pains with his personal appearance, and became more shy and reserved and assiduously devout.

The elders of the church could not help noticing him.

The young ladies noticed him.

Heads of families observed his exemplary deportment.

Who could he be?

Dr. Chellis, meantime, did not lose sight of his new communicant. They frequently met, and Hiram was always greeted, if not with cordiality, yet kindly. Strange to say, contrary to his habit, the Doctor neglected or omitted to enter into conversation with Hiram on religious topics. He felt a repugance to doing so which he could not explain. Everything seemed so praiseworthy in Hiram's conduct, that one would suppose the worthy divine would like to engage him in conversation, as the Rev. Mr. Chase used to do at Burnsville. But a certain aversion prevented it.

When applied to for information about Hiram, the Doctor could say nothing, for he knew nothing; and so the mystery, for a mystery the young ladies determined to make of it, increased.

At last a rumor was circulated that Hiram had been disappointed in a love affair. A mischief-loving girl detailed it to Miss Tenant, whose interest in

the young Sunday school teacher gradually grew stronger, and it soon became a well-authenticated piece of history.

During this time a species of intimacy was growing up between Hiram Meeker and Hill. An odd companionship, you will say; but they seemed to get along very well together. The latter, as you may remember, was a wild, reckless fellow. He had his good traits, though. There was nothing mean in his composition, but much that was impulsive and generous. He never laid up a penny, and was always in debt. It was this unfortunate habit which had kept him so long at Joslin's. He had got in advance of his salary, and he would not quit till it was made up. When he left there, he succeeded in getting a place in a large wine and liquor house; for Hill's acquaintance was extensive, and in those days of extraordinary 'drumming,' in which he was a great proficient, his services were valuable. It was through Hill, as I have said, that Hiram got his place at Hendly's, and after that he was in the habit of looking in nearly every day on him toward the close of business hours.

I cannot precisely explain by what species of fascination this poor fellow was attracted to Meeker. Doubtless it originated in the triumphant resistance which the latter opposed to Hill's attempt on him at their first acquaintance, and his complete victory over and discomfiture of Benjamin Joslin, for whom Hill entertained a supreme contempt. There was a mystery about the sources of Hiram's power which completed the charm, and made Hill his willing subject, and afterward slave.

But what did Hiram want of Hill? That would appear more difficult to answer. He certainly did want something of him. For he encouraged his coming often to see him, and talked with him a great deal. He even lent him occasionally small sums of money. I repeat, what a droll companionship! Hill, a swearing, drinking, godless scapegrace. Meeker, a quiet, exemplary, religious, laborious young man.

Perhaps it was the rule by which opposites are attracted to each other.

Perhaps it was something else.

On the whole, I am inclined to think it was something else, on Hiram's part at least. I believe he acted, with respect to Hill, as he did with respect to everybody—from carefully considered motives. We shall see, perhaps, by and by, how this was.

Eastman used to wonder that Hiram should tolerate Hill's society. To be sure, he himself had a sort of family regard for him. But his presence always annoyed him. He even expressed his surprise to Hiram, who replied by making use of the moral argument. He was sorry for the poor fellow. He hoped to do him some good. Possibly he might be able to bring him under better influences. Certainly Hill would not harm *him*, while, on the contrary, he (Hill) might be benefited.

Hiram did not tell the truth.

Really, if he had dared to stop and inquire of himself, he would be forced to acknowledge that he did *not* want Hill to be different from what he was. Then he would not serve his purpose. To be sure, sometimes, when Hill permitted an extra strong oath to escape his lips, Hiram would fidget and look uneasy, and beg his visitor to break himself of such a wicked habit. But the secret of Hiram's power did not lie in his *moral* influence certainly, for Hill's habit of swearing did not improve, indeed it grew worse.

In this way passed our hero's first year in New York.

NULLIFICATION AND SECESSION.

We publish the principal part of the speech of Hon. R. J. Walker, against nullification and secession, made at the great Union meeting at Natchez, Mississippi, on the first Monday of January, 1833. We republish this speech from the Natchez *Mississippi Journal* of that date. Upon that speech, Mr. Walker became the Union candidate for Senator of the United States from Mississippi against Mr. Poindexter, a Calhoun nullifier and secessionist. After a three years' contest of unexampled violence, Mr. Walker was elected on the 8th of January, 1836. So distinct was the issue, that the Legislature of Mississippi declared nullification and secession to be treason. The contest was conducted by Mr. Walker by speeches in every county, with the banner of the Union waving over him, and to the music of our national airs.

We republish this speech now because it preceded Mr. Webster's great reply to Calhoun, and because its arguments are applicable to the present contest. This speech drew out Gen. Jackson's celebrated letter, heretofore published, in favor of Mr. Walker; and the speech received the cordial approval of ex-President Madison. By reference to the Washington city *Globe* of the 12th August, 1836, it will be found that, in conversation with Mr. Ingersoll, 'Mr. Madison spoke very freely of nullification, which he altogether condemned, remarking that Mr. Walker, of the Senate, in a speech he had made on some occasion, was the *first person* who had given to the public what he (Mr. Madison) considers the true view of Mr. Jefferson's language on that subject.' Mr. Webster gave the Whig arguments against nullification and secession, Mr. Walker the democratic; but they both arrived at the same conclusions:

Never, fellow citizens, did I rise to address you with such deep and abiding impressions of the awful character of that crisis which involves the existence of the American Union. No mortal eye can pierce the veil which covers the events of the next few months, but we do know that the scales are now balancing in fearful equipoise, liberty and union in the one hand, anarchy or despotism in the other. Which shall preponderate, is the startling question to which we must all now answer. Already one bright, one kindred

star is sinking from the banner of the American Union, the very fabric of our government is rocking on its foundations, one of its proudest pillars is now moving from beneath the glorious arch, and soon may we all stand amid the broken columns and upon the scattered fragments of the Constitution of our once united and happy country. Whilst then we may yet recede from the brink of that precipice on which we now stand, whilst we are once more convened as citizens of the American Union, and have still a common country, whilst we are yet fondly gazing, perhaps for the last time, upon that banner which floated over the army of Washington, and living beneath that Constitution which bears his sacred name, let us at least endeavor to transmit to posterity, unimpaired, that Union, cemented by the blood of our forefathers. The honorable gentleman who has preceded me, in opposition to the resolutions submitted for your consideration, tells us that he was nursed in the principles of '76 and '98—that these are the principles of Carolina, and that they ought to be maintained. Let me briefly answer, that the humble individual who now addresses you is the son of a soldier of the Revolution, and that from the dawning of manhood, from his first vote to his last, at all times, and upon all occasions, he has supported and will support the principles of democracy, and the doctrines of '76 and '98. But it was under the banner of the Union that the whigs of '76 and '98 achieved their glorious triumphs; and is that the standard now unfurled by the advocates of nullification? It is true, we find nullification declared in the Kentucky resolutions to be a rightful remedy—but nullification by whom? by a single State? no—by those sovereignties the several States, in the mode prescribed by the Constitution, by a declaratory amendment annulling the power under which the law was passed. This would be a remedy in fact; for it would operate equally on all the States; but can the same act of Congress be constitutional in one State, and unconstitutional in another? South Carolina declares the Tariff unconstitutional—Kentucky declares it valid; is it nullified or not? is it void or valid? The South Carolina theory gives to each State, of itself, the unlimited power to pronounce ultimate judgment against the validity of any act of Congress. If so, the Tariff must be valid in Kentucky, and void in South Carolina. Yet if the Carolina ordinance, nullifying the Tariff, be valid in that State, it is valid in every other State, and Carolina may introduce foreign imports, once landed in her own State, into every other State, free of all duty; for, by the Constitution, 'no tax or duty shall be laid on articles exported from any State.' What then

becomes of the ultimate judgment of Kentucky? Nullified by a single State; and that is the nullification of South Carolina, by which she can constitutionally, and as a member of the Union, repeal any act of Congress she may deem invalid, and prescribe her will for law throughout the limits of every other State. The Constitution of the Union would then be this: *Be it enacted*, that the American Congress shall possess such powers only as South Carolina believes they may lawfully exercise; and the whole American people be thus subjected to the government of the ordinances of a single State. Is this democracy? The truth is, every act of Congress is intrinsically void or valid, from its repugnance to or consonance with the provisions of the American Constitution; nor can the judgment of a State render void an act of Congress which is constitutional, or render valid an act of Congress which is unconstitutional. Would the judgment of a single State have rendered the alien and sedition law constitutional, or the last war unconstitutional, or would the Supreme Court of the Union have been compelled to render opposite judgment in a case brought before them, declaring the citizen of Massachusetts bound to oppose, and of Virginia to support either of these laws, as their respective States had pronounced contradictory judgments upon them? Suppose Massachusetts had not only declared the last war unconstitutional, but had passed an ordinance requiring her citizens to resist the war, to prostrate and oppose the armies of the Republic, and to aid a tyrant's myrmidons in driving the steel deeper into the bosoms of our bleeding countrymen; would the ordinance be constitutional, or would not the acts it required to be performed be treason against the Government of the Union?

It is said a State cannot commit treason; no, but its citizens may; nor would they be rightfully acquitted because sustained by the judgment of a single State. If each State possesses an equal right to pass ultimate judgment upon any act of Congress, and two States enact ordinances directly contradictory to the same law, do they not, like the meeting of equal forces in mechanics, nullify each other? or must the same law be enforced in one State and disregarded in the other? Not without violating the Constitution; for if New York pronounces the Tariff valid, and South Carolina declares it void, and suits are instituted in each State on bonds given for the payment of duties on imports introduced into each, must the duties be collected in one State, but not in the other? This would be to set at open defiance those clauses of

the Constitution which declare that all imposts 'shall be uniform throughout the United States,' and that 'no preference shall exist in the collection of revenue in the ports of one State over those of another.' Upon an appeal from the decisions by the Federal district courts of New York and Carolina, in the suits on the bonds for these duties, how would the Supreme Court of the Union decide the question? by enforcing the payment of the bonds given in Carolina? No; for that State had exercised the right of ultimate judgment, and pronounced the law invalid; would the court decide against the validity of the bond given in New York? No; for that State, in exercising its equal right of pronouncing ultimate judgment, had declared that the law was valid. Or would they enforce the payments of the duties in New York and not in South Carolina? This, we have seen, would violate both the clauses of the Constitution last quoted. The only remaining judgment would be, to disregard the edict of a single State, and to enforce the payment of the duties in both States, or in neither, as the act of Congress might or might not be repugnant to the provisions of the Constitution. If Kentucky and Virginia thought they possessed the power in regard to the alien and sedition laws now claimed by Carolina in regard to the Tariff, where is the ordinance nullifying those laws? Or would they be nullified by resolutions expressing only the judgment and opinion of the Legislature in regard to the constitutionality of the law, as if the Legislature, one department only of the Government of a single State, could annul all the laws of the Union? Even South Carolina does not urge a doctrine so monstrous, for she declares this can be done solely by the 'delegates' of the State in 'solemn convention.' South Carolina finds, then, in the practice of Virginia and Kentucky, no warrant for the doctrine of nullification. She finds neither ordinance, nor test oaths, nor standing armies, nor packed juries, nor secession, or threats of secession, from the Union. They find Mr. Jefferson in that great emergency protesting against 'a scission of the Union,' in any event; and the ordinance of South Carolina would have received his unqualified abhorrence. But, if we are asked to surrender the principles which alone can preserve the Union, on the assumed authority of Mr. Jefferson and Mr. Madison, of Kentucky and of Virginia—why do not the advocates of nullification tell us that Mr. Jefferson, in 1821, as appears by his printed memoirs, emphatically denied the right of a State to *veto* an act of Congress; and Mr. Madison, a surviving founder of the Constitution, and framer of the Virginia resolutions, unequivocally denounces the doctrine of

nullification? And are they not safer guides than Messrs. McDuffie, Calhoun, and Hamilton, the former of whom wrote and published in 1821, and the latter deliberately sanctioned, in a laudatory preface, a series of essays, denouncing this very doctrine of nullification as the '*climax* of political heresies'? Why do not those who would look to Kentucky and Virginia as the only safe expositors of the Constitution inform us also, that the great and patriotic commonwealth of Kentucky is indignantly repelling the charge that nullification ever was sustained by her authority? Why do they not point to the unanimous resolution of the Virginia Legislature in 1810, declaring in the very case of a nullification, by a law of Pennsylvania, of a power of the General Government, that the Supreme Court of the Union is the tribunal, 'already provided by the Constitution of the United States, to decide disputes between the State and Federal' authorities?' (See 'Sup. Rev. Code of Virginia,' page 150.) These resolutions, directly affirming the supremacy of the judgment of the Supreme Court of the Union over the laws and judgment of a State, were adopted by Virginia within a few months after the promulgation by that tribunal of its decree enforcing the authority of the Union against the nullifying edict of a sovereign State. Virginia did more: she not only affirmed the power of this tribunal, and sanctioned its decree, but spoke of it in terms of the highest eulogy, and scouted indignantly the proposition of Pennsylvania to vest the right of deciding questions of disputed power and sovereignty in some other tribunal than the Supreme Court of the Union. The same proposition was treated with the open or silent contempt of every State in the Union, South Carolina among the number; and Pennsylvania receded, though she had passed a law commanding the Governor of the State to prevent by an armed force the execution of the process emanating under the authority of the Constitution of the Union—though she placed her act upon the same ground as Carolina, that the power exercised in that case had never been granted by the Constitution to any department of the General Government. Thus ended nullification in the keystone of the arch of the Union. That State, which has ever sustained the Democracy of the South, in the election of Jefferson, of Madison, and Monroe, and the cheering voice of whose public meetings first called out as a candidate for the presidency the patriot Chief Magistrate who now upholds the banner of the Union, submitted to the law of the Union. And is nullification constitutional in Carolina, but unconstitutional in Pennsylvania? Is the one a *sovereign* and the other a *subject* State? Shall

the one submit to the laws of the Union, and not the other? Why, sir, if the people of Pennsylvania could sustain a distinction so odious, the very shades of their ancestors would rise from the battlefields of the Revolution, from Paoli and Germantown, and call their children bondmen of Carolina, vassals and recreant slaves! I speak not now of the whiskey insurrection, when, at the order of Washington, the militia of Virginia and of other States moved against the people of Western Pennsylvania, under the command of the Governor of Virginia and Carolina, and the nation approved the deed; but I speak of the period, during the presidency of Mr. Jefferson, when the State of Pennsylvania passed a law nullifying the powers of the General Government, under her reserved right to construe the Constitution at her pleasure, when she was compelled to yield to the laws of the Union, and her armed force, assembled by her Governor under an edict of the State, was ineffectual. Nullification was condemned by Jefferson and Madison, by Virginia and Carolina, and the people of the Union; and must one State nullify and not another? No, sir; all or none of the States must submit to the supremacy of the Government of the Union; and if Carolina can successfully resist that Government, will any other State submit to a power which is thus insulted, disgraced, defied, and overthrown by the edict of a single State, and which acts and exists only by its permission? No, sir; one successful example of practical nullification by a State destroys the Union; for it demonstrates that the Government of the Union has no power to execute its laws, or preserve its existence—*that it is not a government*, or that its powers are written in sand, to be swept away by the first angry surge of passion that beats over them. Such was the prediction of the despots of Europe, too soon to be fulfilled if the fatal ordinance of Carolina is sustained, and the flag of the Union struck down by the imperious mandate of a single State. Let us, then, now teach those despots, who, pointing with exultation to our dissensions, and anticipating our downfall, proclaim that man is incapable of self-government, that the Union can and shall be preserved, that we know that 'Union and Liberty are inseparable,' that the name and privileges of American citizens are entwined with the very ligaments of our hearts, that they are our birthright, the glorious inheritance purchased by the blood of our forefathers, and never to be surrendered by their sons; that we will all rally round the banner of our country and sustain it, upon the ocean, on the land, in war and in peace, against foreign or domestic enemies; or, if it must fall, it will be upon the graves of Americans

preferring death in its defence to life without it, when the iron chains of despotism would bind them as slaves to that soil which they would tread only as freemen.

It is said that the Government of the Union is but a league formed by sovereign States. Did the States form it as governments? if so, which or all of the departments of any State subscribed or ratified the compact? or could the government of any State change the organic law, unless by a power given them by the Constitution, or surrender the sovereign attributes of power, and unite the people in a new government with other confederates? No; the government cannot abolish or change its form or transfer its powers to another government: this highest act of sovereignty can only be performed by the people of a State; and it was by the people of every State, acting in convention as separate and distinct communities, that the Constitution was ratified and rendered binding upon the people of all the States; and, in the language of Mr. Jefferson, the Government thus formed was 'authorized to act immediately on the people and by its own officers.' Was it then a league only? No, it was what its framers, the people, as we have seen, and not the governments of all the States, called it, a 'Constitution'—a 'Government;' and it is an overthrow of fundamental principles to say that a 'constitution,' a 'government,' which is made 'the supreme law' in all the States, could be created by any power less than the people of the several States, but as the people of the States, and not in their aggregate capacity. Whatever may be the theories of the advocates of consolidation on the one hand, or nullification on the other, this is certainly a true history of the manner in which the Government of the Union was formed. The Constitution itself expressly declares that it could be created only by 'the ratifications of the conventions of the States;' and this Constitution was expressly rendered 'the supreme law of the land,' 'anything in the constitution or laws of any State to the contrary notwithstanding,'—as if the government of a State could render their own constitution subordinate to another constitution. A return then having taken place, in forming the Constitution, to the people of all the States, as the primary fountain of power, they might have vested all their sovereignty, or but a part of it, in one government; and they might have given, in either event, the same power which exists in ordinary governments of enforcing its laws when sustained as constitutional by all its departments, subject only to the natural

rights of the people to revolutionize the government in case of intolerable oppression. Certain important powers and attributes of sovereignty the people of the States gave to this new government. They made this government 'supreme' in the exercise of its powers in all the States. They gave this government the sole power 'to declare war.' Did the State then remain an absolute sovereign in that respect, and with absolute power to judge if the object of the war was constitutional, and annul the declaration? This new government had the sole power to lay and *collect* 'duties on imports;' did each State remain an absolute sovereignty in this respect, and with absolute powers to judge if the object of the duties was constitutional, and annul the law? The General Government was the only sovereign as regards these powers; but a single State, having none of these powers, is made the absolute judge whether they can or cannot be exercised: then no powers have yet been granted to the General Government by any State, if each possesses the right to interdict the exercise of any of these powers. But, could this General Government exist without the authority to give one uniform effect to the execution of its powers in all the States? Created with all the organs of a government, legislative, judicial, and executive, may it enact, but not expound, or enact and expound, but not execute? Must it stop at the boundary of each State, and ask what power it possesses, and act upon the contradictory responses of each State? Must it possess one set of powers in one State, and another and wholly opposite set of powers in another State? May it lay a tariff in one State, and not in another, and yet this tariff required to be uniform in every State? Is it one constitution, and susceptible of one only true construction, or twenty-four constitutions, with twenty-four various and contradictory constructions, and all right, because all pronounced by absolute sovereigns exercising the uncontrolled power of ultimate judgment? Has it any powers, and what are they? Will Mississippi submit this question to Massachusetts or Carolina, or is a government created whose powers cannot be ascertained? Must anarchy govern? Can there be no decision, or is that of a single State, or of a small minority of the States, to sweep away the legislation of a majority, or two thirds of the States? According to the new theory, each State has the constitutional power in the first instance, and one fourth in the last resort, to judge what powers each State may exercise, and the other States must submit. Now, this is impossible, where the legislation of the two States is contradictory; and, if possible, is not a mere negative, but a positive power. It is a government

without limitation of power, in a single State, aided by one fourth of the States—a government by which the minority may control the majority in all cases whatsoever. Thus, Carolina frames any law or ordinance she thinks she may lawfully do in the exercise of her reserved rights. She gives clearances for vessels, for instance, to introduce all imports free of all duties. When once introduced into Carolina, she has, or claims and exercises the right under the Constitution of introducing these imports free of all duties into every other State in the Union. Two thirds of the States have passed an act of Congress imposing certain duties on foreign imports: as separate States they can pass no such laws, having surrendered that power in the Constitution of the Union. Can Carolina compel them to receive all foreign imports free of all duties? Yet she says this is one of her reserved rights, and she may forever constitutionally exercise it, in defiance of an act of Congress passed by two thirds of the States. Such a government would be an oligarchy of the most odious and detestable character. The right of the people of any State, or of any portion of them, to meet intolerable oppression by revolution is certain; but, in Mr. Jefferson's rough draught of the Kentucky resolutions (now attempted to be substituted for his deliberate conclusions as contained in the resolutions themselves), does he advocate nullification by a single State as a *constitutional* remedy, by a State remaining in the Union and submitting only to such laws as it deemed valid. No; it was not as a *constitutional*, but as a 'NATURAL right,' that Mr. Jefferson spoke of nullification by the people of a State. I say the people, for Mr. Jefferson well knew that the '*natural* right' of a State to nullify, as an artificial body politic, would be a contradiction in terms. This '*natural* right' is a *personal*, as contradistinguished from a *State* right; it is inalienable—it is neither given nor reserved by constitutional compacts—it exists in citizens of every State, the minority as well as the majority, and not in the government of any one State. But the exercise of this right is *revolution*—it is a declaration of independence—it is *war*, and appeals to the sword as its umpire. Let no State, then, claim to stand on the basis of the Constitution of the Union, while stripping it of its vital powers, or setting up its will for law. No, the ordinance of Carolina is not a peaceful, constitutional remedy: it is a nullification of the Government itself, sweeping away its revenues, its courts, and its officers; it is a repeal of the Union; it is despotic; it is revolutionary; it is belligerent; it is a declaration of war or separate independence. It looks beyond a repeal of the Tariff; for, whether the Tariff

be repealed or not, it asks to engraft the doctrine of nullification as a permanent feature of the Constitution, applicable in every case in which any State may deem any act of Congress unconstitutional. Then each one of the States may take up the volumes containing all the acts of Congress, and repeal them all by one sweeping edict of nullification; for there is no limitation to the exercise of the power but her own will. It is said no State will abuse the power; but if a majority of the States, by their representatives in Congress, may abuse delegated powers, is there no danger that one of these same States, by their representatives at home, may mistake the nature of their powers, and endanger the Union by a usurpation of power? Or do the same people, and voting at the same period in any State, elect men to Congress who will violate, and to the councils of the State, who will uniformly preserve the Constitution? A State declared the last war unconstitutional: must the war be nullified, or, by the new theory, suspended, till, by a slow and tedious process, its constitutionality be affirmed by three fourths of the States? But, in the mean time, all hostile operations must cease, our army be disbanded, our navy recalled, and no further supplies decreed of money, ammunition, or men. And when one State thus nullifies any act of Congress, she is not required to be sustained by the vote of any other State: the one fourth are only required to refuse to act—to remain neutral—if they consider the act of Congress inexpedient, although they believe it constitutional. Suppose the New-England States, after the war was pronounced unconstitutional by a single State, had refused to call a convention to amend the Constitution, or, if called, to grant the disputed power; then the war must have been abandoned, the minority must govern, and our country be disgraced, our seamen permitted to be pressed from the very decks of our vessels into foreign service, and the maritime despotism of Britain established without even a struggle in defence of our liberties. Shall opposition to the Tariff betray us into the support of doctrines so utterly subversive of the Constitution, and inconsistent with the existence of any government of the Union?

Once this power was threatened to be assumed by Massachusetts, now by South Carolina, and how and by what State it will next be exercised, or what vital power it may next strike from the Constitution, it is impossible to predict; but, if permitted in one State, it will be exercised by all, till not a vestige remains of the Constitution of the Union. Suppose the Tariff

repealed by Congress, nullification may annul the repealing law. Louisiana may, in the exercise of her right of ultimate judgment, declare that the repealing law is unconstitutional, upon the pretext that it destroys rights vested by the first law and violates the plighted faith of the Government, insist on the collection of duties under the first law, pass her ordinance, array her State officers against those of the Union, and thus destroy the commerce of Mississippi, and of all the Western States, or compel the collection of the present duties. Or she may say that, if Congress possesses no power to lay duties which will operate an incidental protection, Louisiana possesses the reserved right of imposing duties for that purpose; that each State possessed it before it became a member of the Union; that duties for revenue only can be collected by the General Government, and that the residuary power to lay duties for protection is one of the powers of a sovereign State; that she will exercise it, and impose protecting duties on imports, and thus we shall have various and conflicting State tariffs from Maine to Louisiana (the very object which the Constitution was designed to prevent); but if Louisiana alone adopt the measure, the commerce of the West is prostrate at her feet.

It is in the name of liberty and to protect minorities, that nullification professes to act; while in its first ordinance it sweeps away the dearest rights of a large minority of the people of Carolina, and binds the freedom of conscience in adamant chains. It deprives American citizens of that last and hitherto sacred refuge from oppression, a trial by an impartial jury, and requires the very judges upon the bench and jurors within the box to be sworn to condemn the unhappy man whose only crime was this: that he claimed the Government of the Union as his birthright, and acknowledged the duty of obedience to its laws. Such are the opening scenes of nullification; and, if not arrested, where or how will the drama close? In all the horrors of civil war. Turn your eyes upon the scenes of the French Revolution, and behold them about to be re-acted within the limits of a sister State. Already nullification calls upon its twelve thousand bayonets; friend is rising against friend, and brother against brother, under the banner of Carolina on the one side, of the Union on the other; the inflammable materials are ready, the spark approaches, the explosion may soon take place, and the genius of liberty, rising in anguish from the bloodstained fields of Carolina, spread her pinions, and wing her way forever from a

world, on one side of whose waters despotism reigns triumphant, and, upon the other, anarchy, with one foot upon the scroll of the Declaration of American Independence, and with the other upon the broken tablet of the Constitution of the Union, shall wave that sceptre, whereon shall be inscribed the motto, never to be effaced: 'Man is incapable of self-government.' Yes, this is the best, the brightest, the last experiment of self-government: universal *freedom* or universal *bondage* is staked on the result of the success or failure of the American Union; and as it shall be maintained and perpetuated, or broken and dissolved, the light of liberty shall beam upon the hopes of mankind, or be forever extinguished, amid the scoffs of exulting tyrants and the groans of a world in bondage. Rising, then, above all minor considerations, and lifting our souls to the contemplation of that lofty eminence on which Heaven itself has vouchsafed to place the American people, as the only guardians of the hopes and liberties of mankind, let us act as becomes the depositaries of that sacred fire which burns on the altars of the American Union, and resolve that this Union shall be preserved, all whole and inviolate, as we received it from the hands of our forefathers.

But, if nullification is not a constitutional remedy, we are told that *secession* is; and a few, who deny the one, admit the other; and our venerable chief magistrate (Jackson) has been proclaimed as a Federalist, because he denies the right of secession; and many of his supporters, although some may not concur in every argument by which he arrives at his conclusions, but concur in the conclusions themselves, are visited with a similar denunciation. Sir, the President is one of the fathers and founders of the Democratic party—one of its earliest and most steadfast supporters, in defeat and triumph, in war and in peace, in sunshine and in storm. In the Senate of the United States he voted against the alien law, and was a zealous advocate of the principles which resulted in the election of Mr. Jefferson, and the great political revolution of 1800; and if any one man has done more to support all the just rights of the States than General Jackson, that man is not known to me. It is now nearly ten years since I had the honor to propose the name of this illustrious patriot to the first meeting of a portion of the Democracy of Pennsylvania as a candidate for the presidency, and I will not hear him denounced as a Federalist without, at least, an effort in his defence. Who made the right of secession as a constitutional right of every State an article

in the creed of the Democratic party, and by what authority? By what reasoning is nullification denounced, and secession supported, as a constitutional remedy? If there be any real difference, the former is check, and the latter a check-mate, to the movements of the Government of the Union. The same reasoning demonstrates the fallacy of nullification or secession, with equal clearness and certainty. A State cannot nullify a law of the Union, because the *Constitution* and *laws* of the State are made *subordinate* to the Constitution and laws of the Union, by a compact to which the people of each State were one party, and bound themselves to the people of all the other States, as the other party. One State cannot change the compact, or any of its terms or provisions, yet it may rescind the compact at pleasure! It would be abuse of language to call such an instrument a *compact*, because it would be obligatory upon none. Without the constitutional right to nullify a law of Congress by the ultimate judgment of the State against it, how could the constitutional power of secession arise? It is said, from a violation of the Constitution of the Union by the General Government; but if a State has not, as the opponents of nullification admit, any right to pass ultimate judgment on the constitutionality of an act of Congress, how can it make the supposed violation of the Constitution by the General Government the basis of the act of secession? The preamble of the ordinance on which the State would rest its act of secession, by asserting the unconstitutionality of an act of Congress, would be swept away by the non-existence of a power in a single State to pronounce ultimate judgment upon the acts of the Government of the Union; and the preamble and ordinance of secession would fall together. Thus, when Carolina, in her ordinance, first declares certain acts of Congress unconstitutional, and proceeds, with the same ordinance, to nullification first, and then to secession, we deny her constitutional right to nullify or secede for the same reason; because the right declared by her ordinance to render an act of Congress unconstitutional by the judgment of a single State is a usurpation of power. Governor Hayne, of Carolina, in his late proclamation, inquires if that State was linked to the Union 'in the iron bonds of a perpetual Union.' These bonds were not of iron, or Carolina would have never worn them, but they are the enduring chain of peace and Union. One link could not be severed from this chain, united in all its parts, without an entire dissolution of all the bonds of union; and one State cannot dissolve the union among all the States. Yet Carolina admits this to be the

inevitable consequence of the separation of that State; for, in the address of her convention, she declares that 'the separation of South Carolina would inevitably produce a *general dissolution of the Union*.' Has the Government of the Union no power to *preserve itself from destruction*, or must we submit to a 'general dissolution of the Union' whenever any one State thinks proper to issue the despotic mandate? It was the declared object of our ancestors, the hope of their children, that they had formed 'a PERPETUAL Union.' The original compact of Carolina with her sister States, by which the confederacy was erected, is called 'Articles of Confederation and *perpetual* Union.' In the thirteenth article of this confederacy, it is expressly declared that 'the Union shall be *perpetual*;' and in the ratification of this compact, South Carolina united with her sister States in declaring: 'And we do further solemnly plight and engage the faith of our respective constituents' that 'the Union *shall be perpetual*;' and may she now withdraw this pledge without a violation of the compact? By the old confederacy, then, the Union was *perpetual*; and the declared object of the Constitution was to form 'a more perfect Union' than that existing under the former confederacy. Now, would this Union be more perfect under the new than the old confederacy, if by the latter the Union was perpetual, but, under the former, limited in its duration at the will of a single State?

The advocates of secession claim the constitutional power for each State to annul, not only any law which the State may deem unconstitutional, but to abolish the Constitution itself as the law of the State. Now, by this Constitution, Carolina granted certain powers to the General Government: may she constitutionally alter or revoke the grant, in a manner repugnant to the provisions of that Constitution? That instrument points out the mode in which it may be changed or abrogated, and by which the several States may assume all or any of the powers granted to the General Government, namely, by the conjoint action of three fourths of the States. What, then, are the powers reserved to the State? The ninth article of the Constitution of the Union declares that 'the powers not delegated to the United States by the Constitution, nor prohibited by it to the States, are reserved to the States respectively, or to the people.' Then the powers delegated to the United States were not reserved to the States or to the people. What is the meaning of the clause 'or to the people,' as contradistinguished from 'the States'? Does it mean that any of this mass of undefined powers, but embracing all

not granted to the General Government, was reserved to the people of the United States in the aggregate? Then there would exist, and does now exist, a consolidated despotism. No, it was to the *people* of each State the reservation was made. Then it follows, as a necessary consequence, that none of the powers granted to the General Government were reserved either to the States or the people of any State. That is, so far as the people of any one State had granted, by their own separate constitution, to the State government any powers not delegated to the General Government, the government of the State might exercise these powers, and so far as any of these undelegated powers were not granted to the State government, by the people of the State, they were reserved to the people of each State. Now, one of the powers reserved to the people of each State is to change their form of State government, and resume the powers granted by it. But we have seen that neither the government or people of a State could resume 'the powers delegated to the United States,' because it was not one of the rights reserved to either. What! I am asked, cannot the people of a State abolish their form of government? Yes, in two modes: one in accordance with the Constitution, and the other by a revolution. Could the people of Carolina or Mississippi change or abolish their State constitution, except in the mode prescribed by that instrument, unless by a revolution? And the same power, the people of Carolina, that formed for them their State constitution, ratified and rendered obligatory upon them the Constitution of the Union; and can the one and not the other be abolished, except by a revolution, in any other mode than that prescribed by the Constitution? No; the people of Carolina, and of all the States, as distinct communities, in ratifying the Constitution of the Union, rendered it binding upon the people of every State, by the declaration that 'this Constitution shall be the supreme law of the land, and that the judges in every State shall be bound thereby, anything in the Constitution or laws of any State to the contrary notwithstanding.' Here we see the distinction between the State and the people of the State again recognized and confirmed, and the 'State,' by its 'laws,' and the people of the State, by the formation of a constitution, expressly prohibited from arresting the operation of the Constitution of the United States, as 'the supreme law of the land,' 'in every State.' If Carolina secede, she must form a constitution, by which she will assume the powers granted to the General Government, and vest them in the government of the State. Here she would be met by the former act of the people of Carolina, declaring that they had

abandoned the power to form for themselves a constitution by which the Constitution of the Union would cease within their limits to be 'the supreme law of the land.' Nor did the framers of the Constitution mean to say only that the then existing Constitutions of the States ratifying the compact should be subordinate to the Constitution of the Union; for then, also, only the existing laws of any State were required to be subordinate to the Constitution of the Union; but both are placed on the same basis. The power of a State to nullify by its laws, or secede by forming a new constitution, are both denied in the same clause and sentence of the American Constitution. The language is clear, that the Constitution of the Union shall be 'the supreme law of the land,' and 'binding in every State,' 'anything in the Constitution or laws of any State to the contrary notwithstanding.' The terms are '*shall be*;' it is the language of command, it is prospective, it was binding when subscribed, now, and forever. Or, was Carolina never bound by this compact, and might she, the very day after it was ratified by her people, disregard it altogether, secede, and establish a constitution directly repugnant to the Constitution of the Union? If so, written constitutions are worse than useless; they are not obligatory, there is no penalty for their violation; obedience to them cannot be enforced; there is no government but that of opinion, fluctuating and uncertain, undefined and undefinable, which is paramount to the fundamental law. This is what the *despots of Europe* call our government, and why they *predict* its downfall—a prediction now in the course of fulfilment, if these anarchical principles can be recognized as the doctrines of the Constitution.

There is no difference between the doctrines or acts of Jefferson and Jackson on this subject. Both admit nullification or secession as a revolutionary measure; and the new doctrine of suspending a law by a nullifying edict finds not the remotest support from Mr. Jefferson. In his celebrated draught of the Kentucky resolutions, so much relied on by Carolina, we have seen, he speaks of these powers of the people of any State as 'a *natural* right,' and so is revolution; and the cases to which he refers are such as render a revolution unavoidable, namely, if Congress pass an act 'so palpably against the Constitution as to amount to an undisguised declaration that the compact is not meant to be the measure of the powers of the General Government.' Is there now such a case? if there is, revolution is justifiable. Why then ask any other remedy than revolution for a case where

revolution would be unavoidable? And SECESSION IS REVOLUTION. But did Mr. Jefferson mean to say that whenever any State should place its laws or Constitution, by nullification or secession, in opposition to the laws of the General Government, that the power of the General Government must not be exerted? The very reverse. The act of Congress of the 3d of March, 1807, signed and approved by Mr. Jefferson as President, expressly authorizes the President of the United States to 'employ such part of the land and naval force of the United States as may be necessary' to execute 'the laws of the United States.' Does this mean, as General Hayne tells us in his proclamation, to execute the laws against insurgents not sustained by any law of the State? No; this act was passed at the very time when Pennsylvania was proceeding, by virtue of a law of the State, to execute, by an armed force, the mandate of the State in opposition to the mandate of the Federal authorities; and the officer of Pennsylvania, acting under the mandate of the Governor and a positive law of the State, was condemned for executing a law of the State opposed to the mandate of the General Government, and only escaped punishment by the pardon of President Madison: and thus falls the very basis of the doctrine of nullification. Here is a commentary by Messrs. Jefferson and Madison, demonstrating their entire concurrence with our present Chief Magistrate. And, if any further evidence of Mr. Jefferson's views were wanting, it is to be found in his letters, already referred to, protesting against a separation of the Union, and denying the right of a State to 'veto' an act of Congress; and in many other letters to be found in his memoirs, insisting upon the power even of the old confederacy to exercise 'COERCION over its delinquent members,' the States. 'Compulsion,' he says, 'was never so easy as in our case, where a single frigate would levy on the commerce of a State the deficiency of its contributions; nor more safe than in the hands of *Congress*, which has *always* shown that it would wait, as it ought to do, to the last extremities, before it would exercise any of its powers which are disagreeable.' Here, then, we find Mr. Jefferson most distinctly admitting the power of Congress under the old, as in 1807 he admitted under the present confederacy, to *compel a State* by FORCE to obey the laws of the Union. Why, then, is General Jackson denounced as a tyrant, for doing that which his oath and the Constitution compel him to do? Suppose any State, by its ordinance, should arrest the passage of the mail through their limits, upon the pretext that the law was unconstitutional; the acts of Congress place at the disposal

of the President the militia of any one or all of the States, or 'the land or naval force of the United States', to *execute the law of the Union in every State, by whomsoever resisted or opposed*. The Constitution and his oath command him to execute the laws; he must execute them, and the mail must pass on, though the edict of a single State should attempt to arrest it by nullification or secession. Such, too, was the opinion of Mr. Jefferson; and that illustrious patriot would have laid his head on the block, and blessed the hand that severed it from his body, rather than sever the Union by the promulgation of the doctrines now ascribed to him. What are the consequences of this right of a State to secede from the Union?—this right of revolution, without the power of the General Government to *preserve the Union*? Any one State may arrest, to-morrow, the mail of the Union, and its passage from State to State, and refuse it a passage forever. Pennsylvania, a central State, may separate the North from the South, prevent all intercommunication, render our country a republic divided and indefensible. Louisiana, purchased by taxes imposed upon the people of all the States, may secede and establish a separate and independent government, lay protective or prohibitory imposts on the imports and exports of this State and of the West, carried through her ports and the outlets of the Mississippi. She might say, I will protect my own cotton planters, by prohibitory duties on the cotton of Mississippi or the West, or the imports designed to be exchanged for it, shipped through my ports or through the outlet of the Mississippi: it is my interest to do so; for thus I can deprive the cotton planters of Mississippi and the West of a market; thus compel them to abandon the culture of that staple, and sell my own cotton at a higher price. Louisiana asserts no such doctrines; but, if she did, could Mississippi, could the West admit them? and, in the last resort, would not the Government *force* a passage for our imports and exports by the sword? Yes; for as well might you take the heart from the human body and bid it live, as sever Louisiana from the States that border on the Mississippi, and bid these States to prosper. No; Louisiana holds the outlet of that stream through which the life blood of their commerce and industry must forever flow; and we never could admit her right to secede from the Union, and dictate the terms on which we should use the outlet of that stream, whose banks were destined by heaven itself as the residence of a united people. Not only Louisiana, but State by State that borders on the Atlantic or the Gulf, might secede, seclude the West from the ocean, and render them the

tributaries of the seaboard States, by laying prohibitory duties on their imports and exports. Could we submit to this? *Not while the West contained a gun to use, or a man to shoulder it.*

And may Carolina secede and establish an independent government? Did she establish her own independence? No, it was achieved by the arms and purchased by the blood of Americans, with the banner of the Union floating over them. I know the valor of Carolina, that, man to man, she is invincible; but, unaided and alone, she would have fallen in the Revolution. She would have fallen gloriously, her soil would have drunk the blood of her children; but still she must have fallen in the unequal contest. When Carolina was made the battlefield of the Revolution, from the very rock of Plymouth and the heights of Bunker Hill, from Pennsylvania, from Virginia, American citizens flew to her rescue. Side by side with Carolina's sons they marched beneath the banner of the Union; they fought, they conquered; Carolina was redeemed from bondage, but upon her many and well-fought fields was mingled the blood and repose the ashes of our common ancestors, the pledges of our Union in victory and in death.

Shades of these departed patriots! arise, and say to the sons of Carolina, it was the Union that made you free. Without it, you would yet be subjects, colonial vassals, and slaves; without it, the chains are now forging that will bind you to the thrones of despots. And could we stand with folded arms, and behold the Union dissolved? Could we see the seventeen thousand freemen of Carolina, who cling with the grasp of death to the banner of the Union, deprived of their privileges as American citizens, proscribed, disfranchised, expelled from all offices, civil and military, driven by glittering bayonets from the bench and the jury box, tried and convicted by judges and jurors sworn to condemn, attainted as traitors, torn from the last embraces of wives and children, consigned to the scaffold or the block, or immured within the walls of a dungeon, where the light of heaven or liberty should never visit them, with no consolation but their patriotism, and no companions but their chains? And, gracious Heaven, for what? Oh! Liberty, when was thy sacred temple profaned by deeds like this? Thy martyrs suffered only for clinging to the banner of the American Union. And could we see them torn from around that sacred banner, and move not to their rescue? No; the glow that beams on every countenance, the patriot's answer that speaks from every throbbing breast, proclaims that, as in '76 our fathers

marched to free their sires from tyrants' power, so would their children go, to save from death or bondage Carolina's friends of union—with them, beneath the standard of our common country, to die or conquer.

Citizens of Mississippi, to you the address of the nullifying convention of Carolina makes a special appeal. It asks, if Carolina secedes from the Union, 'Can it be believed that Georgia, Mississippi, Tennessee, and even Kentucky would continue to pay a tribute of fifty per cent. upon their consumption to the Northern States for the privilege of being united to them, when they could receive all their supplies through the ports of South Carolina, without paying a single cent for tribute?' To this question, Georgia has already answered, by expressing her 'abhorrence' of the doctrine of nullification, her firm resolve to adhere to the Union. Tennessee has made the same response. Kentucky, in a voice of thunder, answers, *No*, we will preserve the Union as it is. And will Mississippi receive the bribe thus offered to dissolve the Union? What is it? The privilege of exchanging our exports for imports free of duty, in the ports of Carolina; and then would Carolina pay the taxes to raise and maintain an army, or a navy, and protect our commerce? But if she could, nature pronounces the project impracticable. Our commerce must flow through the outlet of the Mississippi; and how would our exports reach the ports of Carolina—how would our imports thence be received? Through the outlet of the Mississippi? No, that outlet and its ports would then be in the hands of Louisiana—in that event, to us a hostile foreign government, from which we had severed ourselves. For let it not be forgotten that Louisiana is not even invited to join this new confederacy; and if she were, is announcing her unalterable determination to adhere to the Union as it is. Then, through the outlet of the Mississippi our commerce could not be carried on with the ports of Carolina; for Louisiana, as we have seen before, would meet and stop our exports and imports with prohibitory duties. Would we move up the Mississippi or Ohio to reach the ports of Carolina, or any other market? There we would find the confederates from whom we had severed; we would find a foreign government, and prohibitory duties would exclude our access to Carolina's ports in that direction. How would we reach them? The only other route, if Georgia and Alabama would grant the boon for Carolina's benefit, would be to pass through those States by land to Charleston, with our cotton, and return by land with the imports received in

exchange. A trip of one thousand miles by wagon road with cotton! The entire value of the crop would not pay for its transportation. Is this the proposition of Carolina? What is the only commerce we could carry on with her? By abandoning the culture of cotton upon our fertile lands, for the benefit of Carolina, and our planters all becoming drovers of horses, mules, and cattle, to exchange for her imports, and return with them, packed on the number unsold of our mules and horses. And are these the benefits for which we are asked to dissolve the Union, and place the channel of the Mississippi above and below, and its outlet, in the hands of a foreign government, denying a passage ascending or descending, to our imports or exports, and excluding us from the ocean altogether? If Carolina's scheme were practicable, Mississippi would not sell the Union for dollars and cents; but though the scheme might be beneficial to Carolina, by stopping the culture of cotton on our fertile soil, to the people of this State it is ruin immediate and inevitable. The remedy Carolina proposes to us for the Tariff, is worse than the disease. The disease is not mortal—it is now in a course of cure; but Carolina's remedy is death—it is suicide; for the *dissolution of the Union is political suicide*.

A Southern convention is proposed, of the States of North and South Carolina, Tennessee, Virginia, Georgia, Alabama, and Mississippi. If the object be a confederacy of these States, without Louisiana and the Western, Middle, and Northern States, if patriotism, or love for the Union were insufficient to restrain us from attempting this fatal measure, we have seen that it would blast forever the fortunes of the planters of Mississippi. But what States will unite in this convention? Georgia has disavowed the act of the self-constituted, self-elected minority convention that acted in her name. The history of Virginia speaks in the voice of indignant rebuke to all those States that assemble sectional conventions. North Carolina, unassuming, but steadfast in support of the Union, will enter into no such convention. Alabama, if her public meetings and journals and her chief magistrate speak the voice of the State, will send no delegates. Tennessee, brave and patriotic, devoted to the Union, and sustaining its banner in war and in peace, meets the proposition with a decided refusal. I imagine, then, our delegates would return without finding this Southern convention. I am opposed to all sectional conventions. We have had one such convention, and, whatever the secret motives of its members may have been, the very

fact that it was a sectional convention, that it was believed to be convened to calculate the value of the Union, that it was supposed to have in view an Eastern confederacy, has sealed the doom of its members and projectors. And when the calm shall follow the storm, a similar fate awaits all who will go into this Southern convention. I trust there never will be another partial convention, Northern, Southern, Eastern, or Western; for, whether assembled at Hartford or Columbia, they are equally dangerous to the Union of the States. They create and inflame geographical parties. Could the North, assembled in convention, have that full knowledge of the situation and wants of the people of the South, as to legislate for them, and propose ultimatums to which the South must submit, or leave the Union? Could the South possess that full knowledge of the situation and wants and interests of the people of all the other States, as to enable them to dictate the terms on which the Union should be governed or dissolved? No; it is only in a meeting of all the States, in Congress or convention, that that knowledge of the wants and interests of all, and that fusion of sentiment and opinion, and spirit of concession, can exist, in which the Constitution was framed, and all its powers should be exercised.

If we hold Southern conventions, then will there be Northern, Eastern, and Western conventions, and they will overthrow the Union. Partial confederacies will first be formed, and then, as Mr. Jefferson most truly tells us, would speedily follow the formation of a separate and independent government by each State. What is it we are asked to abandon, and for what? That Union which ushered in the morn of American Liberty, and gave birth to the Declaration of Independence; which carried our armies victoriously through the storms of the Revolution and the last war, and now waves triumphantly in every sea, the kindred emblem of our country's glory. It gave us Washington—it gave us liberty, and bears our name aloft among the nations of the earth. It is our only rampart in war—our only safeguard in peace, and under its auspices we declared, achieved, maintained, and can alone preserve our liberties. It is the only basis of our solid and substantial interests, and the last star of hope to the oppressed of every clime. Shall we calculate its value? No! for we will not estimate the value of liberty—and 'liberty and union are inseparable.' Dissolve this Union, and let each State become, as Mr. Jefferson truly tells us it would, a separate government, could we preserve our liberties? Where would be the army and navy and

seamen of the State of Mississippi? how to be procured, and how to be maintained and paid? Where would be her ambassadors and treaties, her commerce—and through what ports and by whose permission would she ship her exports or introduce her imports? Who would respect her flag, who recognize her as a nation—and how would she punish aggressions upon her rights, on the ocean or the land? No, fellow citizens; the President truly tells us that 'separate independence' is a 'dream'—a dream from which we would wake in bondage or in death. But, if disgraced abroad, what would be our situation at home, as separate bordering and hostile States—and how long could we remain in peace and concord? The voice of history tells us—the bloodstained fields of our sister republics of America proclaim, that disunion would be the signal for WAR—a war of conquest, in which the weak would fall before the power of the strong; and upon the ruins of this now happy Union might arise the darkest despotism that ever crushed the liberties of mankind, for it would be established and could only be maintained by the bayonet. Perhaps, while yet the civil war should rage with doubtful issue, while exhausted and bleeding at every pore, that sanguinary alliance of despots, combined to crush the liberties of man, would send its armies to our shores. Under what standard would we rally to preserve our liberty? There would be no Union—without it there would be no strength; and those who, united, could defy the world in arms, divided would be weak and powerless. Such are the ultimate results of disunion. Let us take the first step, and all may be lost forever. That step is nullification by Carolina, then her secession—then, as she truly tells us in her address, 'the separation of South Carolina would inevitably produce a general dissolution of the Union.' And shall Carolina dissolve the Union? No; the liberties of all the States are embarked together, and if one State withdraw her single plank, the national vessel must go down to rise no more, and shipwreck the hopes of mankind. Let us then adjure the people of Carolina, by the ties of our common country and common kindred—by the ruin and disgrace which civil war will bring upon the victors and vanquished—by the untried horrors of those scenes to which disunion must conduct, to repeal her ordinance, and not to force upon us that dread alternative, in which we must support the flag of our country, or surrender our Union and liberty without a struggle: that we cannot, we will not, we dare not, surrender them; and, if forced to draw the sword to defend our liberties, the motto will gleam on every blade: 'The Union shall be preserved.' For were it

abandoned, life would not be a blessing, but a curse; and happiest would those be whose eyes were closed in death ere they beheld the horrors of those scenes to which with viewless and rapid strides we seem to hasten. Well, fellow citizens, may our hearts be wrung with sorrow on this occasion, in looking back to what we were, and forward to what we may soon be. Well may the tears unbidden start, for they are the tears that patriots shed over the departing greatness of our once united, but now distracted and unhappy country.

THE SIOUX WAR.

Compared with the great storm of rebellion which has darkened and overspread our whole national sky, the Indian war on our northwestern frontier has been a little cloud "no bigger than a man's hand;" and yet, compared with similar events in our history, it has scarcely a parallel. From the days of King Philip to the time of Black Hawk, there has hardly been an outbreak so treacherous, so sudden, so bitter, and so bloody, as that which filled the State of Minnesota with sorrow and lamentation, during the past summer and autumn, and the closing scenes of which are even now transpiring. We were beginning to regard the poetry of the palisades as a thing of the past, when, suddenly, our ears were startled by the echo of the warwhoop, and the crack of the rifle, and our hearts appalled by the gleam of the tomahawk and the scalping knife, as they descended in indiscriminate and remorseless slaughter, on defenceless women and children on our border.

In the year 1851, the Sisseton, Wahpeton, M'dewakanton and Wahpekuta bands of Dacotah or Sioux Indians by treaty ceded to the United States, in consideration of certain annuities to be paid them, all their lands within the present limits of the States of Iowa and Minnesota, excepting a reservation set apart for their habitation and use, embracing a narrow strip along the southern side of the Minnesota River, of about ten miles in width and one hundred and fifty in length. To this reservation these four bands removed their people, numbering some seven thousand souls, of whom, perhaps, twelve hundred were warriors. During the eleven years which have elapsed since this treaty was made, they have lived there, the State of Minnesota being meanwhile peopled by the whites with unparalleled rapidity, and the Indians seeing flourishing and populous settlements springing up all about them. With but a single interruption, peace and amity has existed between the two races; missions, schools, and to some extent, agriculture, have been established among them; and a large number of halfbreeds, springing from marriages between white traders and Sioux women, have formed, apparently, a link of consanguinity and interest, which, aided by the

influence and laws of civilization, would hereafter prevent any trouble or bloodshed on the part of the savages.

One single and very grave interruption to these peaceful relations has, however, occurred. In March, 1857, Inkpadutah, a Wahpekuta Dacotah, with a small band of followers, committed a terrible massacre near Spirit Lake, in the northwestern corner of Iowa, slaying fifty persons, and carrying away four women into captivity, two of whom were, after some months, ransomed and restored to their friends, the other two having been previously murdered by their captors. But Inkpadutah and his band were outlaws, driven away by their own people for creating internal dissensions; and although the perpetrators were never properly pursued and punished, it was not thought that the outrage had been countenanced by the rest of the nation, or that any danger existed of similar acts on their part.

The cause of the recent outbreak cannot, perhaps, be absolutely determined; the manner of its beginning is more easily traced. It must be understood that, for the purpose of receiving their annuities, the Indians, at a certain period every summer, come down from their hunting grounds to the two Agencies, one at Redwood, near Fort Ridgely, and the other at Yellow Medicine. It is the custom to keep a certain quantity of provisions at these Agencies to feed them during these visits, and also to sometimes send them supplies during times of great want and scarcity of game in winter. Unfortunately, they came last year much earlier than common, and before they had received their usual notification from the Agent, that the annuities were awaiting them. In addition, as if all the accidents were destined to be adverse, the session of Congress was very long, the Appropriation Bill, which included the Indian appropriations, did not pass until the day before the adjournment, and the immense pressure of business on the Departments, and the great difficulty of obtaining coin, all occasioned long and unusual delays. The coin, \$71,000 in silver (Indians understand silver coin, and will scarcely take any other), was finally shipped by express from the sub-treasury in New York city, on the 12th of August, reached St. Paul on the 16th, and was immediately despatched by private conveyance to Yellow Medicine, via Fort Ridgely, at which latter place it arrived on the 18th.

The Indians came down to the Agency at Yellow Medicine about the middle of July, to the number of four thousand, men, women, and children. Here

they remained in waiting some three weeks. Provisions, in small quantities, were given to them, but for so large a number of mouths the rations were scanty. This supply, with the few wild ducks and pigeons which they could shoot from time to time, the little flour they were able to buy on credit from the trading houses, and the half-grown potatoes they stole from the fields, enabled them to eke out a scanty subsistence.

As might be readily imagined, this state of things bred great discontent. On the morning of the 4th of August, a large number of Indians came over from their encampment, and some on horseback, and some on foot, with guns and hatchets, rushed to the door of the warehouse, cut it down, and commenced carrying out bags of flour. The few soldiers who were stationed at the Agency, were, as well as the Agent and employés, taken completely off their guard by this movement; but in a short time they recovered themselves; got a field piece loaded and turned upon the crowd, and sent a squad of soldiers to the warehouse. At these preparations, the Indians desisted; but the military force was too small to make more than a formal demonstration. The pile of flour taken out of the warehouse had not been carried away, and while the soldiers prevented this being done, the Indians placed a guard to hinder its being recovered by the whites. Thus they stood during the remainder of the day, in an attitude of mutual defiance, yet neither party was willing to inaugurate hostilities. The next morning, when the Indians again as usual flocked down to the Agency, a couple of arrests were promptly made by the guard. This had the effect of driving them all back to their camps. Almost immediately afterward they struck their tents, and removed to a distance of from two to four miles. This was looked upon at the Agency as a war movement, and all possible defensive preparations were at once made. Some of the women were sent away, guns and pistols were loaded, field pieces and troops were placed in position, and pickets were thrown out. Everything looked like war. Still there had been no actual bloodshed. Through the mediation of Rev. Mr. Riggs, who had long resided among them as a missionary, peaceful counsels finally prevailed with the Indians. Thirty-six of the chiefs met the Agent in council, smoked the pipe of peace, acknowledged their offence, and expressed their sorrow and shame at its occurrence. Three days afterward another council was held, in which they agreed to receive certain rations, and promised to induce their people to move away until the annuity money should arrive. The Agent, on

his part, forgave their trespass, and promised to send for them as soon as he should be prepared to make their payment. So confident was he that the arrangement was amicable and satisfactory, that he went soon afterward to St. Paul on business, leaving his family at the Agency.

Things remained in this condition until Sunday, the 17th of August, 1862. On that day, four young Indians, belonging to Little Six's band, went to the house of Mr. Jones, at Acton, Meeker county, Minnesota. As they evinced an unfriendly disposition, Mr. Jones locked his house, and with his wife, went to the house of Mr. Howard Baker, a near neighbor, where he was followed by the Indians. They proposed to go out and shoot at a mark, but after leaving the house, suddenly turned and fired upon the party, mortally wounding Mr. and Mrs. Jones, Mr. Baker, and a Mr. Webster. Mrs. Baker, with a young child, concealed herself in the cellar and escaped. The Indians then returned to Jones' house, which they broke into, killing a young woman who had been left there. This was the first bloodshed of the war.

Up to this time there seems to have been no deliberate preparation, no concerted arrangement for the outbreak against the whites. There was excitement and discontent among the Indians on account of hunger, the delay of their payment, and the real or supposed wrongs and frauds committed by white traders and officials; but no organized hostile movement had been agreed on. They knew that a great war was in progress between the whites; that armies were being raised, and the country was being drained of men. All this was known and discussed among them. There are also grave suspicions, and not without considerable show of evidence, that rebel emissaries, Indians or half breeds from the Missouri border, had been among them fomenting the discord and urging war.

When these four young men returned on the 18th to their band, which was then with others at the Sioux Agency at Redwood, the recital of their murders created the most intense excitement among the Indians. They became infuriated at the idea of bloodshed. Before the whites were aware that trouble was brewing, Little Six's, Little Crow's, Grey Iron's, and Good Road's bands of M'dewakantons, and a part of the Lake Calhoun band, gathered around the buildings, and, with a general rush and yell, massacred the whites, some twenty-five in number, robbed and plundered the stores, and laid the whole place in ashes.

The party who were conveying the annuity money to the Agency, reached Fort Ridgely on the afternoon of the same day, and there learned that the outbreak had taken place. A garrison of about seventy-five men was in the fort at the time the news of the massacre reached it, and Captain Marsh, taking fifty of them, proceeded toward the Agency, fifteen miles up the river. In the evening twenty-one of the men returned, to tell that the detachment had fallen into an ambush, and that all the others, including the captain, were either killed or drowned.

The Indians seem to have at once despatched messengers with the news of these hostilities to the bands at the Upper Sioux Agency, at Yellow Medicine. The chiefs there immediately called their followers into council. About one hundred Sissetons, Wahpetons, and thirty young Yanktons, were present. The council was stormy, and divided in sentiment; the Sissetons urging the killing and robbing of the whites, saying the M'dewakantons had already gone so far that they could not make matters worse, and that, as the whites would inflict punishment upon all alike, the best thing to be done was to kill them and take their goods. The Wahpeton chiefs, though willing to rob the whites, insisted on sparing their lives, and sending them off with their horses and wagons across the prairies.

About one fourth of the Sioux, previous to these events, had, through the efforts of the Government and missionaries, renounced their savage life, and adopted the customs of civilization. They had cut off the hair, discarded the blanket, adopted the civilized costume, and undertaken to live by the cultivation of the earth, instead of the chase. One of the chiefs who joined in this reform was An-pe-tu-to-ke-ca, or Other-Day, an Indian of more than ordinary intelligence and ability. He had been much among the whites, and was a convert to Christianity. Some years previous, while he was at Washington city with a delegation of his tribe, a rather good-looking white woman, who had lost caste in society, fell in love with him, married him, and followed him to his Indian home in Minnesota.

Other-Day took part in this deliberation. He arose and addressed the council, warning them against the consequences of the attack they were meditating. They might succeed in killing a few whites, he told them, but extermination or expulsion would be their fate if they did. But his pacific arguments produced no effect. Toward evening, the Yanktons, Sissetons,

and a few of the Wahpetons rose from the council, and moved toward the houses of the whites, to prepare for the attack. All the afternoon the Indians had been busy taking their guns to the blacksmith shop to have them repaired, which the unsuspecting smith, being told they were going on a buffalo hunt, had done.

Other-Day now left the council, took his wife and his gun, and went to warn the whites of the impending danger. They had, up to this time, known nothing whatever of the council. At his suggestion, sixty-two persons assembled in one of the Agency buildings, gathered their arms, and prepared to defend themselves. Part of the farmer Indians assisted Other-Day in standing guard round the house that night, part of them guarded the house of Rev. Mr. Riggs, their old missionary, to whom they were very much attached, and another part joined the insurgents.

Small bands of hostile Indians were seen prowling around the house during the night, and by the next morning it was nearly surrounded. At daybreak, several shots were fired near the warehouses, some distance away, and then a triumphant yell was heard from the Indians as they broke into the stores and killed the inmates. At this, the savages who had prowled around the house during the night ran off to the scene of the riot to share in the booty; and even the farmer Indians who had stood guard for the whites, excepting only Other-Day, followed them.

Other-Day now advised the whites to make their escape, and offered to pilot them out of danger. They were at first inclined to doubt his faithfulness; but in their extremity, finally consented to follow him. While the hostile Indians were occupied in the work of plundering the stores and warehouses, the whites managed to collect three two-horse wagons, and two buggies, and placing as many of the women and children as they could in these, the party, sixty-two persons in all, started off in a direction opposite to the usually travelled route. They reached and forded the Minnesota River, eluded pursuit, and after a three days' march of great severity and privation, under the faithful and successful guidance of Other-Day, they arrived at a place of safety. True among the treacherous, he should be gratefully remembered, and liberally rewarded and protected for the remainder of his life, by the people of Minnesota and the Government of the United States.

When he reached St. Paul, after the escape, he wrote the following, in answer to the many questions asked him:

"I am a Dakota Indian, born and reared in the midst of evil. I grew up without the knowledge of any good thing. I have been instructed by Americans, and taught to read and write. This I found to be good. I became acquainted with the Sacred Writings, and there learned my vileness. At the present time, I have fallen into great evil and affliction, but have escaped from it; and with fifty-four men, women, and children, without moccasins, without food, and without a blanket, I have arrived in the midst of a great people, and now my heart is glad. I attribute it to the mercy of the Great Spirit.

An-pe-tu-to-ke-ca.
(Other-Day.)"

Another party of about forty persons escaped from the vicinity of Yellow Medicine, under the guidance of the missionary, Rev. Mr. Riggs, who was also warned and aided by a few of the farmer Indians.

Having thus successfully attacked and destroyed the Lower Agency, at Redwood, and the Upper Agency, at Yellow Medicine, and having obtained large supplies of arms and ammunition from the stores and warehouses they sacked at these points, part of the Indians divided into small marauding bands, and scoured the country, attacking and murdering isolated settlers, burning houses, and stealing horses and cattle; but the larger portion remained together, and, under the leadership of Little Crow, planned further attacks.

Fifteen miles below the Lower Agency, on the north bank of the Minnesota, is Fort Ridgely; and twenty miles below the fort, on the southern bank of the river, is the town of New Ulm, which, as its name indicates, is mainly populated by German settlers. Early in the afternoon of Tuesday, August 19th, a party of citizens from New Ulm, returning from a neighboring village, where they had gone to aid in recruiting volunteers for the Union army, were fired upon from an ambush by a number of mounted Indians, and several of them killed. Those who escaped had barely time to get back to New Ulm and give the alarm before the Indians advanced upon the town,

and began firing at long range upon the distressed and panic-stricken inhabitants, who were huddled together, in helpless confusion, in a few of the more protected houses. Fortunately, a squad of eighteen armed men from one of the lower counties had arrived there an hour or two previous. Only six of the number had good guns; but they immediately organized themselves, and went forward to meet the savages. By dint of determined coolness and bravery, they held the Indians at bay, killing several of them, until, seeing the town reënforced by another small party of mounted whites, the savages retreated. The fight lasted two or three hours, and a number of the Germans were killed.

Beaten back from New Ulm, the Indians retraced their course up the river, and being joined by other bands, a concerted and deliberate attack was next made on Fort Ridgely. Like too many of our frontier forts, it is a fort only in name. Situated on a projecting spur of the river bluff, it is almost completely encircled by deep and wooded ravines, the edges of which are within a stone's throw of the buildings. A long, two story stone building with an ell, standing in the centre, and a number of log and frame houses ranged around it in an irregular circle, with several barns and outhouses beyond them, constitute what is called the fort, but what is really only barracks for a small number of troops.

When on Monday Captain Marsh left the fort to quell the disturbances at the Agency, only about twenty-five soldiers remained to protect it. After his party was cut up in ambush, only twenty-one, wounded and all, returned. Luckily, however, on Tuesday, two detachments of reënforcements, of about fifty men each, reached the garrison in safety. On the other hand, from the beginning of the outbreak, the women and children of the surrounding country who had escaped massacre, sometimes a whole family, sometimes only a single member—now a mother, and then a child—fresh from the scenes of savage violence and blood, had been fleeing to the fort for safety, until the number had been swelled to some three hundred. Six cannon, a few old condemned muskets, and considerable supplies of provisions were fortunately in the fort. Such hurried preparations for defence as could be, were soon made. Small squads of Indians were seen prowling about during Monday and Tuesday, but they were promptly scattered by a shell from the howitzer, accurately planted by the veteran artillery sergeant who was in charge of the guns.

At a quarter past three o'clock on Wednesday afternoon, about three or four hundred Indians, led by Little Crow, advanced under cover of the woods and ravines to the attack of the garrison. It was a complete surprise, the first announcement being a deadly volley through one of the north entrances into the parade ground of the fort. For a moment there was uncontrollable confusion and alarm among the whites, and had a storming assault immediately followed, the fort must have fallen. The garrison, however, quickly rallied, manned the guns, and poured a steady fire on their assailants. The Indians, as usual, took shelter behind every available cover—trees, ravines, outhouses, high grass and logs—the whites directing their return shots as best they could. In this way, a brisk fusilade was kept up until half-past six o'clock in the evening. A number of the outbuildings were fired by the enemy, but the flames did not reach the fort. The houses that remained nearer the fort were destroyed by the garrison after the enemy withdrew. The garrison lost twelve or fifteen men killed and wounded in this engagement.

A night of terrible anxiety and suspense succeeded, but there was no further disturbance. On the next day, Thursday, two more attacks, each lasting about half an hour, were made, one at nine o'clock in the morning, and the other at six in the evening, but they were much feebler than the previous one, and easily repulsed.

The final and most desperate attack occurred on Friday, the twenty-second. The garrison was engaged in strengthening its defences, when, at one o'clock in the afternoon, the sentinel saw at two miles distance great numbers of Indians approaching on horseback. As they neared the fort they dismounted, and advancing from three different points under cover of the ravines, where the shells from the field pieces could do them but little damage, they opened a terrible fire on the garrison. But the previous two days' siege had steadied the nerves of the whites, and they received the onslaught coolly, reserving their fire until they could obtain a fair view of the enemy, and do effective execution. The "big guns," of which Indians stand in so great dread, were also well served. The fight raged all the afternoon, from two until half past six o'clock. Once the savages pressed up so near that the halfbreeds in the fort could distinguish the shout of the chiefs ordering a charge for the purpose of capturing the guns. It was a concerted movement; a feint to draw the fire of the field pieces, and an

immediate rush was made to secure them before they could be reloaded. But the old artillery sergeant was not to be trapped; he reserved the fire of his own gun, and when the storming party emerged into open view, he planted a shell among them which sent them howling back to their shelter. At nightfall the savages reluctantly gave up the siege and retired, carrying away a considerable number of killed and wounded. Those in the fort escaped miraculously; only one man being killed, and three or four slightly wounded.

The next morning, Saturday, the Indians were seen again approaching the fort, apparently to renew the attack; but it was soon discovered they were withdrawing, to wreak their thwarted vengeance on the devoted town of New Ulm. In the interim since the first attack, the town had been reënforced by about one hundred volunteers, and had also been put in a partial state of defence. Fire, murder, and pillage marked the way of the savages toward it; the garrison noted their approach by the clouds of smoke which the burning dwellings of the settlers sent up to heaven.

The Indians reached and again attacked New Ulm, on Sunday morning at about eleven o'clock. The commanding officer of the whites had placed pickets, and a considerable part of his force to support them, along the outer edge of the town toward the foe; but so fierce and impetuous was the attack, that the whites were forced back into the town at the first onset of the enemy, giving them possession of several of the outer buildings, from which they pushed their further operations. But the garrison soon rallied, and obstinately held their ground. Finding themselves so unexpectedly held at bay, the Indians, who were to the windward, set fire one after another to the buildings they held, thus literally burning their way into the town. All day long this continued. Toward evening, the whites found they had been forced back, inch by inch, by the fire and smoke and the swift leaden messengers of death, until nearly one half of the town was lost; but they rallied once more, made a vigorous charge on the foe, and drove them out. At this the Indians withdrew, forming themselves into three parties, and camped a short distance off, making the night hideous with fiendish yells and the horrid music of their war dances. During the night the garrison retreated into a still smaller and more defensible part of the town, committing the rest to flames. A brief demonstration was made by the enemy on the following morning, but finding the whites so well posted,

they finally abandoned the contest and withdrew. The whites, exhausted and cut up, joyfully welcomed a cessation of hostilities. During the day they evacuated the town, bringing off what remained of the garrison in safety. In this battle they lost ten killed, and about fifty wounded, while the Indians lost about forty. They were seen to haul off four wagon loads of dead.

The events thus far narrated cover a period of nine days, and, though forming the principal ones, were by no means the only events of that brief time. The contagion of murder, arson, and rapine spread over the whole area of country on which the Indians lived and roved, embracing a district one hundred miles in width by two hundred in length. Fort Abercrombie, situated at the upper end of this vast tract, was surrounded and besieged, as Fort Ridgely at the lower end had been. Throughout the intermediate region, scattering parties of the savages appeared in the isolated villages and settlements, spreading death and desolation. Local conditions exaggerated and heightened the horrors of the insurrection. The population of Minnesota, and particularly of these exposed regions, unlike that of the lower Western States, whose settlers, trained in border warfare, were familiar with savage craft and cruelty, and inherited the prowess and spirit of daring adventure which possessed Daniel Boone, was largely made up of foreign emigrants, Germans, French, Norwegians, and Swedes. They were unaccustomed to danger, and unused to arms. They had lived for years in confidence and daily intercourse with the Indians. Engaged in the absorbing labor of building and providing their new homes, they were without guns or other weapons of defence. Still worse, the war for the Union had called into its ranks a large proportion of their young, active, and able-bodied men, and left only the women and children to gather the harvest and guard the hearthstone. Upon their heads this storm burst suddenly, and with a terror which deprived them of all courage and resource to resist it. Emboldened by the feeble opposition they met, and maddened by the carnival of blood in which they rioted, the savages indulged in cruelties and barbarities too horrible to recount in detail. The Governor of Minnesota, in a special message to the Legislature of the State, thus paints them:

'Infants hewn into bloody chips of flesh, or nailed alive to door posts to linger out their little life in mortal agony, or torn untimely from the womb of the murdered mother, and in cruel mockery cast in fragments on her pulseless and bleeding breast;

rape joined to murder in one awful tragedy; young girls, even children of tender years, outraged by their brutal ravishers, till death ended their shame and suffering; women held in captivity to undergo the horrors of a living death; whole families burned alive; and as if their devilish fury could not glut itself with outrages on the living, its last efforts exhausted in mutilating the bodies of the dead; such are the spectacles, and a thousand nameless horrors besides, which their first experience of Indian war has burned into the brains and hearts of our frontier people.'....

A wild panic ensued. Those who escaped the tomahawk and scalping knife fled in consternation and dismay, abandoning their little earthly all, leaving their cattle astray on the prairies, and their crops uncut and ungathered in the fields; some fleeing with such precipitation as to leave their food untouched on the table, where but a moment before it had been spread for the daily repast. Women and children wandered for days in the woods, subsisting on nuts and berries. Every road was lined with fugitives, and all the villages were crowded with their surrounding population. The refugees poured by hundreds into the city of St. Paul, situated from eighty to one hundred and fifty miles from the scenes of the outbreak; and many, who were able to do so, embarked on the first departing steamers, and hurried away from the State. It is estimated that ten large and flourishing counties were almost completely depopulated.

It so happened that a portion of the volunteers recruited for the Union army had not yet been ordered out of the State. Though poorly equipped and supplied, they were at once sent into the field against the Indians, and they served as a nucleus around which the irregular organizations could rally. Every old gun, pistol, knife, or other weapon was cleaned up; every pound of powder and lead was bought and distributed; and horses were impressed by military authority, with which to extemporize cavalry companies. The surrounding States promptly sent what aid they could in men, guns, and cartridges. The Governor by proclamation authorized the formation of companies of scouts and rangers in the threatened neighborhoods. Very soon after the outbreak, Colonel H. H. Sibley, an experienced frontiersman, having a thorough knowledge of Indian habits and character, was on the march against them, with about one thousand men. The General

Government augmented these forces as rapidly as possible, and sent Major-General Pope to assume command of the Indian Department.

Hearing of Colonel Sibley's approach, Little Crow retreated to Yellow Medicine, taking with him a large baggage train of plunder, and about one hundred white prisoners, chiefly women and children, whom he had captured at different places, and whom, with a few exceptions, they did not specially maltreat, but compelled to labor at camp drudgery.

Colonel Sibley pushed on with his forces, sending in advance a cavalry detachment, which reached and relieved Fort Ridgely on the 27th of August, after it had been besieged for nine days. He himself arrived at that post with the remainder of his troops on the following day. On the 31st, he sent out a detachment of two companies, one mounted, a fatigue party of twenty men, and seventeen teams and teamsters, to reconnoitre the neighboring settlements and to bury the dead. They proceeded to the Minnesota river opposite the Lower Agency, and found and buried sixteen corpses the first day. The next day they continued their search, finding and burying fifty-four. That night they encamped on the open prairie, near the upper timber of the Birch Coolie creek, three miles from the Lower Agency. At about four o'clock of the next morning, September 2, one of their sentinels shouted, "Indians!" and almost immediately, a shower of balls rained upon the camp. From this first fire, and during the confusion attending it, the detachment suffered severely. They soon, however, gained the shelter of their wagons, and from behind them and the piles of dead horses which literally covered the ground, they returned a vigorous fire upon their assailants, meanwhile digging a rifle pit as they fought. It was a fierce morning's battle, and the foe, in largely superior numbers, had nearly surrounded and captured them when reënforcements arrived. So hot was the attack, that one of the tents was found to have one hundred and forty bullet holes through it.

The boldness and severity of this attack, demonstrated to Colonel Sibley the necessity for an increase of force and very cautious movements, and accordingly he fell back to the neighborhood of Fort Ridgely. Anxious also to obtain the release of the white prisoners in Little Crow's camp, and fearing that if he won a decided success in battle they would be murdered, he determined to resort to negotiation. He therefore wrote the following

note and left it fastened to a stake, on the ground where the last battle had taken place:

'If Little Crow has any propositions to make to me, let him send a halfbreed to me, and he shall be protected in and out of my camp.

H. H. SIBLEY,
Col. Com. Military Expedition.'

A day or two afterward, two halfbreeds came into his camp under a flag of truce, bringing a note signed 'Little Crow, his mark,' excusing and justifying his attack on the whites. Colonel Sibley replied, 'Little Crow, you have murdered many of our people without cause. Return me the prisoners under a flag of truce, and I will talk with you like a man.' After the lapse of a few days, another message came from Little Crow, stating that he had one hundred and fifty-five prisoners, and asking what he could do to make peace. Colonel Sibley replied that his young men had been committing more murders, and that was not the way to make peace.

Having learned from several sources that serious dissensions had broken out in the Indian camp, and having also received the needed reënforcements, Colonel Sibley left Fort Ridgely on the 12th of September, and marched up the Minnesota river to Wood Lake, near Yellow Medicine, arriving there on the 22d following. Little Crow was encamped in the vicinity with his braves. The savages, however, had become demoralized, and he could no longer control them. Little Crow desired to make an attack that night, but his opponents told him in council that if he was a brave Indian he would fight the white man by daylight. Accordingly, next morning he attacked Colonel Sibley's forces with three hundred of his warriors, the others refusing to join in the fight. After a sharp two-hours' battle the Indians were completely routed, losing thirty killed, and a proportionate number of wounded. The whites lost four killed, and forty wounded.

This battle substantially ended the war. The Indians retreated, and the whites pursued them to Lac Qui Parle. Four days afterward, a camp of about one hundred and fifty lodges of Indians and halfbreeds separated from Little Crow's party, met Colonel Sibley in council, surrendered

themselves, and formally delivered up to him ninety-one white prisoners, and over one hundred halfbreeds, whom they had obtained. Other parties came in afterward, surrendering themselves unconditionally, until between two and three thousand Indians, of all sexes and ages, were in the hands of the troops as prisoners of war. A military commission was appointed to try the ringleaders and worst offenders, and over three hundred of them were convicted and sentenced to death. Before this paper is printed, some, at least, of these, will have expiated their crimes on the gallows. Little Crow, with a small but desperate band of followers, succeeded in making his escape to Devil's Lake in Dakota Territory.

The future disposition of the Indians of the State of Minnesota is one of the most perplexing minor questions of the day. In their present location, the feud of race engendered by the insurrection will only die with the generation that witnessed its beginning. Humanitarian impulses and humanitarian duties are forgotten in the fierce thirst for private vengeance. With one voice, the people of that State demand the removal or threaten the extermination of their dangerous neighbors. But whither shall they go? The swallowing tides of civilization encompass them on the east, the north, and the south; and the only other avenue, the west, is guarded by the gaunt wolf starvation.

It is proposed by some to colonize them on the island of Isle Royale, in Lake Superior; by others, to purchase some small West India island, and transport them there, where tropical nature will feed them without expense to the Government. Perhaps the more practical measure would be to gather all that remains of the red race within the United States into one Territory, to establish a more thorough guardianship over them, and to subject them to a stricter and more absolute government, which should compel them to assume gradually the duties and customs of civilized life.

'DEAD!'

With chilling breath it comes:
Again—and yet again! on every gale,
America! from thy great battle field!
Our hearts are hushed, and desolate our homes—
Our lids are heavy, and our cheeks are pale—
While thus we yield
Our loved ones up to thee!

Dead! dying at their posts!
The young, the noble, and the loving ones!
The widow's all! the gray-haired father's hope—
All thine, my country! take the treasured hosts:
Hold in thy faithful keeping all thy sons!
We give them up—
To thee and liberty!

Oh, keep our honored dead
Within the folds of thy great-pulsing heart!
Entwine their memory with thy polished lore:
Cherish the sacred dust above *their* bed
Who sprang to shield thee from the traitor's dart!
Bless evermore
The dead who died for thee!

Silent the teardrops fall
Down the pale mother's cheek at close of day;
For sorrow sitteth at the widow's gate:
Dark are the shadows gathered on the wall,
And where the mourner bendeth low to pray—
No more to wait
The coming of her free!

For thee—'dear native land!'
What precious hopes are severed one by one!
What hearts lie crushed and sick by 'hope deferred!'
How many dear ones, stretched along the sand,
Bleed out their lives beneath a blighting sun—
With but a word—
'Mother!' for plaint or prayer!

Shall they be vainly shed—
The blood and tears that wash our stricken soil?
Bringing no healing with their torrent streams?
Vain the long requiem for the noble dead—
Vain all the agony and all the toil—
The soldier's dreams—
The patriot's thought and care?

No! float upon the winds!
Flag of my country! let thy stars give light
To nations of the earth! proclaim afar
The end of tyrant rule that madly binds
Our millions down beneath a fearful blight!
Float—*every star!*
We have not one to spare!

A MERCHANT'S STORY.

'All of which I saw, and part of which I was.'

CHAPTER IX.

After dinner, we rode over my friend's plantation. It contained about twelve hundred acres, mainly covered with forest trees, but with here and there an isolated patch of cleared land devoted to corn and cotton. A small tributary of the Trent formed its northern boundary, and bordering the little stream was a tract of three hundred acres of low, swampy ground, heavily timbered with cypress and juniper. Tall old pines, denuded of bark for one third of their height, and their white faces bearded with long, shining flakes of 'scrape turpentine,' crowned the uplands; and scattered among them, about a hundred well-clad, 'well-kept' negro men and women were shouting pleasantly to one another, or singing merrily some simple song of 'Ole Car'lina,' as with the long scrapers they peeled the glistening scales from the scarified trees, or, gathering them in their aprons, 'dumped' them into the rude barrels prepared for their reception. Preston had a kind word for each one that we passed—a pleasant inquiry about an infirm mother or a sick child, or some encouraging comment on their cheerful work; and many were the hearty blessings they showered upon 'good massa,' and many their good-natured exclamations over 'de strange gemman dat sells massa's truck.'

'He'm de kine, 'ou gals,' shouted an old darky, bent nearly double with age, who, leaning against one of the barrels, was 'packing down' the flakes as they were emptied from the aprons of the women: 'He'm de kine, I tell by him eye; de rocks doan't grow fass ter dat gemman's pocket!'

'Well, they don't, uncle,' I replied, tossing him a half-dollar piece, and throwing a handful of smaller coin among the women. A general scramble followed, in which the old fellow nimbly joined, shouting out between his boisterous explosions of merriment:

'Dis am de sort, massa; dis am manna rainin' in de wilderness—de Lord's chil'ren lub dis kine—it'm good ter take, massa, good ter take.'

'Good as black jack, eh, uncle?' I inquired, laughing, for I saw certain lines about his shrunken mouth, and underneath his sunken eyes, which told plainly he was rather too familiar with that delicious compound of strychnine and whiskey.

'Yas, massa, good as black Jack; dat's my name, massa, dat's my name—yah, yah,' and he turned his face, wet with merry tears, and distended in an uncommonly broad grin, up to mine. In a moment, however, his eye caught Preston's. His broad visage collapsed, his distended mouth shrank to a very diminutive opening, and his twinkling eyes assumed a peculiarly stolid expression, as he added, in a deprecatory tone:

'No, massa Robert, not so good as black jack; not so good as dat—'ou knows I doan't keer fur him; you knows I doan't knows him no more, massa Robert.'

'I know you never knew him,' replied Preston, playing on his name. 'He's a hardened old sinner. He has sinned away the day of grace, I'm sure. But you know better than to ask presents of strangers. Give it back to the gentleman at once.'

An indescribable expression stole over the old negro's visage as he thrust his hand through his thin, frosty wool, looked pleadingly up at his master's face, and, seeing no signs of relenting there, slowly and reluctantly opened his palm and offered me the money.

'No, no, Preston, let him keep it; it won't do him any harm,' I said.

'No more'n it woan't, good massa, not a morsel ob harm,' exclaimed the darky, his small eyes twinkling again with pleasurable anticipation, and his broad face widening into its accustomed grin: 'I woan't take nary a drop, massa Robert, nary a drop!'

'Well,' said his master, 'you can keep it if you'll promise not to drink it all to-morrow. So much whiskey would spoil your prayer at the meeting.'

'So it 'ould, massa Robert; so much as dat; but Jack allers prays de stronger fur a little, massa Robert, jess a little—it sort o' 'pears ter warm up a ole man's sperrets, and ter fotch all de 'votion right inter him froat.'

'I suppose it does; all the devotion you ever feel. You're an old sinner, Jack, past praying for, I fear,' replied Preston, good-naturedly, turning his horse to go.

'Not pass prayin' fur 'ou, massa Robert, not pass dat, an' ole Jack neber will be, nudder—not so long as he kin holler loud 'nuff fur de Lord ter yere. 'Ou may 'pend on dat, massa Robert, 'ou may 'pend on dat.'

As we rode away, I asked Preston if the old black led the services at the negro meetings.

'Yes, I am obliged to let him. He was formerly the plantation preacher, and, with all his faults, the blacks are much attached to him. A small rebellion broke out among them, five years ago, when I displaced him, and put Joe into the pulpit. I compromised the difficulty by agreeing that Jack should lead in prayer every Sunday morning. They think he has a gift that way, and *you* would conclude the day of Pentecost had come, if you should hear him when he is about half-seas-over.'

'Then he does pray better for a little whiskey?'

'Yes, a mug of 'black jack' helps him amazingly—it gives him the real power.'

After a two hours' circuit of the plantation, we halted in the vicinity of the distilleries, which stood huddled together on the bank of the little stream of which I have spoken. There were three of them, each of thirty barrels' capacity—an enormous size—and they were neatly set in brick, and enclosed in a substantial framed structure, which was weatherboarded and coated with paint of a dark brown color. Near the only one then in operation were several large heaps of flake turpentine, three or four hundred barrels of rosin, and a vast quantity of the same material scattered loosely about and mixed with broken staves, worn-out strainers, and the *debris* of the rosin bins. Pointing to the confused mass, I said to my host:

'I've half a mind to turn missionary. I feel a sort of call to preach to you Southern heathen.'

'I wish you would,' he rejoined, laughing; 'you'd give me a chance to laugh at your sermons, as you have laughed at mine.'

'No, you wouldn't laugh. I'd make you *feel* way down in your pocket. I'd have but one sermon and one text, and that would be: 'Gather up the fragments, that nothing be lost.' You Southern nabobs do nothing but waste—you waste enough in one day to feed the whole North for a week. It's a sin—the unpardonable sin—for you know better.'

'Well, it *is* wrong, but how can we help it? We can't make the negroes anything but what they are—shiftless and careless of everything but their own ease.'

'I don't know about that. I think such a man as Joe ought to be able to manage them.'

'Joe! Well, he can't. He's all drive, and negroes are human beings; they should be treated kindly.'

We had approached the front of the still, and were fastening our horses to the trunk of a tree, when we heard loud voices issuing from the other side of the enclosure.

'Her'm what I owes you—now pack off ter onst, and don't neber show your face on dis plantation no more,' said a voice, which I at once recognized as that of 'boss Joe.'

'I shan't pack off till I'm ready, you d—d black nigger, I've been bossed 'bout by ye long 'nuff. Clar out, and 'tend ter yer own 'fairs,' rejoined another voice, which had the tone of a white man's.

'I reckon *dis* am my 'fair, and I shan't leff you git drunk and burn up no more white rosum yere; so take yerseff off. Ef you don't, I'll make you blacker nor I is.'

'Put your hand on me, and I'll take the law on ye, *shore*,' returned the white man.

'Pshaw, you drunken fool, do you s'pose dese darkies would tell on *me*? Ef dey would, dar word ain't 'lowed in de law; so you trabble. I don't keer ter handle you, but I shill ef you don't leab widin five minutes.'

What might have followed will not go down in history, for just then Preston and I, emerging from around the corner of the building, appeared in view of the belligerents. The native—a respectable specimen of the class of poor whites—stood in a defiant attitude before the still-fire, while Joe was seated on a turpentine barrel near, quietly noting the time by a large silver watch which he held in his hand. He kept on counting the minutes, and gave no heed to his master's approach, till Preston said:

'Joe, what's to pay?'

'Nuffin, master Robert, 'cept I'se 'scharged dis man, and he say he won't gwo.'

'Do as Joseph bids you,' said Preston, turning to the white man, 'take your pay and go at once.'

The man stammered out a few words with a cringing air, but the planter cut him short with:

'I want no explanations. If you can't satisfy Joseph, you can't satisfy me.'

The native then leisurely took down a ragged coat that hung from one of the timbers, counted over a small roll of bank notes which Joe gave him, and meekly left the still-house.

Joe and his master devoted the next half hour to piloting me over the distilleries. I commented rather freely on the sad waste of valuable produce which was scattered about, and on the bad economy of keeping three 'stills' to do the work of one.

'It might have done years ago,' I remarked, 'before your trees ran to 'scrape,' and when they yielded enough 'dip' to keep all the stills busy; but now they are eating you up. You have fully four thousand dollars idle here. Sell them, Preston—that amount would help you out of debt.'

'Dat's what I tells master Robert, Mr. Kirke, but he sort o' clings to ole tings, *sar*,' said Joe, in the free, familiar tone usual with him.

'But *you* do just as badly, Joe,' I replied. 'You let these darkies waste more than they eat, and you keep four here to do the work of three. You are no better than your master.'

'Only half so good, Mr. Kirke,' rejoined the black, showing a set of teeth which a dentist might have used for a door plate; 'only *half* so good, 'case I'se only half white. But, if master Robert 'ould leff me handle de whip, I'd show him suffin'! I reckon de int'rest 'ouldn't be ahind den.'

'Why? don't you let Joe whip the negroes?' I asked Preston.

'No, not now; I did, till some years ago, when he almost killed one of them, and came near getting me into serious trouble. He could manage them well enough without whipping, if he'd curb his impetuous temper a little.'

'But I does curb it, master Robert, and it tain't ob no use. Dey knows I *can't* whip 'em, an' dey don't keer fur de starvin', or de tyin' up, or de talkin' to in de meetin'. Dey don't mind fur nuffin' but de whip, an' a little ex'cise wid dat does a nigger good when he'm right down 'fractory. And you has 'lowed, master Robert, dat I warn't so much ter blame in dat 'fair ob Black Cale.'

'Well, perhaps you weren't. It's a good story, Kirke; did I ever tell it to you?'

'No; I'd be glad to hear it.'

'Come, Joe,' said his master, good-naturedly, 'you can tell it better than I. You know it by heart.'

'Well, master, if you says so,' replied Joe; and as we seated ourselves in a semicircle on some rosin barrels, the black proceeded to give the following illustration of the working of free and slave institutions:

'Well, you see, Mr. Kirke, de darky's name wus Black Cale, an' he wus a raised up 'long wid me by de ole gemman—dat am master Robert's gran'fer. He wus allers a hard-bitted, 'fractory darky, but he wus smart, awful smart, and could do a heap ob work when a minded to; but he wusn't a minded to bery of'en, an' ole master used to hab ter flog him—flog him bery hard. Well, finarly, de ole gemman grow'd tired ob doin' so much ob dat, an' he call Cale ter him one day, an' he say:

"Cale, you'se a likely nigger, an' I *don't* like ter flog you so much. Now, I'll leff you hire you' time, an' gwo down ter Newbern, an' shirk fur you'seff."

'Ole master knowed Cale wus habin' a bad 'fect on de oder darkies, an' he 'lowed 'twould be cheap leffin' him gwo ef he didn't get a picayune fur him. Well, Cale, he took ter dat ter onst, an' he 'greed to gib ole master one fifty a year fur his time; an' so he put off ter Newbern. Well, ebery ting gwo on right smart till de ole gemman die. Cale, he work hard, pay master ebery year, and sabe up quite a heap. Well, ole master die widout a will, an' all de property gwo ter de two sons; dat am master James an' master Thomas—he war master Robert's fader. Now master James he neber lib'd on de plantation, so he sold all his half ob de nigs to master Thomas, an' put all de 'vails inter his bisness down dar ter Mobile, whar he am now, doin' a heap in de cotton way. But he didn't sell his half ob Cale, 'case master Thomas wouldn't buy him, nohow. Well, dey owned Cale tuggedder fur a spell, an' Cale he work on right smart, till one day master James come home, and he tells master Thomas dat on de way he'd a stopped at Newbern, and sole his half ob Cale ter Cale heseff, fur five hundred dollar, and giben him de free papers. Well, den Cale he want to buy de oder half ob heseff ob master Thomas, an' master Thomas he offer to take de same money; but Cale say de oder half not wuth so much as de fust, an' dat he wouldn't gib only two fifty.'

'Not worth so much—why not?' I asked.

'Why, Cale say 'case he could do what he like wid de free half, and he reckoned he shouldn't be quite so 'sponsible *den* fur de slave half,' and here Joe broke into a merry fit of laughter, in which Preston joined.

'Well, master Thomas an' Cale couldn't 'gree 'bout de buyin', but Cale promise to gib seventy-five dollar a year fur de use ob master's half, an' he gwo off agin ter Newbern. Den de time gwo by fur a yar or two, but master neber git nary dime out ob Cale fur his half. Cale would say dat only half ob him wus free, an' de oder half wasn't 'sponsible, and couldn't pay its debts, nohow. Finarly, master, seein' he couldn't git nuffin out ob Cale, only offers ob two fifty fur de oder half—and *dat* he wouldn't take, nohow—sent me down to Newbern to sort o' mediate 'tween Cale an' he. Well, I coaxed Cale to 'gree to wuck one monfh for heseff and de oder monfh fur massa, and I

come home; but it warn't ob no use; Cale would wuck, but massa neber seed a fip ob de pay. Finarly, af'er he'd a gone on dat way 'bout ten yar, stowin' 'way what he arned whar nobody could fine it, an' allers off'rin' two fifty fur de oder half ob heseff, master Thomas he die, and master Robert he come ter lib on de plantation. Den master Robert axed me what he should do wid Cale, and I tole him to take de two fifty, and leff him gwo. But he say, 'no,' dat he wouldn't sell him fur dat, nohow.' And here the black looked slyly at his master, and a merry twinkle came into his eyes. 'Well, den, I tole master Robert dat I tought I could fix Cale ef he'd leff me manage him jess as I like. He 'greed to dat, an' I gwoes down to Newbern, an' makes Cale come home, an' den I say to him:

"Now, Cale, you stay yere, an' gwo to wuck. Ebery monfh you wuck fur me, an' ebery oder monfh you wuck fur you'seff, an' when you wuck fur you'seff I pay you so much fur ebery barr'l ob dip, an' so much fur ebery barr'l ob scrape, an' so much fur ebery day when you wuck roun'; an' I makes you pay so much fur what you lib on. Well, Cale, he 'gree to dat. He wuck de fust monfh fur heseff, an' he *did* wuck—he done twice so much as any hand on de plantation; but de next monfh, when he wuck fur *me*, he don't do nuffin but lay 'bout, an' git drunk. I stood dat till de monfh wus up—fur I neber did take ter whippin' de nigs, an' master Robert know dat—an' den w'en Cale wus clean sober, I tied him up to gib him a floggin'. Well, w'en he wus a stripped, an' I was jess gwine to lay on de lashes, Cale say to me, says he:

"Look a yere, 'ou Joe, 'ou may whip massa's half ob dis nig jess so long as 'ou likes, but ef 'ou put de lash onter *my* half, I'll take de law on 'ou. I will, shore.'

'Dat sot me a tinkin'; fur de fac wus, I'd nary right to flog *his* half; but den it 'curred ter me dat none but darkies wus roun', an' so I tought I had him, *shore*. Well, I puts on de lashes, an' he keeps a tellin' me he'd hab de law on me, which make me sort o' 'zasparated, till I put 'em on right smart, an' at lass he gib in. Well, w'en I'd a got him a feelin' 'bout right, an' wus only jess puttin' de lass blows on to finish up makin' a decent nigger ob him, master Robert he come up, and when he seed de blood a runnin' down his back, he say Cale had been whipped 'bout 'nough, and I must stop. Cale turned up missin' dat night, an' got off to Newbern; an' shore 'nuff, de next evenin',

long 'bout dark, de sherrif he rode up to de house wid a writ fur master Robert fur habin' made 'salt an' batt'ry on one collud man, called Caleb Preston, an' he pulled out a suspeny dat make massa Robert witness agin heseff! ha! ha! You see Cale wus smart; he know'd master Robert b'longed to de Baptist meeting, an' wouldn't lie fur all de niggers in Jones county; so he had him dar, ha! ha!'

Here Joe for some minutes was unable to continue the narrative. His merriment was contagious. I laughed till my sides were sore, and Preston enjoyed the story quite as much as I did.

'Well, what was the end of it?' I asked.

'Only, master Robert hed to be toted off to Newbern dat night, git bail or sleep in de jail, and de next mornin', af'er de nig hed a hed ten yars' use ob heseff fur nuffin, master Robert hed to do what *he'd* a said, an' his fader afore him hed said, dey neber would do—dat is, take two fifty fur de oder half ob Cale! Ha! ha! De next time I gwoes to Newbern I hunt Cale up, an' I tell him he must study fur de law, shore; an' dat ef he done it, I know'd master Robert would pay de 'spences, out ob lub to de country.'

The negroes who were attending the still had dropped their work to listen to Joe's story, and at its close guffawed in a chorus that made the woods ring. Hearing it, Joe sprang to his feet, shouting out: 'Yere—'bout you' wuck dar; leff me kotch you eavesdroppin' on gemmen agin, an' I'll gib you what I gabe Cale. 'Bout you' wuck, I say.' They turned nimbly to their tasks, and Joe resumed his seat.

'I see the moral of that story, Preston,' I said, when the negro had concluded.

'What is it?'

'That a darky may be as smart as a white man. Cale outwitted you.'

'Well, he did,' he replied, laughing; 'but that isn't the moral: it is that flogging never accomplishes its object.'

'I'm not so sure of that. Joe had brought Cale to terms, 'made a decent nigger on him,' when you, unluckily, interfered.'

'It ain't so much de floggin' on 'em, Mr. Kirke,' said Joe, 'as dar knowin' dat you *will* do it ef dey deserve it. Dar ain't a darky on de plantation dat don't know master Robert an' de good missus 'ould rader be flogged demselves dan flog dem; an' dat wucks bad, Mr. Kirke, sorry bad;' and the negro shook his head with a grave, thoughtful air.

'Tell me, Preston,' I said, after a slight pause, 'how is it that your neighbor Dawsey, with only seventy-five negroes, sends us more produce than you do with a hundred and fifty?'

'Simply because he treats his hands like brutes, while I treat mine like men.'

'I hope you'll take no offence,' I replied, 'but it appears to me there must be some other reason. He has only *half* your number.'

'Well, I will tell you how he and I manage, and you can judge for yourself. Dawsey has seventy-five slaves; forty child-bearing women, twenty men, and fifteen children under five years. The sixty adults are all prime hands. They are given daily tasks, which they cannot possibly do in less than fifteen hours, leaving them only nine hours out of the twenty-four for eating, sleeping, feeding their children, and the waking rest necessary to working people. He never whips them on a week day, because it wastes working time, but makes Sunday a general flogging season. He has two women where he has one man, and each woman is expected to bear a child a year. If she doesn't, she is sold. They are made to work in the field till the labor pains are on them; and they are allowed only two weeks' rest after confinement. Three of them have borne children in the woods this season. He keeps only one nurse for the fifteen children, and as soon as each child is five years old—the age at which it can be legally sold away from its mother—it is disposed of to the traders. In addition, three of these women are his own mistresses and they are expected to have children as fast as the others. He serves their children like the rest; that is, rears them to the age of five, and then sells them as he would so many hogs.'

'My God!' I exclaimed, 'he's a monster.'

'There are different opinions about that. Dawsey passes for a jovial good fellow; keeps open house for his friends; spends money freely at the elections, and two years ago 'got religion' at a camp meeting. He merely

regards his slaves as chattels, and manages his plantation in perhaps the only way that is profitable in an old section of country like this.'

'And how is it with you? How do you manage?' I asked.

'Leff *me* tell, master Robert,' said the black, smiling. 'I knows all de 'ticulars 'bout dat.'

'Well, go on,' said Preston, laughing, 'but don't be too hard on *me*.'

'We hab,' continued the black, 'countin' me in, a hundred an' fifty-one darkies, all in fam'lies—faders, mudders, children, and some on 'em gran'faders and gran'mudders,' most all born on de plantation, an' some on 'em livin' on it fur forty, fifty, sixty, an' seventy yar. Out ob dese, we hab only forty-two full hands, 'case some ob de wimmin dat come in de ages fur full wuck am sickly, puny tings, only fit fur house wuck or nussin'. From de whole I gits equal to fifty-four full hands. 'Cordin' to master Robert's direction, I gib 'em easy ten-hour tasks; but suffin' or anoder turn up 'most ebery day, so dat 'bout half on 'em don't do full wuck, an' I reckon dey don't make, on de whole, more'n 'bout nine hour a day. So you see, Cunnel Dawsey, he hab sixty, an' he wuck em fifteen hour a day; we hab only fifty-four, an' we wuck 'em nine hour a day; an' 'cordin' to my 'rithmetic, dat would make de Cunnel turn out 'bout twice as much truck as we does.'

'And you have twice as many mouths to feed as he,' I remarked; 'and the result is he makes money, while you—'

'Lose nigh onter two thousand a year, Mr. Kirke, an' hab done it ebery yar fur five yar, eber since master Robert come on to de plantation, an' gwo to workin' on human principles, as he calls 'em.'

This was said in so sad and regretful a tone, that, in spite of the serious manner of both the black and his master, I laughed heartily. When my merriment had somewhat subsided, I said:

'Joe, what would you do to mend this state of affairs?'

'It can't be mended if we stay in dis ole country, an' wuck 'cordin' to master Robert's notion.'

'Then you mean to say you can't apply humane principles to slave labor, in an old district of country, and make money?'

'Yes,' said Preston, rising and pacing up and down in the small semi-circle formed by the rosin barrels, 'that is what he means to say, and it is true.'

'Then how do the majority of turpentine planters in this section make money? They *do* make it, that is certain.'

'By overworking their hands, as Dawsey does. All may not be as severe with them as he is, but all overwork them, more or less,' replied Preston.

'I don't know 'bout dat, master Robert, twelve and eben firteen hour a day neber hurt a prime hand, if he hab good feed.'

'Well, it is six o'clock, and supper must be in waiting,' said Preston, drawing out his watch; 'we'll talk more on this subject to-night. Joe, bring the books up to the house this evening. Mr. Kirke has promised to look into our affairs, and I shall need you.'

'Yas, master Robert,' replied the black; and, mounting the horses, Preston and I rode off to the mansion.

CHAPTER X.

Mrs. Preston and master Joe were on the piazza awaiting us, and in the doorway we were met by the younger children. Preston lifted one of them upon his shoulder, and taking another in his arms, led the way to the supper room. However disturbed might be my friend's relations with the outer world, all was peace by his cheerful fireside. No man was ever more blessed in his home. His children were intelligent, loving, and obedient; his wife was one of those rare women—seen nowhere more often than in the South—who, to a cultivated mind and polished manners, add the more homely accomplishments of a good housewife. It is years since she laid aside the weary cares of her plantation home, and entered on the higher duties of another life; but her gentle words are still as fresh in my memory, her kindly image as warm in my heart, as on that autumn day, when she placed her hand in mine for the last time, and spoke the last 'God bless you' which was to fall on my ears from her lips on this side of the grave. She

was a perfect woman—a faithful mistress, a loving wife, a devoted mother. Anticipating every want of her husband, cheerfully instructing her children, overseeing every detail of her household, meting out the weekly allowance of the negroes, visiting daily the cabins of the sick and the infirm, and with her own hand dispensing the soothing cordial or the healing medicine,—or, when all medicine failed, bending over the lowly bed of the dying, and pointing him to the 'better home on high,'—she was a ministering angel—a joy and a blessing to all about her. She wore no costly silks, no diamonds on her fingers, or jewels in her hair; but she was arrayed in garments all rich and beautiful with human love. She knew nothing—cared nothing—about the right or the wrong of slavery; but cheerfully and prayerfully, never wearying and never doubting, she went on in the lowly round of duties allotted her, leaning lovingly on the arm of the GOOD ALL-FATHER, and looking steadfastly to HIM for guidance and support. And, truly, she had her reward. 'Her children rose up and called her blessed; her husband, also, and he praised her.'

Supper was soon over, when my hostess rose and conducted me to the library. That apartment was in an L, detached from the mansion, and communicating with it by a covered passage way. It was plainly furnished, but had a cosy, homelike appearance. Its four walls were lined with books, some standing on end, some resting on their sides, and some leaning negligently against each other; and over the massive centre table were scattered open volumes, old newspapers, and unfinished manuscripts, in most delightful confusion. A half dozen old-fashioned chairs straggled about the floor, as if they did not know exactly what to do with themselves, and a score of old worthies—their faces white as chalk, and their long hair and beards powdered with a whole generation of dust, looked complacently down from the top of the bookshelves. Dust was on the table, on the chairs, on the floor, on the ceiling, and on the musty old volumes ranged along the walls, and dust everywhere told unmistakably that no profane hand ever disturbed the dusty repose which reigned in the apartment.

Two or three oaken logs, supported on bright brass andirons—the only bright things in the room—were blazing cheerfully on the broad hearthstone; and drawing our chairs near, we sat down before them.

'May I come in?' said master Joe, thrusting his head in at the half-closed doorway.

'No, my son,' answered his father; 'Mr. Kirke and I are to talk over business matters.'

'Do let him come, Robert,' said Mrs. Preston; 'he is old enough to learn something of such affairs.'

The lad entered, and seating himself on a low stool by the side of his mother, and burying his head in her lap, was soon fast asleep.

'This room, Mr. Kirke,' said the lady, 'is sacred to Robert and the dust. I beg you will not think I have the care of it.'

'Oh no, madam; it is plain that a *man* has exclusive dominion here; but your husband has been away from it for some time.'

'That does not account for the dust; it hasn't been stirred for a twelve-month;' and after a pause, she added, a thin moisture glistening in her eyes, 'I have not yet thanked you, sir, for saving Phyllis and the children from the clutches of that wretched trader.'

'No thanks are requisite, madam. It was a mere matter of business; we are in the practice of making advances to our consignors.'

'Nevertheless we thank you, sir; Robert and I will ever be grateful for it.'

'Do not speak of it, madam; I would be glad to serve you to a much greater extent.'

The lady made no reply, and a rather embarrassing silence followed for some minutes, when I said:

'Preston, Joe is a remarkable negro; I think I never met one so intelligent and well informed.'

'He *is* very intelligent,' he replied; 'he has fine natural abilities.'

'It is a pity Nature gave him so dark a skin, and made him a—slave.'

'Not a *pity*, Mr. Kirke,' rejoined Mrs. Preston; 'Nature, or rather God, always puts us in our right places. Joseph is more useful where he is than he would be anywhere else.'

'I understood him that he was raised on the plantation,' I added.

'Yes,' replied my host; 'my grandfather bought his mother, who is a native African, when she was a girl; she was a favorite house-servant, and Joe was born in a room over where we are sitting. This building was then all there was of the mansion.'

'And how did he pick up so much information?'

'The old gentleman, who gave little heed to either law or gospel, taught them both to read and write.' (Years after the date of this conversation I learned that Joe was the son of that lawless, graceless old gentleman.) 'And Joe, when a boy, read everything he could lay his hands on. Since I brought my library here, he has devoured about half of the books in it. He devotes every night, from eight o'clock to twelve, to reading.'

'I am surprised that with so much reading he uses so entirely the negro dialect.'

'But he does not. In common conversation he expresses himself in it, for it is the dialect in which a black does his ordinary thinking; but let him get upon an elevated subject, as he does frequently in his sermons, and you will hear words as strong, pure, and simple as any found in the Bible, flow from him like a stream.'

'Does he preach every Sunday?'

'Yes; I usually catechize the people in the morning, and he preaches in the evening.'

'But do you learn all your negroes to read?'

'No, the law does not allow it. I teach them to repeat the catechism, texts of Scripture, and passages from good books, and I explain these to them.'

'And Joe is your overseer?'

'Not exactly that. My father made him overseer about thirty years ago, but the law requires a white man in that situation; and when I took charge of the plantation, the neighbors made a clamor about my having a black. The result was, I 'whipped the devil round the stump,' by hiring a white distiller, and *calling* him 'overseer.' I let Joe, however, 'oversee' him, as you have seen to-day.'

A rap came then at the door, and master Joe, springing up, ushered the subject of our conversation into the room. He held his hat in his hand, and had under his arm a couple of account books.

'This is Joseph the First,' said the lad, taking the black by the coat-tail, and bowing gravely to me.

'And you are Joseph the Second, eh?' I said, laughing.

'Yas, sar, he'm dat 'stinguished gemman,' replied the negro, stroking affectionately the lad's head; 'and he don't dishonor de name, sar. He'm de true blue, dyed in de wool.'

'He was named for Joseph,' said the lady, smiling kindly on the black. 'Bring up a chair, Joseph.'

'Tank you, missus,' and the negro seated himself by the fire, between Preston and me.

'You have brought the documents, I see, Joe; let me look at them,' I said, reaching out my hand for the books.

'Yas, sar, and dey'm all written up till a week back. I reckon *you* kin pick 'em out, Mr. Kirke, dough master Robert he say he don't understand my way ob keepin' 'em.'

I opened the books, and any man of business will appreciate my surprise to find them kept by 'double entry.' Cotton, corn, and turpentine had each its separate account, and at a glance I could see how much had been made or lost by the production of each staple. The handwriting was plain and bold, and the general appearance of the ledger compared favorably with that of a much larger one I knew of, which was the pride of an experienced bookkeeper.

'Why, Joe, I'm astonished,' I exclaimed with unaffected gratification; 'you write like a schoolmaster.'

A flush, which would have been a blush on a lighter skin, overspread the negro's face, as he replied:

'I don't hab practice 'nuff, Mr. Kirke, to write bery well.'

'Practice!' said Preston, 'he has constant practice; he writes the love letters of all the darkies in the district.'

'It am so, dat's a fac, sar', said Joe, a quiet humor twinkling in his eye. 'One ob Cunnel Dawsey's folk came to me tother day—his wife had been sold down Souf, an' he wanted to say to har, dat dough ribers rose, and mountins run atween 'em, he'd neber hab nuffin to do wid no oder 'ooman—so he come to me, and I wrote de letter; an' when I'd a put in all de ribers, an' de mountins, an' eber so many runs, an' thought I'd done it right smart, I read it ober to him, but he say he sort o' reckoned it warnt quite done up 'pletely, not 'xactly 'cluded; an' he 'sisted dat I muss 'sert a pose scrip, axin' her to "scuse de bad writin'."

'And you did it?'

'Yes, sar, I done it.'

'Well, Joe, the important thing just now, is how much you owe. Give me a slip of paper, and let me put these balances together.'

'T'se done dat, Mr. Kirke; here dey am,' and he handed me a correctly drawn-up statement, showing Preston's exact liabilities. I glanced over it, compared it with the footings in the ledger, and said:

'I see by this, Preston, that you owe seventeen hundred dollars, floating debt; twelve hundred dollars, interest on your mortgage, and are overdrawn five hundred dollars on our house.'

'Yes, so Joe makes it, and I reckon he's correct.'

'But dar'm de six hunderd you 'cepted fur master Robert, de oder day, in Newbern—dat ain't counted in,' said Joe.

'Well, all told, it's four thousand, besides the note I have given for Phyllis. What do you calculate on to pay it, Preston?'

'I don't know. How can we pay it, Joe?'

'We moight sell de two stills, and some ob de hosses; I reckon dey'd be 'nuff,' replied the black; 'but de raal trubble, master Robert, am what's cummin'; we'm gwine ahind ebery day, 'case we lose money on ebery crop ob turpentine. Nuffin pay now but de corn and de cotton, and we don't raise 'nuff ob dem to do no good.'

I turned to the ledger, and found that it showed what the black said to be true—corn and cotton had made a handsome profit, but turpentine had 'paid a loss.'

'That is because your trees are old, and now yield scarcely anything but scrape,'^[1] I said.

'Yas, sar, and 'case dey am so thin like, sense we cleaned out de pore ones, dat it take a hand long time to git 'round 'mong 'em.'

'Why not drop turpentine, and cut shingles from the swamp? You've a fortune in those cypress trees.'

'My negroes are not accustomed to swamp work—it would kill them,' replied Preston.

'Mr. Kirke,' said Joe,—'you'll take no 'fence, master Robert, if I says dis?'

'No, go on,' said his master.

'De ting am right in a nutshell, an' jess so clar as apple jack: we owes a heap; we'se gittin' inter debt deeper an' deeper ebery yar; we lose money workin' de ole trees; we hain't got no new ones; an', dar's no use to talk,—master Robert *won't* put de hands inter de swamp. What, den, shill we do?'

Avoiding the darky's question, I said: 'I never before understood why slavery is so clamorous for new fields. I see now—it can draw support only from the virgin soil. It exhausts an old country: like the locusts of Egypt, it blasts the very face of the earth!'

'That is true,' replied Preston; 'but Joe has stated the case correctly, *What shall we do?*'

'One of two things. Sell your plantation and negroes, or take your hands to a new section, where you can raise virgin turpentine.'^[2]

'I cannot sell my negroes—they were all raised with me; and the plantation—it was my ancestors', over a hundred years ago. I would move the hands to a new section, but I have not the means to buy land.'

'Ay, dar's de rub, as Shakspeare say,' said Joe, with a pleasant humor, intended, I thought, to cheer his master, whose face was clouding over with grave thought; 'dat's de ting dat spile de 'gestion ob de king; and in him sleep, such dreams do come ob suffin' better'n dis, some undiscovered country, whar de virgin trees weep tears so white as crystal, and turn to gole de moment dey'm barrled up, dat—'

'Come, Joe, that'll do,' said his master, laughing; 'don't give us any more, or you'll murder *us*, as well as Shakspeare.'

'You don't 'preciate dat great man, master Robert,' rejoined Joe, also laughing.

'No, I don't—not just now.'

'If you could satisfy your outside creditors that things were likely to go better with you in future, could you put off the payment of the three thousand dollars for a time?' I asked.

'I reckon I could—nearly all of it,' replied Preston.

'Well, then, I'll make you a proposition. Buy ten thousand acres on the line of the Manchester railroad. It is finished to Whitesville, and you can buy land within twenty miles of that station, at seventy-five cents an acre. We'll advance the twenty per cent. you'll have to pay down, and five hundred dollars more to start you there, and hold the deed of the land to secure us. Ship your produce to us, and agree to forfeit the land, if, at the end of three years, you have not paid all the original advance. Move your stills, and your able-bodied men and women there, leaving the old and the young negroes

here to raise corn and cotton. *Hire* fifty more prime hands, and put Joe over the whole, with unlimited power to work them to death if he pleases.'

Preston leaned his head on his hand, as if bewildered. He seemed not to understand me, but Joe's face lighted as if a stream of electricity were playing under his dark skin. Mrs. Preston was the first to speak. Rising and taking my hand, she said: 'Robert will do it, Mr. Kirke; and how can we ever thank you enough for your generous—your *noble* conduct toward us? You have taken a weary load off our hearts.'

'It is a simple business transaction, madam; I expect to make money by it. I insist on your husband's consigning his produce to us, and I shall require the forfeit of the land and the improvements, if he does not pay our advances within three years.'

'We kin pay 'em in *one* year, an' you knows it, sar!' exclaimed Joe, springing to his feet, and almost dancing around the room. 'Come, master Robert, look up, an' tell 'im we'll do it, for ole Joe'll make de chips fly as you neber seed 'em fly afore.'

Preston looked up, and a tear rolled down his face, as he said, 'I thank you, my friend. I need not say more.'

'You need not say *that*; only buy the land, and make Joe autocrat of the new plantation, and your bacon is cured.'

'Joe'll show you how bacon am cured, Mr. Kirke, an' he'll name his fuss boy af'er you—*shore*!' shouted the black, grinning all over.

'He can safely promise that,' said the lady, laughing through her tears; 'for Aggy is fifty, and never had a child.'

A half-hour's conversation over the details of the proposed arrangement followed; then Joe rose, and taking the account books under his arm, bade us 'good evenin'.' As he was leaving the room, I asked, 'Do you preach tomorrow?'

'Yas, sar, an' I'se gwine home to study ober de sermon. You'll come dar, sar? You won't har no raal preachin', 'less master Robert feel de sperrit move, fur de Lord don't gib de black man de tongue he gib de white.'

'I'm not sure of that; but I'll be there. Good night.'

'Good night, sar, an' de Lord bless you.'

When he had gone, I said to Preston: 'You have admitted me to your confidence, my friend, and asked my advice; therefore, I think you will pardon me, if I make you a few business suggestions.'

'Most certainly, and I shall be guided by what you say.'

'With a hundred hands in those thick woods, Joe will turn out a vast amount of produce. His ambition is excited with the idea of being his own master, and he will coin money for you; but you need to be prudent. You owe a mortgage of twenty thousand dollars—and mortgage debts are the worst in the world. Your plantation and negroes may be worth three times the amount, but they are in jeopardy so long as it exists. If it were called in on you suddenly, you couldn't pay it—your property would be sacrificed—everything might be lost. Now, I would suggest that you sell, at once, your three hundred acres of swamp land, all your surplus live stock and materials, and appropriate the proceeds to paying your floating debt, and reducing the mortgage.'

'And we might reduce our family expenses, Robert,' said his wife; 'we have too many house-servants. We could hire out five or six of them in Newbern. And Joseph's schooling costs us five hundred dollars a year; he might come home—I could teach him.'

'You would take too much on yourself, Lucy,' replied her husband. 'You are not strong, and you can't spare a single servant.'

'How many have you?' I asked.

'Nine,' said Preston.

'For a family of two adults and three children?'

'It strikes you as too many, Mr. Kirke,' said the lady, 'and it *is*. It is our Southern way; but every additional servant makes additional work for the mistress.'

'I think you are right, madam,' I replied; 'a Northern lady that you know of, takes care of me, Frank, the two young children, and a large house, with only two servants and an errand boy; and she never has anything to do after two o'clock in the day.'

'But you have the Irish; they are better house-servants than our blacks; and you can discharge them if they won't work,' said Preston.

'I would rather have Phyllis than any servant I ever saw at the North. With her, the cook, and one more, I will promise to get on beautifully,' remarked his wife.

Preston gave her a look of indescribable tenderness and affection. What the negro trader had said to me, gave me a key to the thoughts that were passing in his mind. His wife's trust in him was so great, that she was willing to again admit into her family the woman who had made him forget, through long years, the promises he made her in their youth! Truly, the angel of perfect love and forgiveness makes its earthly home in the breast of woman.

Preston's voice quivered as he replied: 'I—I appreciate what you say—Lucy. Do as you think best.'

'But, madam,' I said, 'I think you are really taking too much on yourself—the care of the children will be a great tax on your strength. Would it not be better to employ a governess to instruct them? What is now expended on Joe would pay a competent person.'

'What do you say to that, Joe?' asked his father; 'would you like to come home, and have a woman teacher?'

'I'd like to do what mother wants me to,' said the lad, putting his arms about her neck, and kissing her.

'You're a good boy, Joseph,' said his mother.

'But, you'll let me keep the pony, won't you, father?' said the lad.

'Yes, my son, and if you learn well, you shall go with uncle James when you're fifteen.'

Shortly afterward we separated for the night.

CHAPTER XI.

On a gentle knoll, a few hundred yards from the negro quarters, and in the midst of a grove of pines, whose soft brown tassels covered the ground all around it, stood the negro meetinghouse. It was built of unhewn logs, its crevices chinked with clay, and was large enough to seat about two hundred persons. Though its exterior resembled a backwoods barn, its interior had a neat and tasteful appearance. Evergreen boughs hid its rough beams and bare shingled roof, and long wreaths of pine leaves hung in graceful festoons from its naked walls and narrow windows. On the two sides of a wide aisle, which served to separate the sheep on the right hand from the goats on the left, were long rows of benches, with hard board bottoms, and rough open backs, and beyond them, divided from the rest of the interior by a rustic railing, was the 'family pew,' an enclosure about twelve feet square, neatly carpeted, and furnished with half a dozen arm chairs. Opposite to this was a platform elevated three steps from the floor, and on it stood a rustic settee, a large easy chair, and a modest desk covered with green baize, and decorated with small sprigs of evergreen. On this desk rested a large Bible.

The enormous seashell which served as a bell to this 'house of prayer,' was sending its last blast in long echoes through the old trees, when, with Mrs. Preston and the children, I elbowed an opening through the thick group of grinning Africans that blocked the doorway, and 'worked a passage' down the crowded aisle to the family enclosure. Seating myself in one of its cane-bottomed seats, I glanced around on the assemblage. Such a gathering of woolly heads I had never seen. Every plantation within a circuit of five miles had sent in a representation, till the benches, the aisle, the small area around the pulpit, and the open space near the doorway, were all densely packed. On the left, the men, in gaudy cravats and many-colored waistcoats, were chatting merrily together, and enjoying themselves as heartily as a parcel of Yankees at a clambake; and on the right, the women, in red and yellow turbans, and flaming shawls and neckerchiefs, were bobbing about and flaunting their colors, like so many dolphins sporting in the sunshine. Preston was seated in the lone chair at the back of the pulpit, and Boss Joe and Black Jack occupied the settee near him. The latter shortly rose to open

the services, and, in a moment, a deep silence fell on the noisy multitude. The old preacher had carefully combed his thin wool into a pyramid on the top of his head, and he looked, dressed in glossy black pants, longtailed blue coat, ruffled shirt, and high shirt collar, like a stuffed specimen at an exhibition of wax figures. Stepping rather unsteadily to the front of the platform, he flourished his red cotton bandanna, and spreading his huge claws over the large Bible, said:

'Dear bred'rin, leff us begin de worship ob de Lord by singin':

'From all dat dwell below de skies
Leff de Creator's praise arise."

A half dozen darky fiddlers at the left of the pulpit tuned their strings, and then the whole assemblage rose and burst into that grand old hymn. As its last echoes were dying away, Joe got up, and opening the large Bible, read, in a clear, mellow voice, a portion of the one hundred and nineteenth Psalm. When he had concluded, the old darky again came forward.

Gazing complacently around on the audience for a moment, he drawled out: 'My bred'rin, leff us raise our hearts to de Lord.' The whole congregation then kneeled, and Jack, closing his eyes, clenching his hands together, and throwing his head back, until his nose came nearly on a line with the roof of the building, 'lifted up his voice' and prayed.

After the fashion of very many white preachers, he began by telling the Lord all about Himself; all He had ever done, and all He is going to do; how long He had lived, and how long He is going to live; how great He is—'taller dan de mountin's, and bigger dan de seas.' How He made the world in six days, and then, 'gittin' tired, rested on de sevenfh;' How He formed man out of the dust of the ground, and then out of his rib formed woman; how the woman tempted the man, and he fell, and how woman has 'raised Cain' on the earth ever since. How He sent the flood, and how Noah builded the ark; how Noah axed all the wild 'critters' into it, and how they all came in two by two, and how Noah and the wild beasts lay down lovingly together, till the 'wet spell' was over. How He chose the Jews—a meaner race than the 'pore whites'—to be his peculiar people; and how that proves His boundless love and unlimited goodness; 'fur no oder man in all creashun would hab taken *dem* folks up, no how.' How Moses, when he

came down from the Mount, 'stumbled and broke de law; and how 'ebery one of us dat hab come inter de worle sense, hab stumbled and broke de law, 'case he did,' How Noah, though he was a white man, and had a white wife, begat a black son; and how that black son was a great sinner, and how all his descendants have taken after him, and been mighty big sinners ever since.

Then he described the sinners, particularly the black sinners present; and if half of what he said was true, every one of them deserved to be sold 'down Soufh,' and kept on cold hominy and hoeecake all the rest of his days.

The prayer was a strange mixture of absurdity, presumption, and profanity, and I felt relieved to hear his long 'amen,' and to see Joe rise and again approach the pulpit.

Requesting some one present to raise a few of the windows (I took occasion, afterward, to thank him for that very considerate thought), Joe opened the Bible, and said: 'My friends, I am gwine to talk ter you from de tex, 'An' dey drew an' lifted up Joseph out ob de pit, an' sold Joseph to the Ishmaelites fur twenty pieces ob silver, an' dey brought Joseph inter Egypt.'

'You all knows,' he continued, 'de story ob Joseph an' his bred'rin; how dey wus raised up by dar fader Jacob in a wile country, whar dar warn't no schools, an' no 'telligence, an' no larnin'; and how his fader lub'd Joseph more dan all ob his bred'rin, an' make fur him a coat ob many colors. But p'raps you don't know dat de Lord lub Joseph a great sight better'n his fader did, an' 'case He lub him so, dat He hardened de hearts ob his bred'rin agin him, till dey sole him to de Ishmaelites—de slavetraders ob dem days, to be taken down inter Egypt. An' p'raps you don't know dat Egypt wus a great country, whar dar wus schools, an' churches, an' great libraries ob books, an' all manner ob sciences; an' dat Joseph wus made de lord ob all dat country, an' dat finarly he got his fader, an' his bred'rin, an' dar wives, an' all dar little ones, to come down dar, an' stay; whar, dough de tasks war sometimes hard, an' dey hed to 'arn dar bred by de sweat ob dar brow, dey could git knowledge an' larnin'. An' p'raps, too, you don't know dat de chil'ren ob Israel, who war de chil'ren ob Joseph an' his bred'rin, when dey'd staid down dar in Egypt de 'pointed time, war taken by de Lord inter de lan' ob Canaan, which was a lan' 'flowin' wid milk and honey;' and dat dey war

gib'n dat lan' far dar possession. Now, my friends,' and he paused and looked around on the congregation, 'de story ob Joseph am de story ob de brack man; *he* hab been taken out ob de pit; *he* hab been sole fur twenty pieces ob silver; *he* hab been brought inter Egypt, an', bless de Lord, *he* am bound fur de lan' ob Canaan.

'He hab been taken out ob de pit. A pit, my friends, am a dark place, whar de sun neber shine, an' de light neber come; an' Africa, de country whar our faders an' our gran'faders come from—am a pit; fur de darkness cobers dat lan', an' gross darkness de people dareof. Dey hab no cloes—dey lib in cabins made ob clay, an' in holes in de groun'—dey kill an' eat one anoder, an' dey'm allers at war wid one anoder. But de white man he gwoe dar, an' he buy 'em fur twenty pieces ob silver—dat's' zactly de price—twenty silver dollars—dey pay dat fur 'em up ter dis day—dem pore, ign'rant folks won't take nuffin' but silver. Well, de white man buy 'em, and he fotch 'em to dis country, which am like de lan' ob Egypt, full ob schools, ob churches, ob larnin,' an' ob all manner ob good tings. Shore, we hab to wuck hard har; some ob us hab to bear heaby burdens, an' to make bricks w'en dey gib us no straw to make 'em wid; but we am in de lan' ob Egypt, whar we hab knowledge ob de Lord; whar de gospil am preach to us, an' whar we kin fine out de rode to de lan' ob Canaan. (To be shore, we karn't all larn out ob de books; but book larnin' neber make a man, no how.) Yas, my friends, yere we kin fine out de road to de lan' ob Canaan; an' do ye know what dat lan' ob Canaan, dat'm waitin' fur de brack man, am? Do ye 'spose it am a lan' whar de days am hot, an' de nights am cole; whar we'll hoe de cotton, an' gader de turpentine, an' cut de shingles in de swamp? whar we'll wuck till we drop down; whar we'll hunger an' furst? whar de fever will burn in our veins, an' de nager will rattle our bones as de corn am rattled in de hopper? No, my friends, 'tain't no lan' like dat! It am de habitation on high, de city builded ob de Lord, de eberlasting kingdom founded by de Eternal God, who made heaben an' 'arth, de sea, an' all dat in dem is! Oh, tink ob dat, my friends, an' hab courage! Tink ob dat when you'm a faint an' a weary, an' leff you' hearts be glad, an' you' souls rejoice in hope. Fur dat lan' ain't 'spressly fur de white man—it am fur de brack man, too; an' ebery one ob us, eben de brackest, kin git to it ef we'll jess foller der road—ef we'll jess do our duty, bear meekly our burdens, an' lean humbly on de arm ob de Lord. I knows it am so, my friends. I *knows* it am so, fur de oder night,

when de deep sleep fell upon me, I dreamed a dream. I fought dar come to my cabin, an' stood aside ob my bed, a great white angel, wid feet dat touch de 'arth, but wid head dat reach unto de heabens. He wore raiment shinin' like silver, an' on his head wus a girdle ob stars. His face wus dazzlin' as de sun, an' his eyes war like flamin' fire. He look at me, an' he say: 'Joseph, come up hither!' He reach out his hand an' he lift me up—above de 'arth—above de clouds—above de stars—'way up to de high heabens, whar am de sperrits ob just men made perfect, who hab been redeemed from among men, who hab gone fru great tribulation, whose garments hab been washed clean in de blood ob de Lamb! 'Dis,' he say, 'am de city ob de livin' God, de heabenly Jerusalem, whose foundations am saffomires, whose walls am silver, whose streets am gold, whose houses am jewels an' all precious stones! Here de sun neber sets. Here de storm an' de hurricane neber come, an' here, Joseph, am a dwellin' prepared fur you—'here, ef you'm faithful an' 'bedient, you shill come when you' wuck on de 'arth am ober!'

The speaker had been gradually warming with his subject till he uttered this last sentence, when his voice trembled, his face glowed, and his upturned eye seemed gazing on the ineffable glories of the land he was describing. A stillness like that of death fell on the assemblage, and the simple blacks, hanging breathlessly on his words, looked up to where Joe's hand was pointing, as if they too had caught the vision on which his eyes were feasting. In a moment, he continued:

'I looked round, an' I saw dat beautiful city; I breafted its air; I walked its streets; I hard its music—de neber endin' song which its countless people send up to de throne ob de Great Father; an' I say to de angel: 'Do brack folks lib yere? Kin *dey* come to dis beautiful country?' an' he say: You shill see.' Den he lead me fru dose shinin' streets, out inter de open fiel's whar war pleasant pastures, greener dan any on de 'arth, an' still waters, dat sparkle in de sun, jess like missus' diamonds in de light ob de fire.' (I did not know that Mrs. Preston wore diamonds—she certainly had not worn them in my presence.) 'He lead me out till we come to a great woods, whar fount'ins war playin', an' birds war singin', an' flowers war growin', an' de air wus full of fragrance; an' dar I seed a great crowd ob people gadered togeder, a listenin' to one dat wus a talkin' to 'em. Dar wus Ab'ram, an' Isaac, an' Jacob,—dar wus Moses, an' Joseph, au' Samuel—dar wus David, an' Solomon, an' de prophets—dar wus Paul, an' John, an' Peter,—dar wus

'most all de great an' good men who hab libed in de worle; an' dar too, right aside ob de one dat wus speakin', wus de blessed Saviour, wid de woun' in his side, an' de print ob de nails in his hands. An' who do you tink wus a talkin' dar, to all dem great people? Who do you tink wus fought good 'nuff to stan' by de side ob de blessed Saviour? It wus a brack man! It wus a brack man, who, down yere had been ole, an' lame, an' blind, an' ob no account—so no account he wouldn't sell fur nuffin'. He wus tellin' dem great folks ob de great lub ob de Lord to him, an' dar tears rolled down as dey hard him. He tole 'em how he use to lib in Car'lina—how he wus a slave; how he'd 'most nuffin' to eat; how he wus wucked in de swamp; how, 'fore de sun rose, an' 'way inter de night, he use to stan' in de mud an' de water, till his bones war sore, his heart wus weary, his soul wus faint. How his massa flog him, 'cause he couldn't wuck no more, till de blood run down his back, an' it wus a ridged like de ploughed groun'. How his wife wus whipped to death afore his bery eyes; how his chil'ren—all 'cept one—war sole 'way from him; how dat one 'bused him, an' flogged him, an' tormented him, till he wus jess ready to die. How, when his hair wus white, his body wus bent, his strength wus gone, an' he was ole, an' lame, an' blind, his massa drove him 'way, and make him shirk fur himseff. How he beg in de roads; how he sleep in de woods; in de cole an' de rain, till a good gemman take him in, gib him a bed, tend to his wants, an' pray ober him when he die. He tole 'em all dat; but he say dat fru it all, he hab peace; fru it all, de Lord wus good to him; fru it all, he felt His lub in his heart; fru it all, de blessed Redeemer wus wid him; fru it all, he knowed dat mercy an' salvation am in de heabens! An' DEY AM DAR! Dey took him 'way, 'way from de 'arth; 'way from his suffrin's an' his sorrers down yere, to joy, an' peace, an' rest up dar. Up dar, whar all great an' good men call him brudder—whar de Lord Jehobah call him son, an' whar de blessed Saviour will leff him stan' at his right hand, foreber and eber. An' he, my friends, wus a BRACK MAN! An' who do you 'spose he wus? Who do you 'spose he wus?'

He paused for a moment as he repeated the question, and then, in a slow, impressive manner, continued:

'It wus ole Cale—Cunnel Dawsey's Cale; an' dat good gemman dat take him in and pray ober him when he die—wus *my* master—yas, bless de Lord, he wus MY master!'

As Joe uttered these last words, Preston bowed his head, his wife sobbed aloud, and the black people gave out a low cry, as sad as the wail which their own mourners breathe over the dead. Fixing his eyes on a tall, stalwart negro in the audience, the preacher continued:

'An' he wus *you*' fader, Jake! You fader, who, when he wus down yere, you 'bused, an' persecuted, an' treated like a dog, but who up dar am fought worthy to stand at de Saviour's right hand! I *knows* it wus him, fur I seed him, I talked wid him, an' he gabe me suffin' to tell you. Stand up now, an' yere what he hab to say.'

The black man's face assumed a dogged expression; he moved uneasily on his seat, but showed no inclination to rise. In a firm, imperious tone, Joe again called out to him:

'Stand up, I say! Folks like you' fader am now, don't talk to sech as you when dey'm sittin' down: stand up, or I'll gib you what Cunnel Dawsey neber gabe you in all you' life.'

The negro reluctantly rose. Every eye was fixed upon him as Joe continued:

'He ax me to say to you, Jake, dat he lubs you—lubs you bery much—dat he fully an' freely furgibs you fur all de wrong you eber done him; fur all de tears an' de sorrer you eber cause him. And he say to me: 'Tell Jake dat I'se been down dar an' seed him. I'se seed how he shirk his wuck; how he 'buse his wife an' chil'ren; how he hate his massa, an' mean to kill him—(dough his massa am hard on him, 'tain't no 'scuse fur dat). How he swar, an' lie, an' steal, an' teach all de oder brack folks to do de same. How he'm no fought ob his soul; no fought ob dyin'; no fought ob whar he'm gwine when de Lord's patience am clean worn out wid him. Tell him dat ef he gwo on dis way, he'll neber see his ole fader no more; neber see his ole mudder, an' his little brudders, who am up yere, too, no more; neber come to dis fine country, but be shet out inter outer darkness, whar am weepin' an' wailin' an' knashin' ob teeth. Oh! tell him dis, an' 'treat him, by all his fader's keer fur him when he wus a chile; by all his lub fur him now; by all de goodness ob de Lord, who hab borne wid him fru all dese long years, to turn round—to turn round, NOW, an' sot his face towards dis blessed country, whar he kin hab joy foreber! Tell him, too, dat ef he'll do dis, dat his ole fader'll leab his happy home an' come down dar an' holp him; holp him at his wuck; holp

him to bar ebery load; gib him strength when he'm weak; hole up his feet when he'm weary; watch ober him day and night, all de time, till he'm ready to come up yere, an' lib wid de Saviour foreber! Tell him—'

Joe paused, for a wild cry echoed through the building, and the negro fell in strong convulsions to the floor.

A scene of indescribable excitement and confusion followed, during which the black was carried out, and, more dead than alive, laid upon the ground. When quiet was somewhat restored, Preston made a short and feeling prayer, and then, after giving out a hymn, he dismissed the congregation with the usual benediction.

FOOTNOTES:

[1] 'Scrape' is the turpentine gathered from the face of the pine. On old trees, the yearly incision is made high above the boxes, and the sap, in flowing down, passes over and adheres to the previously scarified surface. It is thus exposed to the sun, which evaporates the more volatile and valuable portion, and leaves only the hard, which, when manufactured, is mostly rosin. 'Scrape' turpentine is only about half as valuable as 'dip.'

[2] "Virgin" Turpentine is twice as valuable as "Dip."

THE CONSEQUENCES OF THE REBELLION.

II.

The sturdy oak which is not prostrated by the storm that assails it is made thereby to take deeper hold, and to draw the sustenance for a larger growth from the torn and loosened soil into which it has opportunity to thrust new roots and tendrils. Reinvigorated by the resisted violence, its branches shoot upward to the skies and extend themselves laterally with majestic breadth. It gradually gains strength and becomes so firmly rooted in its place that it bids defiance to the repeated tempests vainly striving to overthrow it, and stands for centuries, sublime in its unconquerable might and proud endurance. Our noble Union, fiercely assailed in its early maturity, before its strength has been fully developed, now bends before the hurricane of civil war, swaying to and fro with fearful and threatening movements at every paroxysm of the tremendous blast. We look on with intense agony of suspense, to see whether it will stand the terrible ordeal, and outlive the unexampled convulsion of social elements in which its strength and endurance have been so sorely tested. Instinctively we know that if it survive the present momentous crisis, successfully resisting the attack of the enemy which assails it so furiously, its foundations will be immensely strengthened, and its power of resistance in future dangers will be indefinitely augmented. Prolonged and permanent existence, with assured security and repose, will be the best and most indisputable result of its triumph. Though shaken and torn by the deadly assault, and to a certain extent deprived of its usual resources, in the very effort of resistance it will have put forth new connections, which returning peace will multiply and strengthen. The immense demand on its energy and enterprise will have aroused all its slumbering capacities and stimulated them to the highest point of exertion. Under the necessity of self-preservation, the nation will have been fully awakened to a sense of its gigantic power, which, when employed in the benign pursuits of peace, will be sufficient speedily to restore its prosperity to even more than former splendor. The resources of our broad domain are so unbounded, and the courage and persistence of our

people so indomitable, that even the sacrifices and losses of so great a war will make no serious impression on the destined career of this youthful and growing nation. So long as the vigor and elasticity of the popular force is not absolutely overpowered and suppressed, the reaction will only be so much the stronger for all the mighty pressure which has been placed upon it. Returning strength, so invigorated and redoubled by repose, will enable the people to bear the burden patiently, and within a comparatively brief period to throw it off entirely; and then they will bound forward with renewed energy in that race of unexampled progress which has been sadly interrupted, but not by any means wholly arrested.

If peace had continued, and especially if no civil war had occurred to desolate our country, the labors of the population would have been directed chiefly to the increase of wealth, and to the improvement which always accompanies material prosperity. It would be a monstrous error to say that the interruption of these occupations has not been a calamity of the most serious character. Yet is it not altogether unmixed with good. Indeed, it is by no means certain that, in the circumstances which gave rise to the war, there was not an actual necessity, of a moral nature, which made it on the whole advantageous to arouse the nation to this gigantic strife, and thus to exchange its ordinary struggle for wealth into a combat for a momentous principle. Is it questionable whether, in every case, the establishment of such a principle is not the most important of all objects, and whether every other pursuit and occupation ought not to be made secondary to it? In the sacrifices and sufferings which a nation undergoes for the sake of asserting an important moral or political truth, there is always a wholesome virtue that in some measure redeems the brutality and violence which are the inseparable accompaniments of all wars, and which peculiarly characterize the history of civil wars, in every age and country. It is not merely the elevated and unselfish sentiment of patriotism, as known in former ages, and expressed in the noble sentiment, *dulce et decorum est pro patria mori*, which, engenders lofty impulses and nourishes the rugged virtues of the soldier in the heart; but the still higher sentiment of love for humanity and universal freedom—a sentiment wholly unknown in what are called the heroic ages—sanctifies the labors, the wounds, and the glorious death of the martyrs who struggle and fall in such a contest. Men have often fought and willingly died in the cause of their country, regardless of the merits of the

controversy between the opposing parties. There is a certain manliness and devotion to others in this species of patriotism, which commands respect and admiration; and this feeling of approbation rises still higher when the cause of the nation is undeniably just, and the self-sacrificing patriot is giving his life for the purchase of liberty to his country. But the highest and noblest of all exhibitions is that in which the sacrifice is made for the good of the race—for principles in which all men are alike interested, and in which the martyr can claim no peculiar advantage to himself or to his own branch of the human family. The nation which accepts war for such a cause, and wages it with all her means and energies, exhibits a moral grandeur which, in spite of misfortune, has a saving power, capable of overcoming and compensating all calamities, of whatever nature and extent. That nation cannot be overthrown—not unless the laws of the Most High himself can be subverted, and the right be made permanently to succumb to the wrong. Let it be understood, however, that this assertion is made only with reference to wars which are essentially defensive; for no nation has the right to propagate even the best and noblest principles by the power of the sword. In our case, it is true, other motives concur in moving the nation to this tremendous struggle. Not merely the rights and interests of an inferior, degraded, and suffering race appeal to our humanity; but the unity and greatness of our country, its influence abroad, and its success and prosperity at home, are all involved. It is one of many instances in which the best and highest impulses of our nature are reënforced by the dictates of the noblest and most elevated of human interests—the interests of a nation, of a continent, yea, of the world itself; for our gates are still open to the ingress of our brothers from abroad, and our immense and fertile domain, as well as our priceless institutions, are freely offered to their participation.

But, aside from the principles involved in the war, there are results of an interesting character springing from it, which are well worthy the attention of the statesman and the patriot. Two very opposite effects are produced on the minds of the men engaged in such a contest as this, or, indeed, in any contest of arms whatever, when it assumes the proportions of a regular war. The volunteering of our young men of all classes, in numbers so immense, is an extraordinary phenomenon. These soldiers by choice, many of them educated and intelligent, and impelled by deliberate considerations of principle, willingly undergo the hard labor of military training, of marches

and campaigns, and the still more trying inactivity of life in camps and fortresses, in new and unfriendly regions and climates. They fearlessly face death in every ghastly form, on the battle field, by exposure in all seasons, by physical exhaustion, and by the most dreadful contagious diseases. They devote themselves unreservedly to the great cause, and in doing so exhibit the noblest spirit of self-sacrifice, and that on the grandest scale presented in history. Fortitude and courage, contempt of the most appalling dangers, disregard of suffering and privation, wounds, mutilation, and lingering death—these are the habits of soul which our citizen soldiers cultivate, and which tend to strengthen and harden the character, and to give it great moral force. The great qualities thus nurtured in the bosom of the multitudes destined soon to return to peaceful life will assuredly make a powerful impression on the whole society, which must be thoroughly pervaded with the manly virtues thence destined to be infused into it. Every man who has been conspicuous for his soldierly conduct and for the faithful performance of duty will be an object of general respect, though he may have passed unscathed through the fiery ordeal; while every maimed and wounded citizen will be regarded as bearing on his person, in his honorable scars and deficient limbs, the decorations which exalt and ennoble him in the eyes of his countrymen. Many a chivalrous deed will be recounted with pride and satisfaction, and handed down to immortality by the pen of history and poetry, and by the pencil and chisel of art. Even the undistinguished services of those who have fought in the war for the Union, and who have passed unchallenged through the fiery ordeal, will be cherished by their children, and transmitted to their remoter posterity with patriotic pride and pardonable self-satisfaction. Thus the glory of noble deeds in this memorable war will everywhere shed its lustre on the national character, and will tend to stimulate the loftiest virtues in the present and succeeding generations.

But, on the other hand, the unavoidable dissipation of military life, the vices of the camp, the brutality and want of moral sensibility engendered by the necessity of slaughter and the horrible ravages of war, will tend largely to counteract the good results already noted. Those who may be nobly disdainful of their own sufferings, will sometimes be even more regardless of the sufferings of others; and perhaps sometimes, with the natural perversion of human passion effected by civil war, will seek to avenge their

own misfortunes by ungenerous rigor and cruelty toward all within their power, suspected of favoring the enemy only in thought or sentiment. Even this imperfect discrimination is too often altogether omitted, and innocent loyalty is made to suffer losses and severities which ought never to be visited on non-combatants, even though they be of the enemy. The fearful disregard of human life, and of the accumulations of human labor in the shape of property, which marks the movements of our armies in almost all quarters, and even distinguishes the conduct of some of our high officials, constitutes one of the most serious evils which attend the contest, and which will leave their natural consequences as a permanent injury to the nation. The record of these misdeeds, now disregarded in the hurry and excitement of the conflict, will hereafter confront us with terrible effect. The bad acts themselves will long continue to bear fruit after their kind, and to scatter the seeds of vice over the land. Such drawbacks, however, accompany more or less all great military operations, no matter how sacred the cause in which armies are engaged. Yet, we fear, no such example of generous and unselfish devotion to a holy cause can be found in our present experience as was exhibited by the French people in their violent and bloody revolution of 1789. The mercenary spirit has largely infected the military as well as the civil agencies of our Government. But a people struggling for great principles are compelled to use such instruments as may be at its command; and if the material of armies and their connections in civil life be often of a character to be degraded rather than elevated by the employments and experiences of war, it is nevertheless certain that these bad effects do not always, perhaps not generally, outweigh and overpower the good.

History does not present another example of large armies made up of such men as those who now constitute the defenders of the Union. For intelligence and moral worth, they are unsurpassed by the masses of any population in the civilized world, and certainly they are far superior in all respects to those usually constituting the armies of other nations. To our shame and regret, there are certainly some exceptions to this statement; but these are comparatively few, and mostly confined to those who have not enjoyed the full advantage of our noble system of universal education. In many instances, the best young men in the land have gone into the army as privates; while in the rural districts and from the Western States, the very bone and sinew of the population—the sober, steady, intelligent,

industrious, and prosperous part of the people—have taken up arms in the cause of the Union, from a deliberate approval of the policy of the war on our part, and from the noblest and most unselfish motives of patriotism. The preponderance of such men in our armies evidently makes them, on the whole, susceptible to the good, rather than to the bad influences of war. Reflection, self-respect, rational views of the causes and objects of the war, and elevated motives of action, cannot fail to bring those who possess these qualities all the benefits of self-denial, of patriotic labor willingly expended, and of sacrifices made and sufferings endured in a good and noble cause. The mental cultivation and moral training of the American citizen constitute a shield, from whose solid and polished surface the missiles of temptation, which easily penetrate other defences, usually glance or rebound with harmless effect. The carnage of the battle field, the bombardment and capture of cities, and the ravages of armies, marching or in camp, which too often harden the hearts and blunt the sensibilities of the ordinary soldier, have no such effect, or, at least, a much less effect, in this particular, on the minds of humane and educated men. Hence we may fairly anticipate that the influence of this war on the men who compose the army, and who must sooner or later return to the occupations they have temporarily left, will be of a far better character than that of any war ever hitherto waged in any part of the world. No such conditions have ever heretofore existed in reference to any great national contest. Our immense volunteer army, so largely composed of intelligent and respectable men—men who are fully capable, and entitled by their votes, to influence the great measures of war or peace—presents a spectacle new and wholly unexampled in history; and the consequences of our contest to the moral and social condition of the people will be correspondingly unusual and important. We may safely assume from these considerations that the good will preponderate over the bad.

There is, however, another species of influence of a more questionable character, which is worthy of consideration in any attempt to anticipate the consequences of this extraordinary rebellion. The nature of our institutions renders them accessible to popular impulses at very brief intervals of time; and it may well be expected, that, after the conclusion of the war, especially if it be successful, a sentiment nearly universal will prevail in favor of the elevation of the men who have been conspicuous in the military service. There will be a disposition to reward the successful soldier with civic

honors, and to place the conduct of the Government in the hands of men who have exhibited only a capacity to lead and handle armies. The power of the military men will in this way be prolonged. Doubtless, a great soldier may be expected to show large executive abilities, and with proper experience may well be intrusted with the management of the highest offices in our country. There are times and occasions, of which the present is a most memorable instance, when the peculiar capacities of a great military leader would be of infinite service to the cause of freedom and humanity, provided, at the same time, he should possess undoubted integrity and patriotism, without any mixture of bad ambition. A Washington, or a Jackson, in the Presidential chair at the commencement of this rebellion, would have been of inestimable value to our country, outweighing the importance of mighty armies and countless treasure; for the value both of men and money, in such emergencies, depends wholly on the skill and wisdom with which they are used and directed. If God had vouchsafed us one grand will to control the human tempest now raging around us, our noble country would have been saved from many calamities and much disgrace, such as will require hard labor and heavy sacrifices to overcome.

It is not, therefore, the probability that military men may frequently be elevated to high office that need give any apprehension to the lover of his country. But it is the almost certain prevalence of a blind and undistinguishing sentiment of caste, which will seek to control the elections in favor of the soldier under all circumstances, whether fit or unfit for the position sought. We are likely to have soldiers in all the executive offices, soldiers in the diplomatic service, in the legislative halls, and even on the bench. The danger is that the popular enthusiasm in favor of those who have served in the war will go to the extent of substituting gallantry and good conduct in the field for those very different qualifications demanded in responsible civil stations. A wound received, or a limb lost, will, in many instances, constitute a stronger recommendation for political preferment than long experience, coupled with ability and high character. This disposition to reward those who have faithfully served the country in time of war is an amiable characteristic of the American people, and proves that, in this particular at least, republics are not ungrateful. But it is clear, at the same time, that the public gratitude, thus turned into political channels, may be productive of great evil, by lowering the character of the men employed

in performing public functions of importance. Already the results of our elective system have become the subject of intense anxiety in the minds of reflecting men. Notwithstanding the extensive provision made for the education of our people, of the universality and efficiency of which we justly boast, an almost equal extension of the elective franchise has not tended to improve the wisdom of the popular choice, or the character and qualifications of the men selected in latter times to fill high public offices. So seriously is this truth felt, that it is now a political problem of the first importance to devise some means by which the frequent elections in our country may be made to work more certainly and uniformly to the elevation of good and able men, who now too often shun rather than seek employment in the national service. If this indispensable improvement cannot be accomplished, our institutions are in danger of falling into contempt, as exhibiting no very great advance on the old modes of hereditary designation of political functionaries. The party machinery of the present day, adapted chiefly to the purpose of availability and the means of securing success at all hazards, is mostly responsible for the degeneracy which unquestionably characterizes the public men of this day, in comparison with those who in former times filled the same high stations. In view of these facts, it may be that the military regime about to be ushered in as a consequence of the great existing war, will of itself be an improvement, since it must be acknowledged there is some merit in the devotion and sacrifices of those who fight the battles of the Union, while it is notorious that corrupt political parties too frequently select and reward their leaders without regard to merit at all.

It may be said that there is inconsistency and contradiction in the views presented, inasmuch as the claim for remarkable intelligence and superiority in the rank and file of the army would imply too much patriotism and self-sacrifice to admit of the consequences suggested. But we must remember the immense numbers of our army, its large proportion to the whole population, the *esprit de corps* so naturally engendered in such a body, and the powerful influence it may wield by turning the scale in our inveterate and often nicely balanced partisan contests. We must also take into consideration that well known principle of human nature, as old as government itself, which seems to impel all men possessing irresponsible power to abuse it, and employ it for their own selfish advantage. This is

peculiarly the case with *classes* which gain ascendancy, as such, over the other parts of the community. Political parties in our country will surely not fail to seek alliance with the citizen soldiers at the close of the war, and to secure success by all the arts and devices which can be made available to that end. But let us hope the good sense and patriotism of our young men, their moderation and self-control, will be as conspicuous in future political campaigns, as in those more glorious ones which are yet destined to overthrow our enemies and restore our inestimable Union to its former greatness.

But it is not our purpose to confine these remarks to the loyal States and the Union armies; nor is it at all paradoxical to extend them to the region and the population controlled by the rebel government. Every good citizen, having confidence in the supremacy of right and the destiny of our country, anticipates the reunion of the States at the conclusion of the war. The bulk of the Southern army must likewise return to society, and carry with it such influence as it may derive from the peculiar character of its cause, the motives by which it is animated, and the acts, good or bad, noble or mean, which it may perform. It cannot be denied that the soldiers of the rebel army have exhibited the highest personal qualities, of daring courage, skilful enterprise, patient endurance, and the most indomitable perseverance, under difficulties apparently insuperable. Their cause is bad. The impartial judgment of mankind will pronounce it so, when the passions of the hour shall have completely subsided. But the masses of the Southern people evidently do not take this view of the war they are waging against the Government which has so long protected them, and under which they have acquired all the strength they are now ungratefully using to overthrow it. They have been artfully misled into the belief that they are engaged in a war altogether defensive—that they are fighting *pro aris et focis*—in short, that they have given themselves up to the holiest work which any people can ever be called on to undertake. Doubtless, in frequent instances, and sometimes among considerable populations, different sentiments prevail and have been entertained from the beginning. A glimmering of the truth may occasionally dawn on the minds of those who went into the contest with entire confidence in the justice of their cause. But on the whole it is vain to deny the sincerity and the deep convictions of the Southern people. Nothing less than these could have sustained them in the appalling

difficulties of their position. No people ever conducted a more brilliant and successful defensive war against the vast odds, on land and sea, with which they have had to contend. Let us be sufficiently magnanimous to confess the truth, unpleasant though it be, and acknowledge that they have hitherto outmanaged us in the general conduct of the war. They have exhibited an earnestness and determination, a gallantry and devotion, worthy of the highest purposes that ever call forth the energy of struggling nations. It is vain to say they are compelled by a military despotism; for, however strong and arbitrary their government may be, it evidently rests upon the support of the people, and it could never continue the present contest against popular disaffection at home joined with the mighty invading armies of the Union.

What then are to be the results of great efforts and sacrifices in a cause which, though we believe it to be bad, they consider holy? Are their chivalrous deeds to be less ennobling to the character of Southern men, than similar ones, springing from like motives, on the part of our armies? It is the motive which gives character to all actions, and mistake or error of the most perverse kind, when arising from honest conviction, cannot alter the merit of what is done or suffered. If it be said that the assumed convictions of the Southern people are incredible, it is only necessary to look back a few centuries, in order to see the whole Christian world entertaining sentiments equally abhorrent to the enlightened conscience of the present day. The universal participation in the slave trade, and the horrible persecutions for religious heresy, which everywhere prevailed, are sad evidences of the possibility of indulging the most disastrous errors with perfect sincerity. Besides, if we consider how great a diversity of opinion prevails among the people of the loyal States, on the subject of the rebellion and its causes, it will require no great degree of credulity to induce the belief that the Southern people are impelled by deep convictions in their present struggle.

Failure and defeat on their part will cast the usual discredit on the cause which is overthrown; and in this case we do not entertain a doubt that ultimately the right will prevail, and that the discomfiture and disgrace will fall where justice would require. Men will be deeply mortified to find themselves utterly overcome, and all their brave deeds and their magnanimous sacrifices and sufferings expended in a failing and a bad

cause. It will be their great misfortune that serious reflection and conviction should come to them only after these great events, and when it is too late to recall them. But it is the peculiar characteristic of contests like this, that they do eventually make clear the subjects of dispute in which they originate. All the wranglings of politicians, and all the learning and logic of contending theologians in divided churches, could never accomplish the speedy and thorough decision of contested questions which will follow this tremendous war. Bold and extra-constitutional expedients necessarily grow out of the prevailing violence. They will soon test the possibility of measures which are too great for ordinary times, and will push the existing tendencies toward fundamental change into sudden and premature development.

Physical strength and success in war are by no means fair tests of truth and principle; but in the present contest, such is the condition of our country and the character of its relations with the civilized world that, if the Union shall be restored to its former integrity, the result will give strong evidence of the righteousness of our cause. Such are the temptations to foreign interference, and such the evident disposition of the ruling dynasties in some powerful nations to destroy the influence and example of this great republic, as well as to break down her rivalry in commerce and manufactures, that nothing but a holy cause, appealing to the moral sense of mankind, could prevent the natural alliance between despotism abroad and the kindred system in the South which seeks to establish its tyranny on the ruins of our Government. Besides, the diverging systems of policy in the two sections have carried on their struggle for more than a quarter of a century, under conditions which make it demonstrable that their present inequality of strength and means is the direct consequence of these divergencies. Their long-continued emulation, passing through all the stages of envy, hatred, and political contention, has finally culminated in bloody civil war; and from the peculiar circumstances of the case, the termination of the contest, if the parties be left to themselves, will fully and fairly test the physical strength and moral force of the contending principles. The better principle, by virtue of its superior growth, will overthrow the worse and weaker one, which has relatively declined in power throughout all the long contest between the two. Enlightened convictions will grow up as the mighty conflict subsides;

and institutions will be modified in conformity with the truths which are destined to appear through the blaze and smoke of battle.

Heaven forbid that we should confound moral distinctions, and place treason and rebellion on the same footing with patriotic devotion to the cause of Union and liberty. Political and moral errors, however innocent in intention, stand on the same footing, as to their consequences, with all other violations of natural law. They bring retribution inevitable; nor can the blind and ignorant partisan of wrong entirely escape the shame of his misconduct, on the ground of erroneous judgment. But let us not arrogate to ourselves a superiority of virtue, which in reality we have no just right to claim. Are we sure that, even on our side, which we consider that of truth and humanity, all our individual motives are up to the level of the great principles involved? Are we not rather, to some extent, the blind instruments of social causes, stronger than our own will, and while seeming to follow the inclination of our own enlightened minds, are we not impelled by passion and ambition in the inevitable direction indicated, and even necessitated, by the circumstances surrounding us? Are not similar influences operating on the Southern mind, and forcing it, with a compulsion equally inexorable, into the fatal current of civil war? With the masses on both sides, this is undoubtedly true. Whole communities do not engage in such disastrous strife in mere wantonness and wicked advocacy of a bad cause. Either their judgment is distorted, or their passions aroused to such an extent as to render them utterly blind to the true nature of the principles involved, and to make them believe they are acting, under the strongest provocation, for the defence of their honor, their interests, and their acknowledged rights. Every liberal mind will readily concede the existence of these sentiments and motives.

But suppose the war ended by the overthrow of the rebellion and the restoration of the Federal authority: what is to be the effect in those States which have been the theatre of the great conspiracy, whence have issued all the mighty armies which have assailed so fiercely the Constitution and Government of our fathers? Will the men who have shed their blood freely to destroy the Union ever again be brought to sustain it with sincerity and zeal? Can they be expected to acknowledge their profound error, and receive again heartily to their affections and willing obedience the authority which they have so haughtily spurned and sought to smite with utter

destruction? This is a momentous question. It is the most important which can be presented to the country at the moment of its anticipated triumph, when the fearful clash of arms is about to subside and give place to the serious labor of conciliation and reconstruction. To conquer the rebellion will be, at least, to make all its aims utterly hopeless. Failure and disaster will be forever stamped upon the ideas on which the revolution has been founded, and they, with their inspiration, good or bad, will be permanently overthrown, together with the men who have used them so efficiently for the inauguration and continuance of this tremendous strife. There is wonderful power in the success of an idea, as there is a corresponding influence in the utter overthrow of its physical manifestations and efforts. A cause rendered hopeless by defeat ceases to sustain the passions which it has excited, under the influence of which it has made itself respectable and powerful. If it be founded in truth and right, it will have within itself the elements of resuscitation, and it can never become altogether hopeless. But if it have no such basis of substantial truth, its failure once is for all time. The hearts of men cannot long cling to such a cause. Its traditions even become odious, and the effort will be to ignore and forget its incidents, and to escape the discredit of having participated in its ambitious struggles.

But to conquer the rebellion is not to subjugate the South. This is a distinction of the utmost importance in attempting to estimate the consequences of the great struggle. So far from the subjugation of the Southern people resulting, in any contingency, the success of the Union arms must be their regeneration and redemption. To overthrow the confederate government will be only to relieve the people from its grasp, and to reinstate them in the rights and liberties which they have hitherto enjoyed. A combination of force, fraud, and self-delusion has sustained the power of the rebel dynasty, and enabled it to wield the influence and authority of the whole people of the seceding States, with some few remarkable exceptions. To break up this combination will do more than merely defeat a hostile power: it will, in effect, annihilate the whole vicious organization, and leave its elements free to engage in other combinations, more in accordance with right, and better calculated to secure success and prosperity. It is not unreasonable to anticipate that they will eventually resume their former relations with the Federal Government, as most conducive to these ends. There are some men, perhaps one whole class,

who can never escape the responsibility of all the overwhelming evils and calamities which the war has brought upon the South. The cordial acquiescence of these can hardly be anticipated; but their power will be completely destroyed, and the people may well be expected to disregard their murmurs and complaints. Indeed, it is not altogether unlikely that an injured and exasperated people may turn on the authors of their ruin, and wreak upon them a fearful vengeance, so far, at least, as to ostracize and banish them forever from the land they have blighted and destroyed. The masses of the people, holding few or no slaves, though involved in the war by force of the general delusion into which they have been artfully inveigled, will not consider themselves responsible for its consequences; they will rather look on themselves as the victims of designing men, who, for selfish purposes, have partly seduced and partly impelled them into the perils and disasters of a gigantic but fruitless rebellion. This state of feeling will leave the minds of the Southern people in a condition to estimate fairly their own relations to the rebellion, and their obligations to the Union, which again calls them, with paternal tenderness, to its generous confidence and magnanimous protection. They will have no cause for apprehension that their restoration to good fellowship and perfect equality will not be complete and free from all unfriendly reservations.

But this influence will not operate on those alone who have few or no slaves, comprehending the great mass of whites: it will exert itself more notably on the large body of slaves themselves. This is an element in the calculation which, humble though it be, cannot be overlooked without great error in the results. A fundamental change will take place in the condition of the blacks. They will be emancipated, either gradually and safely, or with violent precipitation, with all its evils and disasters. Yet, however the decree may come, whether by the sudden blow of military power, or by the free and cheerful coöperation of the States and their people, the measure itself will be plainly the result of the rebellion, as met by the firm and noble stand assumed by the Federal Government, and maintained at so great a cost of treasure and of precious lives. The Government which, out of civil war and chaotic strife, brings such advantages—out of calamity and danger educes such blessings of security and progress will be entitled to the unbounded gratitude of those who will be the chief gainers by its policy. But experience will soon teach the whites that they will be equal gainers in the end; and, in

time, we may justly expect not only their cheerful acquiescence, but their renewed allegiance and ardent support to the Federal authorities.

MOTTOES FOR CONTRACTORS.

When you contract for boots and shoes,
Be not contracted in your views.

When you agree to clothe the body,
Expand your soul and flee from shoddy.

No soul the difference can see
'Twixt chico-rye and chicoree.

'Tis wise to feed the soldier well:
For reason *why*—see Dante's 'Hell.'

SUNSHINE IN THOUGHT.^[3]

The genial pen of Mr. Leland has found an attractive theme in the title of this curious and suggestive volume. Without the formality of an inexorable system, it is written from the impulses of a large and sympathetic nature, more accustomed to the acute observation of details than to exact and rigid generalizations, but sending free and penetrating glances beneath the surface of social life, and presenting a variety of sagacious hints and comments, often admirable for their quaint, original illustrations, and seldom destitute of an important ethical bearing and significance.

In the composition of this work, Mr. Leland has aimed at the defence of that view of life which combines a cheerful earnestness of purpose with manly energy of action, as opposed to the melancholic, whining, lachrymose spirit, which has been affected by certain popular modern poets, and, through their vicious example, has been cherished as one of the essential qualities of genius. Of this style of character Mr. Leland has not the slightest degree of tolerance. Its manifestations are all abominable in his eyes, and unsavory in his nostrils. He cannot endure its presence; he regards its exercise as a nuisance: its permission in the plan of a kindly Providence is a mystery.

The influence of a morbid melancholy, whether affected or genuine, in the literature of the United States, is justly a matter of surprise and lamentation with the author. The American mind, as he remarks, has doubtless a strong tendency to humor. It delights in the expression of a mischievous irony or good-natured sarcasm. The querulous wailings which are the stock in trade of a certain class of writers are unnatural and discordant sounds. We should expect rather a serene and cheerful melody from a young and brave-hearted race, which is in intimate relations with the external world. Instead of this, we have sucked in with the milk of our Puritan mothers a forlorn and sorrowful spirit. We celebrate our festivals with a sad countenance. We attempt to make merry by singing dismal psalms. We weave our woes into poetry, and expand our wretchedness in plaintive declamations.

This is a wide departure from the genius of Christianity, as well as from the healthy instincts of humanity. In the first ages after Christ, the newborn element of thought was a pure and beautiful spring, bubbling up from the moss-grown ruins of the temple of heathendom. A hopeful, joyous tone is indicated in the symbols of the early faith preserved in the Vatican. It contained the germ of republican freedom and of a benign and beneficent civilization. But it was driven by political convulsions toward the East, and returned in the melancholy robes of the dreamy and morbid oriental. It learned from Indian fakirs that laughter was a sin, that misery was meritorious, that the hatred of beauty and joy was a virtue in the sight of Heaven. The early Christians were imbued with the sentiment of moral grandeur and loveliness; they represented Christ our Lord as the fair ideal of humanity; but a darker age decreed that his form should be meagre and homely—misled by those pagan Syrian pictures, which still disfigure the churches in Russia, and whose original may be found in the avatars of violence, modified by old Persian influence. From the seventh to the twelfth century, the tendency to asceticism was rampant. Beauty was proscribed as a temptation of the devil; deformed and crooked limbs were ranked among the beatitudes; even dirt was apotheosized, and, as a consequence, millions of men were mowed down by unheard-of forms of disease. Humanity did not submit to this rule of austerity and torture without a struggle. There was often a brave, vigorous resistance. A lively protest was uttered in the joyous strains of the troubadours and minnesingers. The glad spirit of nature could not be wholly suppressed, and from amid the social oppressions of the times sweet voices fell upon the ear, celebrating the praises of woman, the love of beauty, and the joyousness of life.

But, according to our author, none of the great names in literature have ever proclaimed the evangel of cheerfulness in all its health and purity. The world as yet has never been fit to receive it. Years may pass before it will be fully unfolded. Society is still in its earliest March spring. The fresh winds which blow are still wild and chill; the nights are long and dreary; and during these gloomy hours, the ancient crone still relates horrible legends to believing ears. If the elder or wiser ones only half believe them, most of the listeners still shiver at their weird, grotesque poetry, and when they make new songs for themselves, the old demoniac strains still linger on the air, showing the origin of their earliest lays.

In order to illustrate the lack of true joyousness in the literature of the world, Mr. Leland takes a rapid survey of some of the most distinguished writers in ancient and modern times. Aristophanes, he maintains, did not possess the genuine element in question. Allowing the claims of the great satirist to genius, he had not reached the perennial springs of cheerfulness in the depths of the human soul. In his gayest arabesques, we trace the eternal line of life, but the deep, monotonous echo of death is always nigh. He still had the sorrows which grieve the strong humorist of every age. He could not escape the deep woe of seeing social right and human happiness trodden under foot by tyranny; and folly and ignorance, pain and sorrow were the great foundation stones on which the gay temple of Grecian beauty was built. For every free citizen who wandered through the groves of the Academy, holding high converse with Plato, and revelling in the enjoyment of the divinest beauty in nature and art, there was an untold multitude of slaves and barbarians, into whose lives was crowded every element of bitterness.

But surely, the great sage of humor, glorious Father Rabelais, of later days, was an exception to the prevailing rule of joyousness in literature? Not at all, contends our author. To the young mind which hungers for truth and joy, there is something irresistibly fascinating and persuasive in the jolly philosophy and reckless worldly wisdom of Rabelais. But after all, it will not do. It is anything but attainable by most of the world. It demands good cheer and jovial company. But it dies out in the desert, and is stifled among simple, vulgar associates. Rabelais believed that he sacrificed to freedom, when he only worshipped fortune. He went through the world, familiar with the ways of princes and peers, priests and peasants, travelling in many lands, exhausting the resources of art and learning, seeing through the sins and shams and sorrows of life, and laughing at everything, like a good-natured, large-hearted Mephistopheles. But he had never learned the true philosophy of joyousness in the sincere love of nature, the deep phases of humanity, and the affluence and purity of strong affection.

Nor do we find a better specimen in the renowned English humorists, Sterne and Swift. The former closely follows his French prototype in grotesque fancies: he abounds in tender and delicate pathos, though in the highest degree artificial and forced; but do we ever arise from reading him, like a giant refreshed by wine? Sterne, in fact, has even less of the true

philosophy of life than Rabelais. He affords no stimulant to joyous, healthy action, awakens no impulse to gladden life, or to make sorrow less and hope greater. It may be all very touching, very comic, very ingenious, but it is not healthy or joyous. And Swift? An immense fund of laughter, doubtless, had the witty Irish dean; but as little claim to be a joyous writer as the prophet Jeremiah, or the author of 'Groans from the Bottomless Pit.' The men who have been spoken of dealt largely in satire and humor; but joyousness deals in infinitely more. Mirth and laughter are all very well, but they are not all in all. Cheerfulness requires something more than a well-balanced Rabelaisian nonchalance in adversity and a keen relish for all pleasure.

The relation of Christianity to the theme of the volume presents a delicate, and, it may be thought, a dangerous topic of discussion, for a so decidedly secular pen as Mr. Leland's; but he touches upon it with freedom and boldness, though with frankest sympathy and reverence for the great Spirit, whose religion is the most significant fact in the history of the world. 'I must confess,' says he, 'that even regarded from a material and historical point alone, that is a poor, cowardly soul, which does not feel the deepest earnestness of truth in acknowledging the Wonderful One, Jesus Christ, as the Lord and Saviour of the whole world.' His sublime soul, profound, universal, loving beyond all power of human conception, introduced a new era for humanity. Under his teaching, philosophy became indeed truly divine, for it became infinite, and was thrown open to all. He first of all opened the consolations of free thought, of freedom from old superstition, of love, and strength, and inward joy, to the whole race of mankind. No narrow limits of sect or caste or nationality cramped him, the first great Cosmopolite. We cannot sufficiently admire the infinite adaptability, the universal knowledge of humanity, the boundless sympathy with man, which are everywhere manifest in the original Christian philosophy of life. What a depth of meaning in the symbolic bread and wine, typical of the life which flows through eternity and all its changes, of human love and birth and death, of bounteous, beautiful nature, with its continually renewed strength—the whole given, not in funereal guise, not with sombre fasting, but as a joyous feast.

The New Testament abounds in symbols, parables, and proverbs, taken from ancient tradition, but beautifully woven into a purer faith, which taught that the healthy joys of life, and all knowledge of divine truth, should

be given not to a few kings or priests, a few favored with initiation into divine mysteries, as of old, but to the whole world; for the spirit of Christianity was identical with the genius of republicanism. As taught by our Lord Jesus Christ, it was eminently healthy, brave-hearted, and joyous. It did not commend celibacy, nor excess of fasting, nor too long prayers, nor righteousness overmuch. It did not approve of a plethora of outward goods, while the culture of our highest faculties was neglected. It condemned all excess of care, even in our daily duties, at the expense of that 'better part' which distinguishes us from mere ants or bees. It gave no warrant for the dismal dirges and melancholy groans which are raised in its name, by men whom Jesus would have been the first to reprove. 'It was a religion of life and of beauty, of friendship and temperate mirth, of love, truth, and manliness; one which opposed neither feasting at weddings nor "going a fishing."' "

The temptation to find a refuge from the evils of life in active exertion, instead of cultivating the sources of joy in our own nature, is the subject of an ingenious and striking chapter. In a land, where enjoyment in many minds is connected with a sense of sin, it is doubtless better that the overflowing energy of character, which is a trait of the population, should seek vent in the excitements of labor, than in poisonous liquors, horse races, politics, and the gaming table. Where the natural support of life is wanting, partial methods of relief may be employed. He who can no longer swallow, may gain an imperfect nourishment by means of baths, or artificial transmission. So, the grim and hardened soul, which has lost the support of inward cheerfulness, may find strength in work, merely for the sake of work. But it is a fraud upon humanity to educate men solely as industrious animals. Hives are beautiful, honey is sweet, and wonderful is the cunning structure of the cell; but society is not a hive, nor the people bees. The day is dawning when it will be understood that cheerful songs are as essential to genuine manhood as work; that labor is not to be borne as a curse, with sighs and groans; but combined with mental culture, will become capable of self-support, and will supply its own enthusiasm.

The great problem of the age is the union of beauty with practical uses. In their highest forms, art and science blend and become identical, just as the Beautiful and the Good assimilate, as we trace them to their source in Truth. While art becomes more practical, it loses none of its beauty. In the infancy

of science, it was mainly devoted to the illustration of the fanciful and ornamental. Even architecture, in the early ages, looked less to permanent comfort than to artistic effect. But everything now tends to realization. Poetry and art fall in with this influence of the age. Science is every day taking man away from the purely ideal, the morbid and visionary; from the fond fancies of old eras, and leading him to facts and to nature.

Mr. Leland never becomes formal or spiritless in the treatment of his favorite topics, and often rises to a high degree of enthusiastic eloquence. Witness the following noble appeal in behalf of a cheerful earnestness in the cultivation of literature and art:

Young writer, young artist, whoever you be, I pray you go to work in this roaring, toiling, machine-clanking, sunny, stormy, terrible, joyful, commonplace, vulgar, tremendous world in *downright earnest*. By all the altars of Greek beauty themselves, I swear it to you; yes, by all that Raphael painted and Shakspeare taught; by all the glory and dignity of all art and of all Thought! you will find your most splendid successes not in cultivating the worn-out romantic, but in *loving* the growing Actual of life. Master the past if you will, but only that you may the more completely forget it in the present. He or she is best and bravest among you who gives us the freshest draughts of reality and of Nature. It lies all around you—in the foul smoke and smell of the factory, amid the crash and slip of heavy wheels on muddy stones, in the blank-gilt glare of the steamboat saloon, by the rattling chips of the faro table, in the quiet, gentle family circle, in the opera, in the six-penny concert, the hotel, the watering-place, on the prairie, in the prison. Not as the poor playwright and little sensation-story grinder see them, not as the manufacturers of Magdalen elegies and mock-moral and mock-philanthropical tales skim them, but in their truth and freshness as facts, around and through which sweep incessantly the infinite joys and agonies, the dreams and loves and despair of *humanity*. Heavens! is not LIFE as earnest and as mysterious and as well worth the fierce grapple of GENIUS, here and *now*, in this American nineteenth century, as it ever was under the cedars of Italy, the olives of Greece, or the palms of Morning Land? Are

there not as much, or more vigor and raciness in the practical souls of the multitude and in their never-ending strife with Nature, as among the spoiled and dainty darlings of fortune and among the nerveless, mind-emasculated Victims of Society who sing us their endless Miserere from the Sistine chapels of fashionable novels? You know there is, and if you watch the time, you may see that it is the warm truth from real life, which is most eagerly read and which goes most directly to the hearts of all. Never yet in history was there an age or a country so rich in great ideas, in great developments, or which offered such copious material to the writer as these of ours. Be bold and seize it with a strong hand. Those who are to live after us will wonder as we now do of the great eras of the past, that there were so few on the spot to picture them. Yet, why speak of *great* scenes, when humanity and Nature are always great—great in small things even, far beyond our utmost power of apprehension? Forget the spirit of the past, live in the present, and thus—and thus only—you will secure a glorious and undying reward in the future.

The fault of this volume, in the eyes of many readers, will be a certain confusion in the arrangement of the matter, and the want of sufficient expansion in the development of some of its leading suggestions. But it must be judged as the earnest utterances of a poet, rather than a grave didactic treatise. With the purpose which the author had in view, a spice of rhapsody is no defect. He presents a beautiful example of the smiling wisdom of which he is such an eloquent advocate. He has an intuitive sense of the genial and joyous aspects of life, and has no sympathies to waste on the victims of 'carking care' or morbid melancholy. A more complete exposition of the conditions of cheerfulness in the nature of man, would furnish materials for an interesting volume; but it belongs more properly to an ethical or philosophical discourse. We will not complain of the author for not doing what he has not attempted—for what he had no inward call or outward occasion; what he could not have accomplished but at the sacrifice of much which constitutes the charm and grace of the present work; while we cordially thank him for this endeavor to speak a cheering word in behalf of the joyousness of life, and to spread 'sunshine in the shady place.'

R.

FOOTNOTES:

[3] SUNSHINE IN THOUGHT. By CHARLES GODFREY LELAND. 12mo, pp. 197. New York: Geo. P. Putnam.

HOW THEY JESTED IN THE GOOD OLD TIME.

There is nothing which contributes so much to ease social intercourse as the jest. In comparison with it, the proverb is only a humble subordinate, and song itself, with all its power, but a weak influence. Yet the song and the proverb boast a critical literature, while the brief compendiums of merriment which never die, which, once written, live through every age, and force their way through every penetrable language, are undoubtedly less studied than any other popular medium of feeling.

What is a jest? It is as little worth the while to try to define its nature, as it is to analyze wit. We all know that the world laughs, and what it laughs at, and what the droll saws, anecdotes, rhymes, quips, and facetiæ are, which give fame to a Bebel, or a Frischlin, a Tom Brown, and a Joseph Miller. Leave labored analysis to the philosophers, contenting ourselves with remarking that a jest is a laugh candied or frozen in words, and thawed and relished in the reading or utterance. And laughter? When a man is too lazy to think out an idea, and yet too active to dreamily *feel* it, he laughs. When he catches its leading points, and yet realizes that behind them remains the incomprehensible or incongruous, he settles it for the nonce with a smile. Hence it comes that we laugh so seldom with all our heart, a second time over a jest. It has been *comprehended*; the mystery, the sense of contradiction and incongruity, has vanished—we may revive it in others, and laugh electrically with them; but the first piquant gusto of *its* spice is gone forever.

Yet the jest, like the proverb, acquires a value by becoming current. It often illustrates an opinion or an experience, and when it is much worn, it may still gain a new point, by being brought into illustrative relation with some event or idea. Esop's fables, or any fables, are, after all, only good jokes in a narrative form, which owe their fame simply to their boundless capacity for application. Sidney Smith's story of Mrs. Partington, who tried to mop out the Atlantic, was a jest, and so too was Lady Macbeth's 'cat i' the adage,' who wanted fish, yet would not wet her paws, and let 'I dare not' wait upon

'I would.' *Something* of our old enjoyment of a joke for the first time, always lingers around it, and we gladly laugh again—for, 'old love never quite rusts out.' And there are many jests, which, owing to their boundless variety of application, always come before us in a new light. Such are those which illustrate character. Woe to the man among the vulgar, who once becomes the scape-goat of a story on the subject of a joke-anecdote which 'shows him up.' Woe in truth, if it grow to a nickname—for then he, of all persons, learns that there are jests which never lose their sting.

Some jests have been progressive—they have been re-made to suit the times. Diogenes, when asked which wine he preferred, replied, 'That of other people.' An Englishman answered to the same question, 'The O. P. brand,' referring the initials not only to Other People, but also to the far-famed Old Particular stamp which marked certain rare varieties—or, as others explain it, to 'Old Port.' The Scholastikos of Hierocles, having a house for sale, carried a brick around as a sample—a modern story says that a commander when asked of what material his fortifications were built, called up his troops, and said: 'There!—every man's a brick.' Here we have the 'living walls' of the Romans—two old stories blended into one, and the whole greatly strengthened by a modern slang expression. When thus changed to suit the times, jests, instead of growing old, rather grow new again. Not unfrequently, a single joke becomes, in this manner, the parent of scores of others. I think that it is Mr. Wendell Phillips, who, in a lecture on Lost Arts, declares that there were never yet more than twenty-five original 'good stories,' and that all of those now current may be traced back to them. In a certain sense, the assertion is true; but it is a mistake to confound the result of a cause with the cause itself, and an error to declare the descendant to be one and the same with the ancestor. Max Muller has proved that hundreds of words of the most different meanings descend from the same root, and, in like manner, we might show, if the traditional links were supplied, that the last 'good one' current at Washington, originated at the court of King Pharaoh. Let no one laugh, for Chaucer's Clerke of Oxforde's Tale was for years told, with Daniel Webster and Henry Clay as the heroes, and we have even met with a bold Southron who '*knew* that it was true of them!'

In this connection it is worth while to observe that even the slang phrases of the day, which are popular, partly because they *save trouble in thinking*, and

partly because the vulgar mind, like the vulgar ear, finds a relief or pleasure in monotony—are not unfrequently of ancient origin. The current expression, 'a high old time,' occurs in a Latin jest, given in an old German-Latin jest-book, which, as its preface asserts, consists entirely of a reprint from still older works. 'Henricus,' it says, 'was begged to make at a wedding (*Hoch zeit*—literally, 'high time') a wedding song, and complied with the following:

'Iste vetus Juvenis Socius prius ad stationem arripit
Atque *altum tempus* habere cupit.'^[4]

The expression is better in its old form, since *altum* means both high and old. Those who have laughed at the instance in 'Ferdinand Count Fathom,' of the Dutchman, who boasted that his brother had written a great book of poetry as thick as a cheese, may find its original 'motive' in an anecdote given in the same work.

'A peasant going to a lawyer, begged him to undertake a case for him, to which the man of law assenting, began to refer to and read in a very small book. But the peasant, who saw many large folios in the study, touched the advocate on the arm and said:

'Sir—please read some in a *great* book also, for this is certainly a big case which I have brought to you.'

Everybody knows the story of the fortune hunter who commanded his servant to duplicate in the affirmative, when he should be in conversation, all his assertions. 'I have a fine farm,' said he. 'Faith, ye mane ye have two on thim,' interpolated his Irishman; and so it went on, until the master admitted that he had a cork leg. 'Two false ligs, *an' ye know it*,' cried out the man. This is somewhat varied and enlarged from the old story as given in the *Facetiæ* of Bebel, in which the nobleman, remarking to his lady-love that he was 'a little out of sorts,'—'*dixit ille, se pallidulum parumque infirmum*,' was interrupted by his servant with: 'And no wonder, since you suffer with such a terrible and incurable quotidian disease!'^[5]

If all stories and jests are to be traced to a few originals, perhaps the many eccentric tales of Jack on horseback may be found in a very old anecdote of a certain *Venetus insuetus ac nescius equitare*—a Venetian unaccustomed to

and ignorant of riding, who, when mounted on horseback, having inadvertently spurred the animal, exclaimed, as it reared and plunged:

'Lord! the waves of the sea are nothing to those on land,'—thinking that the leaping of his steed was caused by a sudden storm! The anecdotes of absent-mindedness may find a prototype in a very old monk-Latin anecdote of a certain doctor who went riding '*cum Palatino Rheni*,' with the Prince Palatine, and who, on being told that he had no breeches on, replied: '*Credebam, ô princeps, mihi famulum ea induisse*.' 'I thought, oh prince, that my valet had put them on!' Domine Sampson and the magistrate who appeared un-breeched before General Washington, are both anticipated in these absent small-clothes.

Many of the capital extravagances contained in 'Baron Munchausen' are borrowed literally from the old Latin jest-books. The incident of the wild pig which led about by its tail a blind wild boar, so that when the former was slain the latter was taken home by simply giving it the tail to hold, is of very respectable antiquity—as is also the story of the horse cut in two—attributed by Bebel to a locksmith. The locksmiths, he tells us in the parenthesis, are the boldest of Major Longbows.

There are many jests current in all languages, quizzing the vanity of humble persons suddenly raised to some small dignity. 'Neebors, I am still but a mon,' remarked the Scotchman, who became mayor.^[6] Perhaps their type is latent in the '*De rustica præfecti uxore*—the village magistrate's wife,—which runs as follows:

'When a certain man had been made a prefect of a small village, he bought his wife a new fur garment (*melotam*). She, proud of her finery and full of her new honor, entered church, *capite elato et superbo*, with her head raised, just as all the congregation rose to their feet, when the Gospel was to be read. When she, thinking it to be in her honor, and recollecting her former condition, said: Sit still! I have not forgotten that I was once poor!'

A very great proportion of the shrewd retorts and witty replies attributed to great men are very old. 'What do you think of soldiers who can endure such wounds?' remarked Napoleon, when, showing a frightfully scarred

grenadier to an Englishman. 'What does your majesty think of the men who gave the wounds?' was the reply. It is essentially the remark of Louis the Bavarian, who, on enlisting four soldiers famed for incredible bravery, and observing that they were scarred from head to foot, said to them: 'Ye are brave fellows; but I had rather see the men *a quibus tot vulnera accepistis*—from whom ye received so many wounds.' The number of witty retorts and droll stories associated with the names of Talleyrand, Piron, Voltaire—in fact, to a certain degree, of almost all great men—is so great as to almost persuade the reader who wanders in the neglected field of ancient humor, that no man of the later centuries was ever capable of a single witty and original thought. It is not long since I met with an anecdote, stating that Alexandre Dumas, who had a very unattractive wife, one day surprised a gentleman in the act of tenderly embracing her. In a compassionate and astonished tone the novelist exclaimed: 'Poor man! why do you act so? I am sure that nobody could have compelled you to it against your will.' '*Eh! monsieur, qui est-ce qui vous y obligeait?*' The jest is 'old as the hills'—it was old before Dumas was born. So, too, with the amusing bit of naïveté attributed to an English duchess, who, to express her deeply-seated religious prejudices, declared that she would sooner have a dozen Protestant husbands than one Catholic. The same point is expressed as follows, in a very witty but extremely wicked collection of facetiæ of the seventeenth century:^[7]

Displicet, insignis, mihi Clericus ordo puella
Inquit et est valde gens odiosa mihi.
Malo decem certè me consociare colonis,
Unicum Clero quam coiisse velim.

Sir Isaac Newton, and I know not how many other philosophers, have been made to learn by a current story how to bear coals—literally. A learned man, it is said, being asked by a little girl for a live coal, offered to bring her a fire shovel. 'It is not necessary,' replied the child, and having laid cold ashes on her palm, she placed a glowing ember on them and bore it away safely. 'With all my wisdom,' said the sage, 'I should never have thought of that!' The jest is of mediæval antiquity—possibly pre-Latin—it was in later days, however, versified by Schurrias—an extremely aged and dying woman being substituted for the learned man.

'Nam nudâ poteris ignea ferre manu?
Parva puella refert: mater, perizomate prunas
Portabo flammæ ne nocuisse queant.
Quid facies igitur, Anus inquit? Serviet hicce
Mi cinis, illa refert; quo super hasce feram.
Mox exclamat Anus: disco, moriorque profecto.
En disco moriens quæ latuere senem:
O, ich lern und stirb!

A very great number of the 'good stories' current at the present day with new names and faces, are to be found in the works of Rabelais, and in the *Moyen Parvenir*, now generally attributed to him. It is almost needless to say that few of these were however original with the great French humorist. We find them in the Macaronics of Merlin Coccaius, and in scores of older authorities. Still it must be borne in mind that a similarity does not always establish an identity. There are few persons who cannot cite some droll instance of a sharper or greedy fellow, who, expecting an undeserved reward for some sham service, has found himself drolly overreached. So Rabelais dresses up for us anew the fable of the woodman, who, having lost his hatchet, and wearied Jupiter with prayers for its recovery, was tempted by Mercury with a golden hatchet, and asked if it were the missing article. He answering 'No,' received the precious one for reward. Which being made known, excited great hopes among his neighbors of becoming rich by the same means:

'Ha, ha! said they—was there no more to do but to lose a hatchet to make us rich? Now for that; it is as easy as ——, and will cost us but little. Are then at this time of the year the revolutions of the heavens, the constellations of the firmament and aspects of the planets such that whosoever shall lose a hatchet, shall immediately grow rich? Ha, ha, ha! by Jove you shall even be lost and it please you, my dear hatchet! With this they all fairly lost their hatchets out of hand. The devil of a one that had a hatchet left; he was not his mother's son that did not lose his hatchet. No more was wood felled or cleared in that country, through want of hatchets. Nay, the Aesopian apologue even saith, that certain petty country gents of the lower class who had sold the Woodman their little mill and little field to have

wherewithal to make a figure at the next muster, having been told that his treasure was come to him by this only means, sold the only badge of their gentility, their swords, to purchase hatchets to go lose them, as the silly clodpates did, in hopes to gain store of chink by that loss.

'You would have truly sworn they had been a parcel of your petty spiritual usurers, Rome-bound, selling their all, and borrowing of others to buy store of mandates,—a penny-worth of a new-made pope.

'Now they cried out and brayed, and prayed and bawled, and invoked Jupiter: 'My hatchet! my hatchet! Jupiter, my hatchet! on this side, my hatchet! on that side, my hatchet! ho, ho, ho, ho, Jupiter, my hatchet!' The air round about rung with the cries and howlings of these rascally losers of hatchets.

'Mercury was nimble in bringing them hatchets; to each offering that which he had lost, as also another of gold, and a third of silver.

'Every *he* was still for that of gold, giving thanks in abundance to the great giver Jupiter; but in the very nick of time, that they bowed and stooped to take it from the ground, whip, in a trice, Mercury chopped off their heads, as Jupiter had commanded; and of heads thus cut off the number was just equal to that of the lost hatchets.'

This is but a small portion of the fable as amplified by Rabelais; but what is cited illustrates the *accretive* power of a jest when it involves a principle of general application. The same idea—that of roguery rewarded according to the letter—is involved in an anecdote, which tells us that a certain alchemist having dedicated to Pope Leo the Tenth a book containing the whole art of making gold, received as recompense a great empty purse, with the words: 'If thou canst make gold, thou art far richer than I; but herein is a purse wherein thou mayest put thy gold.'

In the German *Lallenbuch*, as well as other works, we find the story of the stupid fellow who, coming to the banks of a river, waited long and in vain

until the water should all have rolled by. It is given in the following form in a very droll collection of jests:^[8]

'Rustici cujusdam filius à patre in proximam urbem missus, quum ad flumen aliquod pervenisset, diu dum integrum deflueret, sicque transitum præberet, expectans, tandem ubi continuo aquam fluere vidit, domum reversus est, de eo quod sibi accidisset, parentibus conquestus.'

But the story was old, centuries before the monks—for even Horace sums it up in two verses as one quotes a well-known popular proverb:

'Rusticus exspectat dum defluat amnis: at ille
Labitur et labetur in omne volubilis ævum.'

'The clown awaits until the flood be gone:
It glides and whirls for ages ever on.'

The reader has probably heard of the apocryphal twelfth commandment, 'Mind your own business.' Possibly its existence was suggested by the discovery of the *first*, told as follows in the *Democritus Ridens*.

'A certain soldier being asked by his pastor what was the first commandment given by GOD, replied, 'Thou shalt not eat!' At which answer the priest inquiring what he meant, received for reply that this was the first command to our first parents relative to the apple. *Quo audito, Pastor conticuit!* Which having heard, the priest was silent.'

Of the same family or parentage is the modern story of the clergyman who, wishing to preach against the extravagant head-dresses worn by the women of his congregation, took for a text, 'Top knot come down!' referring for his authority to Matthew xxiv. 17. In like manner a not over-learned brother is said to have expounded Genesis, chap. xxii. v. 23, as follows: 'These eight Milcah bear.' This shows us, my brethren, what hard times they had of old, when it took eight on 'em to milk a bar (and I 'spose get mighty little at that), when nowadays my darter kin milk a cow with nary help, as easy as look at her.'

Every one has heard of the Irishman crossing the brook. 'Sure, Paddy, if ye carry me, don't I carry the barrel of whiskey, an' isn't that fair and aiquil?' It is differently told in one of the old Latin jest books, where a certain Piero, pitying his weary jackass, which bore a heavy plough, took the latter on his own shoulders, and mounting the donkey, said: '*Nune procedere poteris, non enim tu sed ego aratrum fero*,'—'Now you may go along, for not you but I now bear the plough.' Not a few of the jokes given to modern Irishmen originated centuries ago in other countries than theirs. The reader may recall the advice given by an Emeralder to another at a tavern, when the latter found that his boiled egg was ready to hatch. 'Down wid it, Murphy, ye divil, before the landlord comes in and charges ye for a *chicken breakfast*!' The same occurs as an old Latin joke, with this difference, that, in the latter, the companion, when the breakfast was over, required that the chicken eater should pay the reckoning for both. '*Ni facis, dicam cauponi de pullo quem pro ovo absumpsisti, et solves largius*.' 'Unless you do, I will tell the landlord of the chicken which you ate for an egg, and *then* see what a bill you'll have to pay.'

The Germans of the present day have a story of a certain Englishman who, on being told that his coat was burning, politely replied: 'What the devil business is that of yours? I have seen your coat burning this half hour, and never bothered myself about it.' Tom Brown tells us of a roguish boy who said to a traveller, warming his feet at a fire: 'Take care, sir, or you'll burn your spurs!' 'My boots! you mean,' quoth the traveller. 'No, sir, I mean your spurs; your boots be burned already.' But the best form of the joke is given by Erasmus in his Adages, as follows:

'A certain traveller in Holland lay so near the fire that his cloak was scorched. Which being observed by a guest, he said to the sleeper, 'Here—I want to tell you something!' To which the other replied: 'If it is bad news, put it off, for I don't wish to hear any in company where all should be jolly. *Post convivium, inquit, seria*—'save up the sorrow until after supper.' And when they had merrily supped, 'Now,' said he, 'I am ready to hear it.' Then the other showed him an immense hole in his cloak, and he began to rage that he had not been warned of it in time. 'I wished to do so,' replied the guest meekly, 'but you forbade me.'

The witty sayings of men about to be executed are numerous, but are in many cases far from being original or authentic. During the horrors of the French Revolution, when men 'became so accustomed to death that they lost all respect for it,' it became the fashion to make a jest with the last breath, and it is said that a volume of these sayings was collected and published. In the *Democritus Ridens*, already referred to, under the head of *Jocus sub necem*, the author gives several anecdotes, more than one of which has been attributed in modern times to some noted criminal:

'Those condemned to death are not infrequently so excited and confused as to lose their wits and joke most improperly. As an example, take that man who, when standing on the scaffold, said with a smile to the judge who was present: 'I wonder, old fellow, that you with such a turned-up nose can see anything!'

'Another when about to die asked for a parting cup. A goblet of beer was brought, from which he carefully blew away the froth, saying that it was 'unhealthy and conducive to the gravel.'

'Another on the way to the gallows, seeing a crowd hastening forward, said to them: 'There is no need of hurrying, children; even though you go as slowly as I, for depend upon it, the thing will not come off till I get there.'

'Another on quitting the prison, turning to his jailor, said privately: 'You needn't keep the house open beyond the usual time this evening on my account, for I shall not return.'

'Another is said, when about to be shipwrecked, to have called for salt meat. And being asked why? replied: 'Because I shall soon have to drink more than I ever did in all my life.' *O ridiculos et o insanos homunculos!* adds the old writer: 'O foolish and mad worms of men who could thus joke at the very opening instant of eternity!'

This last instance of dying recklessness has been used by Rabelais as one of the jests of Panurge. Much like it is the anecdote to the effect that in a storm at sea, when the sailors were all at prayers, expecting every moment to go to the bottom, a passenger appeared quite unconcerned. The captain asked

him how he could be so much at his ease in this awful situation. 'Sir,' said the passenger, 'my life is insured.'

Somewhat allied to this spirit of blindness was the remark of the Greek to his slave during a terrible storm at sea. Seeing the latter weeping, he exclaimed, 'Why are you so troubled—I give you your freedom?' And allied to it is the well-known epigram:

'It blew a hard storm and in utmost confusion
The sailors all hurried to get absolution;
Which done, and the weight of the sins they confessed
Was conveyed, as they thought, from themselves to the priest:
To lighten the ship and conclude their devotion,
They tossed the poor parson souse into the ocean.'

One of the coarse jokes current with the last generation was that of a sailor who, when a duke with his lady was on board ship, and all expected soon to be lost, asked the mate if he had ever lain with a duchess? The other answering in fear and trembling, 'no,' was told by the reckless fellow: 'Well, we shall all have that pleasure soon.' The ship, however, was saved, and the sailor being asked by the duke what he meant by his insulting remark, replied: 'At the bottom of the sea, your grace, we all lie low in death together.' And he was pardoned. It is remarkable that in all ages wit has been suffered to save men when better qualities would perhaps be of no avail.

We may class with these jests of men *in articulo mortis* the droll story told by Bebelius, to the effect that a certain duke having caught a miller in the act of stealing, asked his victim as he stood beneath the gallows, to swear by his faith if he believed that there was on earth a single man of his calling who was honest. To which the miller stoutly swore that to his knowledge there was not one who was not a greater thief than himself. 'If that be the case,' replied his judge, 'go in peace and live while you may, for I had rather be robbed by you than by some more rapacious rascal of your trade.'

An excellent illustration of the fact that old stories are frequently revamped to suit new times and men, may be found in the following 'original,' also given by Bebelius, as *Pulchrum factum cujusdam militis Tubigentis*—a fine deed of a certain soldier of Tübingen:

'Conrad Buhel of Tübingen, distinguished by his bravery among the captains of Cæsar Maximilian in the Hungarian campaign, was, once in camp, lying on the straw and expecting no evil, when there entered another soldier to whom Conrad had done an injury. Who, when he found him thus lying on his back, said with that noble magnanimity characteristic of the German mind: 'Wert thou not lying helpless, I would stab thee with my sword!' To which Conrad replied: 'Wilt thou do me no injury until I stand up and am ready for fight?' 'Not I,' replied his foe, 'for I hold it base to strike an unarmed man.' 'Then,' replied Conrad, 'I shall lie still all night.' But on the next day he transfixed the other with his spear.'

The same story is told of an eminent Irish lawyer, who had offended the client of a rival pleader. 'Will ye get up till I bate yees?' 'An' would ye strike a man lying down?' 'Divil a bit!' 'Then I'll jist go to slape again.' In the modern stories the foes are reconciled—in the old camp incident all is fierce and characteristic of the bloody feuds of the middle ages, and the final murder of the great-hearted enemy strikes us with a pang. The *sed postri die alterum cuspidе transfixit* seems brutal and ungenerous; but the event, whether literally true or feigned, had no such discord to the readers of those days. It was more essential to establish the thorough bravery of Conrad, than to reward the magnanimity of his foe. Truly, the history of jests is the history of civilization.

In relation to this transmission of the renown of stories of the olden times to lawyers of the later day, we may cite the well-known incident of the honest criminal who, travelling alone on foot, was met by Sir Matthew Hale, and in answer to the questions of the latter, admitted that he was going to a distant court to be tried for his life. The same noble truthfulness is beautifully set forth in the following, *Pulchra historia simplicis prætoris et furis*, or 'Fine Story of a Simple-hearted Superintendent and Thief.'

'My lord of Stœffel, of that free and excellent nobility which are called barons, had a superintendent of his serfs. And he, when a certain man was accused of theft, and condemned by him to the torture of the cross (*ad crucis tormentum damnasset*), with rustic simplicity sent the criminal to the church that he might confess

his sins, first taking his word that he would return after confession. So he entered the shrine, confessed, and not heeding the privilege of ecclesiastical immunity (i. e., the right of sanctuary), 'whereby he might have escaped, kept his faith with the superintendent (*fidem prætori servavit*), and again returning underwent extreme punishment. And this I knew from my boyhood, that he went up to the place of punishment with such alacrity, that it would seem as if he truly desired death. But many curses were lavished on the priest to whom he confessed, because he did not warn the imprudent man not to quit the bounds of ecclesiastical freedom!'

There is a whole ballad—nay, a whole history of the middle ages in this story; for among thousands I can recall none as perfectly characteristic of the times. The absolute aristocratic control of the life of a white slave; its abuse by transferring it to the arbitrary will of an upper servant; the blind devotion to feudal service shown in the fidelity of the poor serf, the horrible cruelty of his punishment; and finally, the cowardly supple fawning of the local priesthood, who were always either worms or dragons in their relations to the nobility, are all set forth here in a few lines.

I have said that the eminent lawyers of modern times are greatly favored in the inheritance of old jokes. Judge Jeffries, we are told, in examining an old fellow with a long beard, told him he supposed he had a conscience quite as long as that natural ornament of his visage. 'Does your lordship measure consciences by beards?' said the man; 'that is strange, seeing you yourself are shaven.' Among the monk-Latin tales there is one to the effect that a certain *pater*, priding himself on his beard, was informed that in a convent of he-goats he certainly deserved to be abbot. The same story, re-made into a gross form, is current in this country, and attributed to an eminent Virginia politician. In the *Antidotum Melancholiæ* (Frankfort, 1667), it is given in the form of an evidently very old Latin rhyme:

'Si bene barbatum faceret sua barba beatum,
Nullus in hoc circo fuerit felicior hireo.'

There is a modern story current in America, which is often circumstantially narrated, of some individual wearing a fine beard or 'whiskers,' and who is

said to have sold them to a vulgar practical joker, who had one shaved off, but suffered the other to remain for a long time on the face of his victim, annoying him meantime with inquiries as to 'my whisker.' It is the true type of a great number of stories which originated in the Southern and South-Western United States, the point of which almost invariably turns on vexing, grieving, or maltreating some victim, who is an inferior as regards wit, fortune, or physique. It is worth remarking that the only really original and characteristic class of jokes which the slave States originated are strongly marked with that cruelty and vulgarity which naturally attend the morbidly vain and semi-civilized man, who is so unfortunate as to have inferiors by fortune entirely in his power. I would ask the reader in confirmation of this to simply turn over the large collection of 'Georgia Major' and 'Simon Suggs' tales, which, emanating from the South, have contributed so much to brutalize and vulgarize the humorous tendencies of that portion of the more Northern public which reads them.

But to return to the story of the half shaven beard. It also is a very old one, being told in its original form as *Barba deceptus Judæus*—'The Jew deceived by a beard,' and is as follows:

'A nobleman of Frankfort, while being shaved in a barber's shop, was summoned by a Jew to whom he owed money. But at the request of his debtor the Jew consented to forego the arrest until the nobleman's beard should be shaved. Upon which the latter departed unshorn, and ever remained so.'

The old story—Jews, Cogots, serfs, negroes—the outwitting, persecuting, and swindling some outlawed class of poor helpless victims, who have been made worse than they should be by oppression. This anecdote—like that of the free lance Conrad—is a sad epitome of the middle ages, and to us of the present day, it rings like a curse on the olden time, in the form of a diabolical jest. It is, however, bitterest of all, to find the oppressed—as in the stories illustrating mere *feudal* fidelity,—so utterly degraded as to actually take part with their oppressors and with the foes of humanity, against their own rights. So, in this present struggle with that incarnation of evil, and of the old devilish feudal oppression, the Confederate South, we are still pained to find among its adherents men, who, having been socially trampled on in Europe, seek, by sheer force of slavish habit, masters to lord

it over them here. There is but one type of man who is more pitiable—it is he who is recreant to the great cause of freedom for the sake of—money!

A brutal and disgraceful jest-story, which stands in close relation to this last, is that of *Detrimentum barbæ propter Sanctos*;' or, 'losing a beard for the saints,' which runs as follows:

'A Hebrew contending with a Catholic, affirmed there were more Jewish saints in Heaven than Christian. It was thereupon agreed that each should name his saints in turn, and as he named, pluck a hair from the beard of his adversary.

'Abraham,' said the Jew, and plucked a hair.

'Saint Peter,' said the Christian.

'Isaac.'

'Saint Paul.'

And so they kept up their litanies, until the 'Christian,' exclaiming: 'Saint Ursula and the Eleven Thousand Virgins!' tore out the whole beard of the Jew by the roots, to the great laughter of all standing around.'

It would matter but little, that a fanatical and brutal crowd of the middle ages had laughed at seeing 'only a Jew' disgraced and dripping with blood, to point a scurvy jest. But, I confess that it struck me as singular, when I once found this story in a memoir, set down as having been narrated by an eminent Christian philosopher (now not long dead), as a capital thing. Granting its humor, is it worth while to inquire if he would have enjoyed it as much, had the Jew torn out the beard of the Christian in the name of the thousands who had been martyred for the faith of Israel?

The jokes of the middle ages on the subject of the beard, were numerous—it was a favorite ornament, as we may judge from the fact that Eberhard, the far-famed old warlike duke, sung in more than one poem by Uhland, is always spoken of in the old stories, as *noster princeps barbatus*, 'our bearded prince,' or, more familiarly, simply as 'our bearded one.' One of the table problems of the day was, '*Potestnè probari mulierem quandam*

habuisse barbam?'—'Can it be proved that any woman ever had a beard?' The answer to which, was, 'Yes—when Judith bore the head of Holofernes.' It was singular that such a question could have been agitated, when the legends of the saints contained the story of the bearded saintess of the Tyrol—a converted ballet-dancer, who was thus rendered hideous in accordance with her prayer, that she might be made so repulsive as to frighten away all lovers. And yet Mr. Barnum's Bearded Lady had a husband!

Jokes ridiculing red beards and heads were common in the old time; probably because a popular tradition declared that Judas, 'the arch rascal,' was so marked by nature. The anecdote of the good clergyman who never laughed but once in church, and that was, when he saw a youth trying to light a cigar, or warm his hands at a certain ruddy poll, finds its prototype in one of the old Latin stories:

'Our country people are wont to say, when they see a red-headed man; 'he would make a bad chimney-sweeper.' And when the reason is asked, they say: 'when his head came out of the chimney the country folks would think it was fire, and would ring the bells, assemble from every direction, and cause all the riot and trouble incident to a conflagration.'

It is worth noting in this connection, that the prejudice against red hair is rapidly being forgotten among cultivated persons, and is far from being what it was within the memory of man. The vulgar, who are the last to abandon an absurdity, still retain a few jokes on the subject; but these will probably be as unintelligible in time, as would be the jests of the middle ages on the *rufa tunica*, or red frock. The boorishness and cruelty of 'the good old times,' are strongly reflected in the following, which a scholar of the fifteenth and sixteenth centuries was not ashamed to record of himself:

'When lately during Lent, in the year 1506, we had several guests, among them a rustic from Weilsberg, who wore a long red beard. I asked him why he did so? and he replied, 'out of grief for the death of his father-in-law.' To which I replied: 'All wrong, for red is a color suited to rejoicing'—at which remark all the guests present began to laugh immoderately. But he with his rustic simplicity, being made ashamed, answered: 'Yes, sir—

that is very true, and yet I assure you that I feel as sorrowful in this red beard as any other man does in his black one.'

The man who does not—though three and a half centuries lie between—sympathize with the sad, honest simplicity of the poor red-bearded mourner, must be as gross and heartless as was the narrator of the incident. It gives one, indeed, strange subject for reflection, to pause among these old trifles of a by-gone day; jotted down for passing time in a rude age, and yet preserved so clearly, cut and freshly colored in the modern time! Conrad Bühel, the free lance, and his enemy—the red-bearded mourner, the Baron von Stoeffel and his prætor, with the simple minded thief, and timid priests, and the genial but coarse scholar, Bebelius himself, were all real men in their day, who might have passed away without the slightest link to bind their names or natures to an after age—and now they live in a jest! Still they live—and it may be that when the page which you now peruse, O reader, shall be as old as the yellow leaves of the sixteenth century volume now before me, some one may revive them again. It is something to be near a scholar now and then, for no one knows who once crosses his path, but that he too may be noted down, to be borne by an anecdote across stormy centuries, into ages all unlike our own. No man ever yet died out of a printed book.

Many a happy thought dashed off by a modern writer, is only the adroit plagiarism of an old joke, 'But oh, the Latin!' says Heinrich Heine, in describing his boyish sorrows to a lady—'Madame, you can really have no idea of what a mess it is. The Romans would never have found time to conquer the world, if they had been first obliged to learn Latin. Lucky dogs! they already knew in their cradles the nouns ending in *im*.' This is a very adroit theft from the *Epistolarum Obscurorum Virorum*, attributed to Von Hütten and others, in which a stupid monk, having argued with Erasmus, writes as follows to his master:

'Then our host, who is a good scholar, began to talk of poetry, and greatly praised JULIUS CAESAR in his writings and deeds. Now when I heard this I was specially delighted that I had read so much, and that I had heard you lecture on poetry in Cologne, and I said: 'Since you speak of poetry, I can no longer keep quiet, and I tell you plainly that I do not believe that CAESAR

wrote those commentaries; and I strengthened my assertion with this argument: 'He who has his business in war and in constant labors, cannot learn Latin. Now, CAESAR was always in wars or in great toils, therefore he could not be erudite, or learn Latin.' I think, however, that SUETONIUS wrote those Commentaries, for I never saw any writer whose style so much resembles that of CAESAR, as does that of SUETONIUS.'

Who has not heard the story of the hackney coachman, who, at the end of the day, was wont to divide his gains into 'half for master and half for me,' when the whole should have been given to the proprietor? Or of the American public functionary, who said that his annual gains were 'one thousand dollars salary, besides the cheatage and stealage?' Both seem to me to be foreshadowed in the following '*Sacerdotis jocus non illepidus*';

'A certain priest named FYSILINUS who begged for a convent of Saint Sebastian, being asked what his annual salary was, replied: 'Twenty gold crowns!' 'Little enough!' answered the other. To which FYSILINUS replied: 'Various, however, are the emoluments of mortals; for I have also what is given to me, and what I steal. And very good is Saint Sebastian, who, whatever division I make with him, is always silent and contented.'

It is worth noting that this story and thousands which bore much more severely on the priests, were current for centuries before the Reformation. There were many anecdotes of this priest, all to his discredit, many of which were attributed, at a later day, to other unworthy monks. Among these, a very dull one is interesting, as connecting him with Eberhard, 'our bearded prince,' already referred to. Having begged of this truly noble man a benefice, Eberhard, who was aware of his character, replied: 'If I had a thousand vacant, you should not have the least of them.'—'*Si mille, inquit, mihi beneficia, ego minimum tibi non conferrem.*' To which Fysilinus impudently replied: 'And if I should hold divine service a thousand times, I would never bear you in mind, nor pray once for your salvation.'

I have attempted in the foregoing remarks to set forth, or rather illustrate, the manner in which modern jests have flown directly or indirectly, from those of earlier generations; and have, in so doing, called attention to a rare

and curious class of humorous books, which have been but little cited for more than two centuries. The principal point which I would most gladly make clear, is the fact that in literature and the history of culture, there are two classes of critics: the ultra-modern and the ultra-conservative, both of whom are in the wrong. The one cries that every flash of genius is new, and that an old jest is an old abomination—the other vows that there is nothing new under the sun, and that every good story is hidden away, in all its excellence, somewhere in the storehouse of the past. Examination is, however, like Pietro D'Abano, always a *Conciliator*. We find the original *thema* in the past, often reduced to the careless illustration of some principle or characteristic common to all humanity; but when we follow it down to the present, it becomes varied, improved, and enlarged into whole groups and families of new anecdotes, poems, jests, or proverbs; any single member of which is, perhaps, better than the original.

The history of jests can, in turn, be made to furnish an extremely vivid and curious history of the social conditions of men, and their changes from the earliest ages—not to be surpassed in value by that of any other peculiarities. In nothing is a man so much himself as in his humor.

FOOTNOTES:

[4] Erneuerte und vermehrte Lustige Gesellschaft (*Comes facundus in via pro vehiculo*), von JOHANN PETRO DE MEMEL, Zippelzerbst im Drömbling. Im Jahr, 1657.

[5] *Facetiarum* HENRICI BEBELII, Poetæ. Tübingen, A.D., 1542. Date of Preface, 1506.

[6] Peter Cunningham's last Book, p. 45.

[7] *Hortuli amæni, viridis et elegantis floribus Historicis et Poeticis, &c.* BALTHASARI SCHNURI. Rothenburg. 1637.

[8] *Democritus Ridens: sive Narrationum Ridicularum Centuria. Selecta* JOHANNI PETRO LANGIO. *Ulmæ*, anno 1667.

LITERARY NOTICES.

An historical research, respecting the Opinions of the Founders of the Republic on Negroes as Slaves, as Citizens, and as Soldiers. Read before the Massachusetts Historical Society, August 14, 1862. By GEORGE LIVERMORE. Boston: John Wilson & Son. 1862.

Within the past two years we have met with two pamphlets referring to the negro question during the days of the Revolution—the one being a reprint with comments of the celebrated Laurens letter,^[9] the other containing information as to the part taken by blacks in the struggle.^[10] We inferred from these works that much remained to be told, and find our surmise verified by an examination of the neatly printed octavo of 215 pages, now before us, in which is given a mass of information, fully establishing the fact that the negro played no mean part in the army of the Revolution, and, we may add, suggesting the reflection that he may only need proper encouragement to do as much, again, unless he should have strangely deteriorated from the original stock of his ancestry. Such a work as this, thorough and full of plain facts, telling their own story, was greatly needed, and we congratulate all who are interested in the future of this country on its appearance. Published under the auspices of the Massachusetts Historical Society, and warmly approved by EDWARD EVERETT and the venerable JOSIAH QUINCY, the work in question possesses, of course, the highest claim to consideration as a well written and perfectly digested *resumé* of its subject. It is curious to observe, from its documentary proofs, how fully the slave-holding arguments of the present day were once negatived by the experience of the past; and it is almost bitterly amusing that men can learn so little from experience, and that in one generation the dense clouds of ignorance should gather so thickly over a subject of the most vital importance to the country.

From this work we may learn that 'no language of radical reformers in recent times surpasses in severity the honest utterances' of the first men of the Revolution on the subject of slavery. It is worth knowing what Franklin,

Adams, Jefferson, Laurens, Pinckney, Randolph, Sherman, and a host of others said—to realize that slavery was regarded by them as a curse; and it is grievous to learn that 'circumstances,' local feuds, and bewildering side-issues should have interfered to prevent 'abolition' at a time when it might have been safely carried out. The vast amount of historical research on this subject, and its results, are well set forth by Mr. Livermore; and had his work been limited to these chapters alone, it should have won him a distinguished place among those who have cast a light as of life upon the obscure difficulties which now beset the great question. More encouraging and extremely interesting is that second portion of the work which gives the opinions of the founders of the republic respecting negroes as soldiers, and facts establishing their military ability. That the first fight of the Revolution should have been led by a negro, who was its first martyr, is of itself deeply significant: so is the fact that the most remarkable incident at Bunker Hill—the death of Pitcairn—was due to the bullet of a brave black soldier. With the exception of the two Tory States, Georgia and South Carolina, blacks, *slave* blacks, were enlisted from all the States in great numbers, and fought well. It is remarkable that in the beginning the same absurd objections to employing them were raised as those which still abound in our 'Democratic' press; and it was not, indeed, until forced by stern experience and dire need, that 'the States' found out the folly of their prejudice.

All of these data in the history of slavery, and with them several of minor importance, are remarkably well set forth in the present volume, which may fairly claim to be the first work on the subject ever published—the 'Historical Notes' already referred to having been suggested, as we are told, by Mr. Livermore himself, and forming an *avant courier* to the 'Historical Research.' It is needless to say that we commend it with our whole heart to all who would study the question of negro slavery from the beginning in this republic, and know, what few do, the extent and importance of the early troubles on the subject, or settle for themselves the greatly vexed question whether negroes, when treated as men, will or will not fight. It is all there.

LIKE AND UNLIKE. By A. S. ROE. New York: Carleton. Boston: A. K. Loring.

Mr. Roe's novels are of the manufactured kind. Like those of many others who are in the business, they give the impression that they are easily

written, and might possibly be turned out by a machine, had invention progressed a little farther than it has. Still his *pièces de manufacture* are very good of their kind, and sell very well—like the moral romances in China, which are disposed of by weight and in fragments, in such vast quantities, and which are so entirely a matter of mere pastime that the authors never think it worth while to affix their names to them. *Like and Unlike* may be safely intrusted by the most fastidious aunt to the most unsophisticated of nieces—and it is not unlikely that the niece would greatly enjoy its perusal. It is by no means devoid of interest, and indicates in many particulars that familiarity with the press which preserves any work of its nature—so far as style is concerned—from harsh judgment. There are better books—but certainly there are thousands which are much worse.

TITAN. From the German of JEAN PAUL FRIEDRICH RICHTER, by CHARLES T. BROOKS. Boston: Ticknor & Fields. 1863.

To many men JEAN PAUL has always been the greatest of German writers, however they might protest their preference for some other idol. CARLYLE knows and names GOETHE as the intellectual culmination of the past age—and yet shows in every sentence the influence of The Only One, with very barren traces indeed of The Old Heathen; reminding us of those devotees who profess a faith in GOD, but manifest it in the worship of some congenial saint. At the present day, Richter, instead of being overrated, is neglected. Already thirty years ago HAUFF bewailed that his works were not taken from public libraries; and yet it is as true as ever that he is, if not the greatest of German writers, at least the most German among the great ones of his fatherland. And it is here that the drawback lies—he carried to such excess all the peculiarities of his very peculiar country, and was a giant of grotesqueness. No one can really know German literature who knows not Jean Paul.

The work before us is Richter's masterpiece, which cost him ten years of labor. We could sum up of his other writings some thousand or two of pages which we read with more pleasure; yet still commend 'Titan' as the best beginning and ending for those who intend to go through all of Richter's writings. It is a romance *sui generis*—in the world, and yet most unworldly—full of unusual characters set forth in more unusual language—refreshing and delightful to the initiate, and most wearisome to commonplace minds.

As regards the merit of the translation, we can only say that, having compared the first hundred pages with the original, we find them admirably and accurately rendered, and presume, of course, that the remainder is equally excellent. Will not Mr. Brooks at some future time give us a translation of Richter's *Vorschule der Ästhetik*, a work sadly needed by some of our art-critics?

LINES LEFT OUT; or, Some of the Histories left out in 'Line upon Line.' New York: Harper & Brothers. 1863.

A juvenile work with an extremely awkward title; 'Line upon Line' having been a collection of Bible stories, adapted to the capacity of children, of which book the present volume is a continuation. While we credit the author for the best intentions, we must, however, suggest that it would have been better in every instance had the original text been given as well as the paraphrase, unless, indeed, it be assumed that the Bible is unfit for children to read, or above their comprehension.

FOOTNOTES:

[9] A South Carolina Protest against Slavery. New York: G.P. Putnam. 1861.

[10] Historical Notes on the Employment of Negroes in the American Army of the Revolution. By GEORGE H. MOORE. New York: Charles T. Evans. *Vide* also THE CONTINENTAL MONTHLY, May, p. 324, vol. i.

EDITOR'S TABLE.

Another month of these most eventful times has passed by with mingled good and evil fortune, and we still find 'that great mystery, the American Republic,' strong and in good hope, careering in headlong speed, with accelerated motion, adown the great torrent of history. It is natural enough—yet it is still most unreasonable—that there should be so many who believe that every eddy and whirl should be its death-struggle or its final dart into the deep calm sea of safety. With every battle lost or won there are thousands who despair or exult—forgetting that, come what may, the cause of human progress is *never backward*, and that we might as soon hope to recall the middle ages as build up into prosperity the 'patriarchal' old slave South.

Every rebel's slave is free. Free on paper, if you will—theoretically free; but is *that* nothing? How many years will slavery, or the Southern system in its integrity, exist side by side with a rapidly growing free country no longer recognizing the existence of 'the institution?' How many months, in fact, *when* we shall have and hold—as we are absolutely determined to do—the whole west bank of the Mississippi and the confederate ports; which, by the way, *should* have all been secured at the outset at *any cost*? Let us win or lose in the field, we shall still, thanks to our fleet, hem them in. And will not *that*, with mere waiting, prove a complete victory? Whatever financial crises may be before the North, it will ever possess, in spite of the most terrible sufferings, its enormous recuperative power, and its old ability for hard work. But how is the exhausted, ruined South to arise, save through Northern aid? Will its poor whites labor in factories? They are expected to form a permanent standing army. The negroes? The day of slavery is passing away rapidly. Let the South gain battles, if it will—they are only defeats in disguise; and in the long run it will be found that God willed this war to be long and bitter, that by it the last stronghold of the wrongs of man might be the more thoroughly exhausted.

THE GOLDEN ROD.

Upon the waves that rise and die
 Along the banks of Severn's river,
Amidst the blue of broken sky,
 I saw thy half-drawn image quiver
In changing gleams of golden light,
Now broadly spread, now vanished quite.

Late Golden Rod! in thought I deem
 I still shall find thee swaying there,
As if some naiad of the stream
 Gave to the wind her yellow hair,
Or, leaning o'er the margin, sought
The restless shape the waters wrought.

Though swaying, yet in quietude,
 Thy beauty touched my very soul,
Like the calm eye of womanhood,
 In stillness keeping all control.
And lo! as under sudden spell,
Thy presence shadowed all the dell.

The valley took October's crown,
 I found thy glory still the same;
The sumach flung his red leaves down,
 And lit his winter crest of flame;
The early elm and maple gave
Their burden to the patient wave.

I sought thee in the later year,
 I sought, but found thee there no more;
Only a rigid stalk and sere
 A withered head in silence bore,
Or swung, responsive to the sigh
Of the stray wind that passed it by.

Now Severn's banks in snow are still,
And Severn's stream is hushed and pale;
The sun shines on the whitened hill,
And glows like summer in the dale;
And yet I come, and half in gloom
And half in joy recall thy bloom.

Reader—do you want

SOMETHING NEW FOR DINNER?

It is not necessary to refer to a cook book to know what an excellent fish is the sheep's-head; you may find it in Noah Webster's large dictionary, where it is described as "the Sargus Ovis of Mitchell; esteemed delicious food"; or, you can find it in market.

Mr. Withers was married to a lovely young lady who once worked an entire piano cover with worsted. They had commenced housekeeping but a few months, when one morning the husband informed his wife that he should invite a friend to dine with him that day.

Mrs. Withers was in despair at this announcement, but she smiled and hid her grief; or at least her grief, in the shape of a Celtic cook, was at that time not to be seen, being employed in the kitchen, where she had invited two of her friends to "come in and ate."

Mr. Withers went down town; his wife then gave directions to the cook, Biddy O'Shaughshenny by name, to buy a sheep's-head, beef, game, and so forth.

'By the way, Bridget, have you ever cooked a sheep's-head before?'

'A shape's hid is it? Then I'm thinking, ma'am, I've cooked the likes of them minny a time and oft in the owld counthry when I bided with Mister Maginnis the grate counsillor in Dublin. I did.'

This was sufficient: Mrs. Withers was relieved of all care, and soon wended her way out shopping and making calls, until nearly the dinner hour. Home came Mr. Withers and friend, an Englishman by the name of Molesworth, with keen appetites. The dinner was served; oysters and soup finished, the waiter brought on a large dish covered.

'Ha, what have we here?' asked Withers, the husband.

'Something new, my dear,' answered Withers, the wife. 'I knew they were in season, and I ordered it for a surprise.'

Withers lifted the cover!

There WAS a sheep's head—with horns on.

However a Sheep's Head is like a turbot—for a turbot—according to Albert Smith's account of the Frenchman learning English—is not unlike a *tire-botte* (or a boot-jack) which *has* horns. Is'nt *that* a frantic conciliation of differences, and one which might have done honor to Petrus d'Abano, the Conciliator, himself?

There are many conscientious men whose consciences tear at the first pull—as is shown 'in the subsequent:'

CONSCIENTIOUS.

DEAR CONTINENTAL: Perhaps the following incident will cause a smile to ripple the good-natured features of some of your readers:—In the county of M——, the Draft Commissioner held an extra appeal for the 'conscientious men.' Now, in said county, there dwelt one Barney Mullen, who, not being exempted at the first appeal, on 'non-citizenship' grounds, was in 'great tribulation' in regard to the approaching draft. Some wag persuaded him to attend the second 'hearing,' telling him to swear that he was conscientious, and he would get his exemption papers. So Barney was at hand at the 'appointed time and place,' At last, 'it came to pass' that he got a hearing, and the Commissioner asked him what he had to say for himself.

'Shure, it's consyintious I am, an' exempted I want to be.'

The Commissioner had not forgotten Barney, so, to humor his whim, asked him if he would take the affidavit, having first read that paper to him.

'Afther David, the divil! It's me exemption papers I'm afther,' he replied.

'Have you conscientious scruples against fighting?' asked the Commissioner.

'Och, it's the schrupils an' dhrams both I have. I get 'em bad, too, yer honor.'

'Well, Barney,' said 'his honor'—putting the same question to him that he asked all others who offered the conscientious plea (and who always gave an affirmative answer)—'if your wife was being murdered, would you stand by a silent spectator?'

'Divil a silent spectator! D'yees take me fer a haythen? Be the howly! show me the scallywag that would harrum a hair o' the ole 'oman's hid, an' I'd give him sich a pelt on the gob, that he would think he'd got forninst a horse's hoof!'

'Then we can't exempt you, Mr. Mullen.'

'Mither ov Moses!' exclaimed Barney, as he left the room, 'not exempt a man because he wouldn't shtand by an' see the 'ole 'oman murdered!'

We are indebted to a friend—who is requested to call again—for the following from

PHILADELPHIA, Nov. 1862.

DEAR CONTINENTAL:

Did you ever study the language of signs?

I have—and a queer language it is. It is divided into two great families.

The first is of street signs.

The second of signs manual, optical, and otherwise by gesture significant.

An excellent illustration of this latter class was witnessed lately in a police court of this city. I give it as narrated to me by a friend.

A deaf mute, whose banged and battered face spoke for itself, lately appeared before a local magistrate to complain of the sufferings inflicted upon him by certain iniquitarians to ye court unknown.

'He's deaf and dumb as a nadder, your honor,' remarked the solemn policeman who introduced the silent man. 'But he kin tell his story bully.'

And he did.

Striking an attitude the dumb one pointed to his bruises, and then struck out one, two and three *à la* Heenan, to signify that his sorrows had been caused by a pugilistic attack.

The court nodded its perfect comprehension of the business thus far.

Raising the two fingers of his left hand, the mute bowed them up and down, so that they seemed to be human beings with solidified legs, making salaams to the court.

The court nodded.

Then the two fingers precipitated themselves fiercely against the forefinger of the right hand, which at once fell down, and was danced upon and bumped in a variety of ways by the inhuman digits of the sinister party.

The court nodded. It understood that the dumb man had been attacked by two persons.

But who were the two?

Elevating the forefinger of the left hand, the plaintiff first pointed to its face—or the place most suggestive of one, and then pressed his own nose flat.

The court nodded. One of the assaulters had been flat-nosed.

'A nigger, your honor!' exclaimed the constable in breathless admiration.

Raising the second finger the dumb man after a second crossed his two forefingers, and made upon his breast the sign of the cross. It was catholically done.

The court nodded.

'An Irishman, your honor!' exclaimed the constable, who like the complainant argued very promptly from religion to nationality. An Irishman and a nigger—and I'll find out in ten minutes all about it.'

And he did—a warrant was issued, and the guilty men punished.

"Thus he by gestes made knowne hys sufferance."

Yours devoted,
JOT.

IN THE BATTLE.

The drums are beat, the trumpets blow,
The black-mouthed cannon bay the foe,
Dark bristling o'er each murky height,
And all the field is whirled in fight.

The long life in the drowsy tent
Fades from me like a vision spent;—
I stand upon the battle's marge,
And watch the smoking squadron's charge.

Behold one starry banner reel
With that wild shock of steel on steel;
And ringing up by rock and tree
At last the cry that summons me.

I hear it in my vibrant soul,
Deep thundering back its counter roll;

And all life's ore seems newly wrought
In the white furnace of my thought.

No dream that made my days divine
But flashes back some mystic sign;
And every shape that erst was bright
Sweeps by me garmented in light.

High legends of immortal praise,
Brows of world heroes bound with bays,
The crownéd majesties of Time
Rise visioned on my soul sublime.

Dear living lips of love and prayer
Come chanting through the blackened air;
And eyes look out of marble tombs,
And hands are waved from churchyard glooms.

"Charge! charge!" at last the captain's cry!
We pant, we speed, we leap, we fly;
I feel my lifting feet aspire,
As I were born of wind and fire!

On! on! where wild the battle swims,
On! on! no shade my vision dims;
Transcendent o'er yon smoky wreath,
I see the glory of great Death!

Come flashing blade, and hissing ball!
I give my blood, my breath, my all,
So that on yonder rocking height
The stars and stripes may wave to-night!

Our Art writer is awakened. Listen to him.

DEAR CONTINENTAL: You were kind enough to inform me that you would be much obliged if I would let you know if there was anything stirring in the world of Art.

The last thing which stirred in my world—I mean in my workshop in the Studio Building—was a German of the carpenter persuasion. At least he had a side pocket, and folding two-feet rule, with a shaving on his left curl.

'Bees you a poor-trait bainter?' he inquired.

'Truly I am!' I replied.

'I wants you to baint de likeness to my fader.'

'With pleasure. Bring him here.'

'Yas—see now, dat is not bossiple. He lies geburied in the purying crount in Stuttgart in Shermamy.'

'Well, have you a photograph of him?'

'*Nichtss* photograb.'

'Or a bust?'

'*Nichts* pust.'

'Or a drawing?'

'*Nichts* trawing.'

'Or an engraving?'

'*Nichts* craving.'

'Well, then—what have you got?'

'I got *dis* dings.'

Saying this, he brought forth a small book, greatly worn, which he slowly opened, and unfolded from it a broad leaf, adorned with German emblems, and cragged pot-hook inscriptions which looked like lager-bier signs.

'What is that?'

'Dis is mein fader's passport. Look ant readt! Plue eyes, proun hair, round *kinn*, pig mouf—und all dat, so fort. He hafe a goot deal of exbression like mine.'

(Where this latter could have been I could not imagine.)

'Yas—und he wear a plue gote.'

'Oh—a *goatee*, I suppose, on his chin?'

'No. It was a plue gote on his pack. He hafe a pearde like mein, und look like mein. Put mein fader was a more older man dan me.'

'Ah, indeed!'

'Yas. Baint him mit a piple on a taple, und mit a girl on his hands.'

'*What!!*'

'Yas—mine leetle daughter. I prings her here to be colored.'

It was a bold thing to do; but on this small capital I went to work, and succeeded. At least, Jacobus Kirchelheimer said so—and *he* ought to know, for he was a first-rate fellow, and sent me over and above the price agreed upon, a dozen bottles of Rudesheimer. A suspicion seemed indeed to haunt his mind that the portrait resembled himself much more than it did the late Herr Kirchelheimer, *père*,—but he speedily found comfort in the following reflection:

'Ven I kits to be more older it will do shoost as goot for mine bicture as for de old one.'

It wasn't very self-flattering—that of hoping to resemble the Old One; but I said nothing. And no more at present from

Yours truly,
POPPY OYLE.

JAMES BUCHANAN—not satisfied with hoping for the parings of a nomination to the Senate after having eaten the Presidential apple, has pushed his impudence so far as to attempt to vindicate FLOYD from the charge of stealing, although the theft was by FLOYD self-confessed and gloried in. This is proving more than the record. What will FLOYD say for BUCHANAN?

The Raven said: 'Of birds I know,
The very whitest is the Crow.'

The Crow declared: 'While birds endure,
The Raven will be whitest, sure!'

The Raven said: 'I do believe
The Crow knows not what 'tis to thief.'

The Crow inquired: 'Who ever heard
The Raven was a stealing bird?

'He calls himself a thief, I know,
But I can prove it is not so.'

The Raven swore by wet and dry,
The Crow was never known to lie.

The Crow swore out by hot and cold,
The Raven's word was good as gold.

The Crow flew o'er an old oak tree;
'Caw me,' he croaked, '*and I'll caw thee.*'

It is an old story, and one which will last while rogues endure—be they broken-down politicians, craving, like Buchanan, a little more paltry notoriety, or any other variety of the great family of the Dishonest. And they will go their way adown the road of time and into history, properly brandmarked. The truth ever comes to light.

'And that isn't all—either.' For even as we write, the following is handed us by a friend:

Take, oh, take his pen away,
That so feebly runs on paper;
Keep him quiet, or he'll play
Other trait'rous prank and caper.
Why apologize for treason,
Or for stealing give a reason?

Hide, oh, hide his pens and ink;
Try to keep him silent: do!
Would you let him lower sink,
He'd defend the Devil too.
Keep him silent, let him be:
He has *not* escaped Scott-free.

Not he—nor the opinion of the whole world, either. There—let him go—*his* place in the future is at any rate decided on. And yet the vindicator of Floyd intends, we are told, to vindicate himself!

A late 'horrible and agonizing execution' of two murderers in cultivated and Christian England was witnessed by one hundred thousand people!—according to the *London Times*. In the first-class English journals a large space is always devoted to police reports, in which the vilest and most vulgar criminal cases are always given in full detail, to gratify the almost universal British craving for filth and cruelty. A drunken vagabond cannot maim his wife but all England must know all about it. Let it be borne in mind that while English writers are never weary of speaking of the blackguardism of the American press, nine tenths of our journals abandoned many years ago the abominable practice of regularly publishing police cases; and that, making every allowance, English newspapers at present publish on an average ten times as much demoralizing matter as the American.

We clip the following from the *Boston Post*:

'Speaking of the heathen names reminds the London Athenæum of what M. Salverte says with respect to that fairest of the heroines in that poem for all spring time, "Lalla Rookh." Everybody, in his happy turn, has been in love with that lady of the peerless enchantments: perhaps they will be taken a little aback when they hear that before the lord of the East gave her the name of Nourmahal, 'Light of the Harem,' or, in the later excess of his love, Nourdjihan, 'Light of the World,' she was known to her family and friends as Mher-ul-Nica, or, in equivalent Saxon, the 'Strapping Wench;' and that this 'tallest of women,' of whom it is said her lover, Djihanguyr,

——preferred in his heart the least ringlet that curl'd
Down her exquisite neck, to the throne of the world,

only became the light of his harem by the process of cutting the throat of her first husband. If this annotation, to be made in all copies of the poem, do not wring all charm out of the names by which the poet's lady is known to fame, then fiction again will prove stronger than fact.'

'And *that* isn't all, either.' For *Noor-Mahal*, albeit conventionally used as Light of the Harem, *does* mean Light of the Workshop in Arabic. We shouldn't in the least wonder if the lady in question, in her earlier and better-behaved days, had been chief engineer of a sewing machine at two shillings a day. However, we set that down to her credit side.

READER—you have travelled? If so, did you ever suffer from too much landlord?

The last time we were at Mackinaw, we had our boots blackened, our clothes 'swept,' and our cigars diminished by a very funny halfbreed named Pierre, and noticed that when more cigars than usual were taken, we were

always sure of receiving an extra amount of attention from him in the way of sweeping, brushing, and small talk.

'Mossu, how you lak Detroit?'

'I like it very well.'

'Zat fust-rate 'otel, ze Fiddle House; ze landlord he maks var' big fuss over ze grand persons as come zére—var' big fuss. Mamselle GRANDROSE she var splendid danseuse, she 'ave ze grande attentions: Madame COLSON she grande *chanteuse* 'ave ze grand care. Ah, bote zére comes zére oncet ze MARQUIS DE CHOUXFLEURS, zen you should see zat landlord; he bows and he smiles, and he rons round all ze time, viz, 'Musshoe ze Markiss, vat you lak for to eat, for to drink, for to sleeps? can I do somesings fore you. At lass ze Marquis he call for his bill, and he goes for to leave ze hotel. Zen ze landlord he comes to ze door, and he bows, and he smiles, and he robs his hands togezzer, and says he:

'Musshoe ze Markiss, *bone voyyaidge*;' (you see he spiiks ze French var' bad;) 'I hope you have been satisfy wiz my ho-tel?'

Zen ze Marquis smiles var' moch pleasaunt, and viz ze air off grand seigneur he lokes down on ze landlord and spiiks slowlee:

'Ze eat is var' good, ze sleep is not so var' bad, bote I 'ave notice one sing—zére is entairely TOO MOCHE LANDLORD!'

In American hotels, as strangers declare, unless one be acquainted, the complaint is apt to be of too *little* landlord. Then—oh, *then*, 'all goes as it does with a divinity in France,' as the European proverb hath it—that is to say, very Paradisiacally indeed. Which reminds us of a letter on the coming of the Millennium, from a friend who declares it to be his conviction that those who are afraid of the immediate realization of this consummation devoutly to be wished for, may lay aside their apprehensions, since it is evident that nothing of the kind is to come off *this* year at least.

'Of which, dear CONTINENTAL friend, there can be no doubt, albeit there may be somewhat pity. For I have lang syne awaited a millennium and a golden age, and, when FERNANDO WOOD was kicked out of the mayoralty into Coventry, hailed it as the beginning. Now, however, the old serpent lifts his

head—Fernando has gone to Congress, and the devil is let loose again for a little season—to give seasoning by his sin to the great sea of gruel of excessive virtue with which the world is inundated. Oh for the wings of a dove, to be 'out of this'—cut loose from all such 'carryin's on,' and fairly calm in some silent Lubberland or Atlantis fairy realm of peace!

'Where, with glasses ever clinking,
The gentles, ever drinking
To their lady loves in winking,
 Cry aloud *in júbilo*;
And the jolly plump old president
Calls out to every resident,
And, when they answer, says he meant
 To pledge *in gaudio*:

'Where the bells all day are ringing,
Where the world is ever singing,
And the roasted ducks fly winging
 Their way into your mouth:
Where doors are never banging,
Where tongues are never clanging,
Where the peach and grape while hanging
 Turn *all* sides toward the south:

'Where you find no foolish fussing,
Where you hear no oaths or cussing,
Where the babies need no nussing,
 But in smiles or sleep are found:
Where they all own herds and flockses,
Where we get in no 'bad boxes,'
And where all the paradoxes
 Are made straight, or else come round.

'O land so sweet and sunny!
O land of milk and money!
O land of peach and honey!
 O land withouten peer!

O land of good society!
O land of great variety!
And genial sobriety,
Oh, would that thou wert here!

'Or that I were 'over yonder!'
Free to rest and free to ponder,
Free to print, and free to wander
'Mid the maidens short and tall!
On 'the other side of Jordan,'
Where all is tuned accordin'
'To your leastest wish, my lord,' in
Every matter, great and small!

'Knowest thou, O Editor LELAND, of aught such, *where the board is cheap?*
Answer, I pray ye, forthwith. *Sono stancato.*'

Not we. When we hear of it, O friend, we will take passage for two—by the first boat.

A FRIEND communicates to us the following:

'PLATO, I think, PYTHAGORAS, I guess, and FO-HI, as I suppose—to judge from his eight KUA—believed that all knowledge was capable of mathematical representation.

'I don't know Miss Brown,' quoth a lady lately, in my hearing, 'she isn't in my Circle.'

'And I don't know her,' added Miss Black, 'for she doesn't live in my Square—and I never visit out of it.'

Dr. HOLMES has, however, declared that a person may be known by Triangulating the descent from the grandfather down.

From all of which I should judge that to mathematically set forth the knowledge of any person, it would be necessary to draw that slightly

paradoxical figure popularly described as a triangular square with round corners!

Q.E.D.

Yes—we think we see it. Square—corner—tri—Here, Thomas—carry it off and have it set up. It's all right, we suppose. Somebody will find it out, at any rate. Let us continue by singing the following genial 'Soldier's Song,' which hath the good ring of the good old time, and which has just come to hand:

SOLDATENLIED.

The wide world is the soldier's home,
His comrades are his kin;
His palace-roof the welkin dome,
The drum his mandolin.
He gives to air
All thought of care,
And trolls his serenade
To fiery Mars,
The king of stars,
That never love betrayed.

The banner is the soldier's bride,
The love of bold and brave;
His wedding feast, the battle tide;
His marriage bed, the grave.
Where bullets sing,
Death's leaden wing,
Light as a dancing feather,
When hero falls,

To glory's halls,
Wafts life and love together.

A teacher of the truly 'genial' stamp—that is to say one who takes delight, in exercising his or her genius, and in awakening that of the pupil is, we fear, a rarity; as much even in Art, as in any other branch of education. We believe, however, that we may claim as an exception Mrs. ELIZA GREATORIX of this city, whom we believe to be honestly and earnestly interested in her calling as an instructor in drawing, and one who endeavors to make Art 'a living language by educating the eye through the intelligence.' The method which she pursues is that of drawing from objects, beginning with Harding's series of blocks, and thereby accustoming both eye and hand to greater accuracy than can be acquired from copying the usual plane surface pictures, which in most cases makes of the pupil a mere facsimilist. Mrs. GREATORIX may be found at Studio 12, No. 204, Fifth Avenue.

A WORD FOR THE TIMES.

There ne'er was harm in anything,
But it came by misgoverning:
For one word of evil guiding
May lose a kingdom or a king!
A sound truth this which all can feel
From the romance of Sir Greye Steele.
Ye rulers all who bear the bell,
Weigh it, I pray you, wisely, well.

In this world nothing is constant save inconstancy. Nature changes all things, night and morn, and when she puts on again her former semblance,

still it is only a semblance, and never the very same. Young ladies—when your lovers vow to be true forever to love—you may believe them; but whether they will be eternally true to you, admits of reflection. Such at least seems to have been the life-philosophy of him who penned the following poem:

BY THE STREAM.

Oh water that ever art roving!
O fountain that never canst move!
Oh fancy—some new flame still loving!
O heart, ever constant to love!

The waterfall rustled and glistened,
Till it seemed like a musical flame,
And I lay and I looked and I listened
Till the nymph of the waterfall came.

It was no Undine or Lurley
(Though I thought her as beautiful still)
That came in the evening early—
But a bare-footed maid from the mill.

The pitcher too frequently laden
Must break and be lost at the worst,
But the young heart, when full of a maiden,
Of the twain will be broken the first.

But the pitcher, when cracked by a tumble,
Must be laid, till repaired, on the shelf,
While the heart, although shattered and humble,
Will be mended in time by itself.

And we vowed that we loved—but with laughter,
And we kissed with our feet in the brook;
She left me—my whistle rung after,
To win from the maid a last look.

And months have flown by since I missed her,
For afar with another she's flown;
And now I wait here for her sister,
To vow that I've loved her alone.

Oh water that ever art roaming!
Oh fountain that never canst move!
Oh fancy—some new flame still loving!
Oh heart ever constant to—love!

Sing it, reader, 'if thou canst sing.' A lady friend assures us that it goeth well
unto voice and pianoforte.

YE JOLLIE POACHER.

'Twas I that kept a shoddy mill
In starving Lancashire;
And shaved the Yankees shamefully
For many and many a year.

The mill is stopped, I'm raving mad,
As from the *Times* you hear;
Oh it's my delight to bark and bite
At all times of the year.

The Continental Monthly.

The readers of the CONTINENTAL are aware of the important position it has assumed, of the influence which it exerts, and of the brilliant array of political and literary talent of the highest order which supports it. No publication of the kind has, in this country, so successfully combined the energy and freedom of the daily newspaper with the higher literary tone of the first-class monthly; and it is very certain that no magazine has given wider range to its contributors, or preserved itself so completely from the narrow influences of party or of faction. In times like the present, such a journal is either a power in the land or it is nothing. That the CONTINENTAL is not the latter is abundantly evidenced *by what it has done*—by the reflection of its counsels in many important public events, and in the character and power of those who are its staunchest supporters.

Though but little more than a year has elapsed since the CONTINENTAL was first established, it has during that time acquired a strength and a political significance elevating it to a position far above that previously occupied by any publication of the kind in America. In proof of which assertion we call attention to the following facts:

1. Of its POLITICAL articles republished in pamphlet form, a single one has had, thus far, a circulation of *one hundred and six thousand* copies.
2. From its LITERARY department, a single serial novel, "Among the Pines," has, within a very few months, sold nearly *thirty-five thousand* copies. Two other series of its literary articles have also been republished in book form, while the first portion of a third is already in press.

No more conclusive facts need be alleged to prove the excellence of the contributions to the CONTINENTAL, or their *extraordinary popularity*; and its conductors are determined that it shall not fall behind. Preserving all "the boldness, vigor, and ability" which a thousand journals have attributed to it,

it will greatly enlarge its circle of action, and discuss, fearlessly and frankly, every principle involved in the great questions of the day. The first minds of the country, embracing the men most familiar with its diplomacy and most distinguished for ability, are among its contributors; and it is no mere "flattering promise of a prospectus" to say that this "magazine for the times" will employ the first intellect in America, under auspices which no publication ever enjoyed before in this country.

While the CONTINENTAL will express decided opinions on the great questions of the day, it will not be a mere political journal: much the larger portion of its columns will be enlivened, as heretofore, by tales, poetry, and humor. In a word, the CONTINENTAL will be found, under its new staff of Editors, occupying a position and presenting attractions never before found in a magazine.

TERMS TO CLUBS.

Two copies for one year,	Five dollars.
Three copies for one year,	Six dollars.
Six copies for one year,	Eleven dollars.
Eleven copies for one year,	Twenty dollars.
Twenty copies for one year,	Thirty-six dollars.

PAID IN ADVANCE

Postage, Thirty-six cents a year, to be paid BY THE SUBSCRIBER.

SINGLE COPIES.

Three dollars a year, IN ADVANCE. *Postage paid by the Publisher.*

JOHN F. TROW, 50 Greene St., N. Y.,
PUBLISHER FOR THE PROPRIETORS.

 As an Inducement to new subscribers, the Publisher offers the following liberal premiums:

 Any person remitting \$3, in advance, will receive the magazine from July, 1862, to January, 1864, thus securing the whole of Mr. KIMBALL'S and Mr. KIRKE'S new serials, which are alone worth the price of subscription. Or, if preferred, a subscriber can take the magazine for 1863 and a copy of "Among the Pines," or of "Undercurrents of Wall Street," by R. B. KIMBALL, bound in cloth, or of "Sunshine in Thought," by CHARLES GODFREY LELAND (retail price, \$1. 25.) The book to be sent postage paid.

 Any person remitting \$4.50, will receive the magazine from its commencement, January, 1862, to January, 1864, thus securing Mr. KIMBALL'S "Was He Successful?" and Mr. KIRKE'S "Among the Pines," and "Merchant's Story," and nearly 3,000 octavo pages of the best literature in the world. Premium subscribers to pay their own postage.



EQUAL TO ANY IN THE WORLD!!!

MAY BE PROCURED

At FROM \$8 to \$12 PER ACRE,

Near Markets, Schools, Railroads, Churches, and all the blessings of
Civilization.

**1,200,000 Acres, in Farms of 40, 80, 120, 160 Acres and upwards, in
ILLINOIS, the Garden State of America.**

The Illinois Central Railroad Company offer, ON LONG CREDIT, the beautiful and fertile PRAIRIE LANDS lying along the whole line of their Railroad. 700 MILES IN LENGTH, upon the most Favorable Terms for enabling Farmers, Manufacturers, Mechanics and Workingmen to make for themselves and their families a competency, and a HOME they can call THEIR OWN, as will appear from the following statements:

ILLINOIS.

Is about equal in extent to England, with a population of 1,722,666, and a soil capable of supporting 20,000,000. No State in the Valley of the Mississippi offers so great an inducement to the settler as the State of Illinois. There is no part of the world where all the conditions of climate and soil so admirably combine to produce those two great staples, CORN and WHEAT.

CLIMATE.

Nowhere can the Industrious farmer secure such immediate results from his labor as on these deep, rich, loamy soils, cultivated with so much ease. The climate from the extreme southern part of the State to the Terre Haute,

Alton and St. Louis Railroad, a distance of nearly 200 miles, is well adapted to Winter.

WHEAT, CORN, COTTON, TOBACCO.

Peaches, Pears, Tomatoes, and every variety of fruit and vegetables is grown in great abundance, from which Chicago and other Northern markets are furnished from four to six weeks earlier than their immediate vicinity. Between the Terre Haute, Alton & St. Louis Railway and the Kankakee and Illinois Rivers, (a distance of 115 miles on the Branch, and 136 miles on the Main Trunk,) lies the great Corn and Stock raising portion of the State.

THE ORDINARY YIELD

of Corn is from 60 to 80 bushels per acre. Cattle, Horses, Mules, Sheep and Hogs are raised here at a small cost, and yield large profits. It is believed that no section of country presents greater inducements for Dairy Farming than the Prairies of Illinois, a branch of farming to which but little attention has been paid, and which must yield sure profitable results. Between the Kankakee and Illinois Rivers, and Chicago and Dunleith, (a distance of 56 miles on the Branch and 147 miles by the Main Trunk,) Timothy Hay, Spring Wheat, Corn, &c., are produced in great abundance.

AGRICULTURAL PRODUCTS.

The Agricultural products of Illinois are greater than those of any other State. The Wheat crop of 1861 was estimated at 35,000,000 bushels, while the Corn crop yields not less than 140,000,000 bushels besides the crop of Oats, Barley, Rye, Buckwheat, Potatoes, Sweet Potatoes, Pumpkins, Squashes, Flax, Hemp, Peas, Clover, Cabbage, Beets, Tobacco, Sorghum, Grapes, Peaches, Apples, &c., which go to swell the vast aggregate of production in this fertile region. Over Four Million tons of produce were sent out the State of Illinois during the past year.

STOCK RAISING.

In Central and Southern Illinois uncommon advantages are presented for the extension of Stock raising. All kinds of Cattle, Horses, Mules, Sheep, Hogs, &c., of the best breeds, yield handsome profits; large fortunes have already been made, and the field is open for others to enter with the fairest prospects of like results. Dairy Farming also presents its inducements to many.

CULTIVATION OF COTTON.

The experiments in Cotton culture are of very great promise. Commencing in latitude 39 deg. 30 min. (see Mattoon on the Branch, and Assumption on the Main Line), the Company owns thousands of acres well adapted to the perfection of this fibre. A settler having a family of young children, can turn their youthful labor to a most profitable account in the growth and perfection of this plant.

THE ILLINOIS CENTRAL RAILROAD

Traverses the whole length of the State, from the banks of the Mississippi and Lake Michigan to the Ohio. As its name imports, the Railroad runs through the centre of the State, and on either side of the road along its whole length lie the lands offered for sale.

CITIES, TOWNS, MARKETS, DEPOTS.

There are Ninety-eight Depots on the Company's Railway, giving about one every seven miles. Cities, Towns and Villages are situated at convenient distances throughout the whole route, where every desirable commodity may be found as readily as in the oldest cities of the Union, and where buyers are to be met for all kinds of farm produce.

EDUCATION.

Mechanics and working-men will find the free school system encouraged by the State, and endowed with a large revenue for the support of the schools. Children can live in sight of the school, the college, the church, and

grow up with the prosperity of the leading State in the Great Western Empire.

PRICES AND TERMS OF PAYMENT—ON LONG CREDIT.

80 acres at \$10 per acre, with interest at 6 per ct. annually on the following terms:

Cash payment		\$48 00
Payment	in one year	48 00
"	in two years	48 00
"	in three years	48 00
"	in four years	236 00
"	in five years	224 00
"	in six years	212 00

40 acres, at \$10 00 per acre:

Cash payment		\$24 00
Payment	in one year	24 00
"	in two years	24 00
"	in three years	24 00
"	in four years	118 00
"	in five years	112 00
"	in six years	106 00

Number 15. 25 Cents.

**THE
CONTINENTAL
MONTHLY.**

DEVOTED TO

Literature and National Policy.

MARCH, 1863.

NEW YORK:
JOHN F. TROW 50 GREENE STREET
(FOR THE PROPRIETORS).
HENRY DEXTER AND SINCLAIR TOUSEY.
WASHINGTON, D.C.: FRANCK TAYLOR.

CONTENTS.—NO. XV.

Turkey. A. Comté, Jr.,	257
False Estimations,	274
The Blue Handkerchief,	276
Gold,	279
Last Words. Ingoldsby North,	282
Parting. Edward S. Rand, Jr.,	288
A Merchant's Story. By the author of 'Among the Pines,'	289
The Captain of '63 to his Men. Mary E. Nealy,	315
The Vision of the Monk Gabriel. Eleanor C. Donnelly,	316
The Century of Inventions. Charles G. Leland,	318
The Lady and her Slave,	330
For and Against,	334
European Opinion. Hon. F.P. Stanton,	340
The Huguenots. Hon. G.P. Disosway,	348
Montgomery in Secession Time,	354
The Union. By Hon. Robert J. Walker,	366
The Soldier's Burial,	373
Literary Notices,	374
Editor's Table,	379

'SUNSHINE IN THOUGHT,' by Charles Godfrey Leland, one of the editors of this magazine, has just been issued by Charles T. Evans.

'MY SOUTHERN FRIENDS,' by the author of 'Among the Pines,' will be published in book form, by Carlton, 448 Broadway, about March 1st.

ENTERED, according to Act of Congress, in the year 1862, by JAMES R. GILMORE, in the Clerk's Office of the District Court of the United States

for the Southern District of New York.

JOHN F. TROW, PRINTER.

*** END OF THE PROJECT GUTENBERG EBOOK THE
CONTINENTAL MONTHLY, VOL. 3 NO 2, FEBRUARY 1863 ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.